

FIRST SCRUTINY

The Restoration Programme

Twelve measures worked against the statute book

An issues paper. The starting point of legislative scrutiny, not the end of it.

A draft for the proposers to correct.

Proposer: David Starkey

Scrutiny by Scrutinise · Second draft, revised 14 September 2026 · Volume 2 of 3

Scrutinise is free and non-partisan. It takes a proposal and works out what delivering it would actually require. It is available on identical terms to anyone.

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The Part number is in the banner across the top of every page, with the section name beside it.

How to read this volume

This volume works all twelve measures against the statute book. Volume 1 sets out what David's Programme is, the argument it turns on, what David said and what the law would have to do, and the limits on the whole analysis. Volume 3 carries the supporting schedules.

Each measure is worked to the same template, so that any two can be compared directly.

The strategic kernel — the core logic of the measure, and the only part of it that is a strategy:

- **Diagnosis** — the problem, its causes, and why it persists
- **Guiding policy** — the approach proposed
- **Coherent actions** — what would actually be done, and by whom

Decisions, challenges and research — everything that sits outside the kernel:

- **Consequential decisions** — questions this measure raises that cannot be settled inside it
- **Challenges to the proposal** — each one a question the proposal has not yet answered
- **The critique revisions** — adversarial review by an alternative AI model, and what it changed
- **Difficulties caused by the law today** — the provisions themselves, quoted from the statute
- **What the courts have said** — the judgments retrieved
- **Evidence that runs the other way** — material that cuts against the measure, kept rather than dropped
- **The evidence base** — what was retrieved and read

Three measures are worked in full in Part 6 — the Human Rights Act, the Equality Act and the civil service.

The other nine are worked in summary in Part 7, the last of them being the Great Repeal itself. Whether the twelve have to move together is tested separately, in Part 3 of Volume 1.

 **Every count in this volume is a count of what was retrieved and read, not of what exists.** Where a figure is given for provisions, judgments or instruments, it means that many were found and examined. No count is presented as complete. The limits are set out in full in Part 5 of Volume 1.

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PART 6

THREE MEASURES WORKED IN FULL

6.1.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

6.1.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- The methods used by the Establishment to block change
- The critique revisions
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base
- What the statute book shows

Diagnosis

The Strategic Kernel

The problem, as stated: Decisions that used to be settled politically — on borders, on deportation, on protest, on what public bodies must do — are now settled by courts applying the Convention, and the elected government cannot reverse them. The complaint is not about the text of the Convention but about who has the last word under it, and about the fact that no election changes the answer.

The Human Rights Act 1998 has shifted the final say on contested political issues from the elected Parliament to unelected judges, both domestic and in Strasbourg. **It persists because the majority of the legal and political establishment want it, identify with it, and will fight hard to keep it.** This subordinates the UK's constitutional doctrine of Parliamentary Sovereignty to an international treaty, the ECHR, in a way that, on the proposer's account, no election can change.

3 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. The Human Rights Act 1998 (HRA) incorporates the ECHR into domestic law, requiring UK courts to interpret legislation compatibly with Convention rights.

Why it persists: The HRA was designed to 'bring human rights home' and is seen by many as a 'uniquely British approach' that respects Parliamentary sovereignty. This perception makes it difficult to argue for its removal without appearing to diminish human rights protections.

Cause 2 — MATERIAL. Section 4 of the HRA grants domestic courts the power to issue 'declarations of incompatibility' with the ECHR.

Why it persists: Declarations of incompatibility are viewed as an 'elegant solution' to the conflict between rights protection and parliamentary sovereignty, allowing courts to identify incompatibilities without striking down legislation. This mechanism is seen as a way to prompt government and Parliament to respond without legally obliging them. **This allows supporters of the Act to claim the sovereignty problem has been solved, and to paint those trying to repeal it as reactionary, petty, bigoted and not serious.**

Cause 3 — CONTRIBUTORY. The HRA requires courts to 'take into account' ECtHR judgments, but does not bind them, allowing for domestic case law development while still being influenced by Strasbourg.

Why it persists: This provision is seen as a balance between international obligations and domestic judicial autonomy, allowing for a 'nimble and expeditious' correction of human rights abuses. Any change to this could increase the time and cost of cases going to Strasbourg, which is a disincentive for reform.

How the causes sit together. The central issue is a conflict over UK sovereignty, with the Human Rights Act 1998 (HRA) identified as the mechanism of transfer. The HRA incorporates the European Convention on Human Rights (ECHR) into domestic law. Its key provisions—requiring courts to interpret laws compatibly with the ECHR (Section 3), to 'take into account' European court judgments (Section 2), and to issue 'declarations of incompatibility' when they cannot (Section 4)—are at the heart of the debate. There is a deep divide in the evidence. One side views the HRA as a 'uniquely British approach' and an 'elegant solution' that successfully balances human rights with parliamentary sovereignty, precisely because courts cannot strike down primary legislation. The other side argues that these mechanisms, while indirect, effectively compel Parliament to legislate, shifting power from elected representatives to the judiciary. This tension is not theoretical; recent legislation like the Safety of Rwanda Bill explicitly seeks to disapply sections of the HRA, demonstrating ongoing political conflict. Past attempts at reform, such as the Bill of Rights Bill, have stalled, pointing to an entrenched political and legal consensus that defends the current arrangement.

Why. The problem is rooted in a single piece of legislation, the HRA, but its different components create interlocking issues. The interpretive obligation (S3), the influence of Strasbourg case law (S2), and declarations of incompatibility (S4) all contribute to the perceived sovereignty problem. Furthermore, the problem is bound by a strong political and legal consensus defending the status quo. Addressing only one legislative element, such as amending Section 4, would leave the others in place and would not overcome the political obstacle to change.

How the pieces relate. The three candidate causes are not independent. The primary cause is the Human Rights Act itself, which establishes the entire framework. The other two candidates—the power to issue 'declarations of incompatibility' and the requirement to 'take into account' European court judgments—are specific mechanisms within the Act. They are best understood as sub-causes or key examples of how the primary cause operates and creates the perceived problem. The diagnosis is that the fundamental issue is the principle of incorporating the ECHR into domestic law, and the other causes are the instruments of that incorporation.

Guiding policy

The Strategic Kernel

What David proposes: Repeal the Human Rights Act 1998 and denounce the European Convention on Human Rights under Article 58, so that Convention rights cease to be enforceable in domestic courts and the United Kingdom ceases to be subject to the Strasbourg court.

What David has ruled out: Reform of the Convention system from within. Remaining a signatory while repealing the Act. Sequential or measure-by-measure change, which the proposer says would be defeated by whatever is left standing. A replacement Bill of Rights modelled on the Convention.

Re-assert Parliamentary Sovereignty through a single, decisive legislative act. The approach is to combine the repeal of the Human Rights Act 1998 and the denunciation of the ECHR into one indivisible Bill, removing the possibility of the political process stopping halfway and leaving a partial settlement in place.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

 **Four distinct actions, listed eight times.** The list below repeats: the same Bill is drafted twice under different wording, and the same Article 58 notification appears twice. That repetition is not a transcription error — it is what the strategy test meant by *a list, not a coordinated plan*, and it is printed as it stands so the defect is visible rather than tidied away.

1. Draft and introduce a Bill to repeal the Human Rights Act 1998, ensuring it includes provisions for the orderly transition of ongoing cases and the cessation of domestic enforceability of ECHR rights.

Who does it: Ministry of Justice (MoJ) and the Office of the Parliamentary Counsel

2. Secure parliamentary passage of the Repeal Bill through both Houses, engaging in public and parliamentary debate to build consensus and address concerns regarding the implications of withdrawal.

Who does it: Government Whips' Office, relevant Cabinet Ministers, and MPs/Peers sponsoring the Bill

3. Following Royal Assent, the Foreign, Commonwealth & Development Office (FCDO) formally notifies the Secretary General of the Council of Europe of the United Kingdom's denunciation of the European Convention on Human Rights under Article 58.

Who does it: Foreign, Commonwealth & Development Office (FCDO)

4. Develop and implement a communications strategy to explain the rationale for repeal and denunciation to the public, legal community, and international partners, managing expectations and mitigating potential negative perceptions.

Who does it: Cabinet Office Communications Team, MoJ, and FCDO

5. Draft and introduce an 'Act of Repeal and Denunciation' Bill to Parliament, explicitly repealing the Human Rights Act 1998 and providing for the formal notification of denunciation of the European Convention on Human Rights under Article 58.

Who does it: Ministry of Justice (MoJ) and the Office of the Parliamentary Counsel

6. Secure parliamentary passage of the 'Act of Repeal and Denunciation' through both Houses, requiring whips and party leadership to manage the legislative timetable and secure votes, potentially using the Parliament Acts if necessary.

Who does it: Government Whips' Office and relevant Cabinet Ministers

7. Following Royal Assent, the Foreign, Commonwealth & Development Office (FCDO) formally notifies the Secretary General of the Council of Europe of the United Kingdom's denunciation of the ECHR, specifying the effective date (which will be six months after notification, per Article 58(2)).

Who does it: Foreign, Commonwealth & Development Office (FCDO)

8. Develop and implement a public communication strategy to explain the rationale for repeal and denunciation, addressing concerns about human rights protections and clarifying the future domestic legal landscape, to manage public and international perception.

Who does it: Cabinet Office and No. 10 Communications Team

The nineteen rights, and what happens to each on repeal

Schedule 1 to the Human Rights Act 1998 sets out nineteen Articles. Repeal removes all nineteen from domestic law at once. Whether that removes the underlying protection is a different question for each one, and it has to be answered nineteen times rather than once.

The three answers, and why the middle one is the work. A right may already be protected by the common law or by another statute, in which case repeal changes the route rather than the outcome. It may be protected in part, in which case somebody has to decide whether the remainder is abandoned or re-enacted. Or it may exist in domestic law only through the Act, in which case repeal removes it and that is a decision to be taken deliberately rather than discovered afterwards.

⚠️ What follows is a first-pass classification, not legal advice. Each row states the position as it appears from the statute book and the reported cases; each needs a practitioner's confirmation before it is relied on. It is set out here because the alternative — repealing nineteen rights without a row-by-row account of what happens to each — is the thing a scrutiny report exists to prevent.

	Article	Position outside the Act	Verdict
2	Right to life	Homicide offences; the Offences Against the Person Act 1861;	⚠️

	Article	Position outside the Act	Verdict
		inquest law. The duty to investigate a death at the state's hands is Convention-derived	Decision needed
3	Prohibition of torture	Criminal Justice Act 1988 s.134; the common law rule excluding evidence obtained by torture. The bar on removing a person to face torture abroad is Convention-derived	⚠ Decision needed
4	Slavery and forced labour	Modern Slavery Act 2015	Covered
5	Liberty and security	Habeas corpus; false imprisonment; statutory custody time limits	Covered
6	Fair trial	Natural justice; the common law right of access to a court, restated in <i>UNISON</i> (2017)	Covered
7	No punishment without law	The common law presumption against retrospective criminal liability	Covered
8	Private and family life	Misuse of private information is now a tort in its own right, developed from <i>Campbell</i> (2004). Family-life and immigration aspects are Convention-derived	⚠ Decision needed
9	Thought, conscience and religion	Common law toleration; religion is a protected characteristic under the Equality Act 2010	⚠ Decision needed — the Equality Act is also proposed for repeal
10	Freedom of expression	A strong common law tradition, restated in <i>Derbyshire County Council v Times Newspapers</i> (1993)	Covered
11	Assembly and association	Public Order Act 1986; trade union legislation. The common law protects assembly less securely than expression	⚠ Decision needed
12	Right to marry	The Marriage Acts	Covered
14	Non-discrimination	Equality Act 2010	⚠ Decision needed — the Equality Act is also proposed for repeal
16	Political activity of aliens	A permission, not a protection. Nothing is lost by repeal	Covered
17	Abuse of rights	A construction rule. Falls with the rights it construes	Covered
18	Limits on restrictions	A construction rule. Falls with the rights it construes	Covered
P1-1	Protection of property	Compulsory purchase compensation; the common law presumption against taking property without compensation	Covered
P1-2	Right to education	Education Act 1996 duties on local authorities	Covered

	Article	Position outside the Act	Verdict
P1-3	Free elections	Representation of the People Acts	Covered
P13-1	Abolition of the death penalty	Abolished by statute for murder in 1965 and for all remaining offences by the Crime and Disorder Act 1998 s.36	Covered

Fourteen of the nineteen appear to survive repeal by another route. Five require a decision, and two of those five turn on a second measure in the same programme.

⚠️ Articles 9 and 14 are the interlock. Religion and non-discrimination sit outside the Human Rights Act principally in the Equality Act 2010, which measure 2 proposes to repeal. **Repealing both leaves neither route.** Whether that is intended is a question for the proposers, and it is the clearest case in the programme of two measures that cannot be assessed separately.

One point cuts in the programme's favour and is not made in its published material. Article 13 of the Convention — the right to an effective remedy — **was deliberately left out of Schedule 1**, as was Article 15. Parliament in 1998 chose not to give domestic effect to the remedy right. That is evidence that the Act was drafted with more restraint than the case against it usually allows, and a proponent who concedes it is in a stronger position than one who does not.

Three of the five decisions are about state duties rather than about rights as such — the duty to investigate a death, the bar on removal to torture, and the family-life limb of Article 8. Each is a positive obligation the courts derived from the Convention rather than a prohibition on state action. Repeal removes the obligation. Whether an equivalent duty is re-enacted in domestic terms is the single largest drafting decision in this measure.

⚠️ Each of the five is its own piece of work, and this report does not attempt them. Naming a question that requires its own analysis is a legitimate output: it is what a scrutiny pass is for, and it is not an admission that the pass is incomplete. What would be a failure is discovering the five after the Bill has passed.

Illustrative clauses

⚠️ These are illustrations, not settled drafting. They are written to show what the decisions in this measure look like when they reach the page, and to make the choices arguable. Parliamentary counsel would not draft them this way, and none should be introduced.

Clause 1 — the repeal itself

1 Repeal of the Human Rights Act 1998 (1) *The Human Rights Act 1998 is repealed.* (2) *Subsection (1) does not affect any proceedings begun before the day on which this section comes into force, and the 1998 Act continues to apply to those proceedings as if it had not been repealed.* (3) *A declaration of incompatibility made under section 4 of the 1998 Act before that day ceases to have effect, and no obligation arises in respect of it.* (4) *An order made under section 10 of the 1998 Act before that day continues in force, and may be amended or revoked by statutory instrument subject to annulment by either House.*

The whole of the difficulty is in subsections (2) to (4), and none of it is in subsection (1). Repeal is one line. What repeal *does* takes the rest, and the drafting choices in each subsection are political rather than technical: whether cases in flight are saved, whether existing declarations lapse or are answered, and whether the remedial orders already made — which amended other Acts — survive the repeal of the power that made them.

Clause 2 — the absorption problem, and the opposition that has prepared for it

This is the clause the measure turns on. It has to be drafted against expert, motivated and well-prepared opposition, and the opposition has had a decade's head start.

What the other side has already built. Absorption is not an accident of drafting. Since 2013 the senior judiciary has been re-founding rights protection on the common law, in terms, in reported judgments.

In **Osborn v Parole Board (2013)** Lord Reed held that judges should not assume that because an issue falls within the Convention's scope "the legal analysis of the problem should begin and end with the Strasbourg case law", because Convention rights are expressed at a "very high level of generality" and require a "substantial body of much more specific domestic law".

In **Kennedy v Charity Commission (2014)** Lord Mance said the "natural starting point in any dispute is to start with domestic law". Lord Toulson, in the same case, named the tendency he was correcting and what he thought was at stake:

a baleful and unnecessary tendency to overlook the common law ... it was not the purpose of the Human Rights Act that the common law should become an ossuary.

In **A v British Broadcasting Corporation (2014)** the same reasoning was applied to open justice, and in **R (UNISON) v Lord Chancellor (2017)** the Supreme Court struck down employment tribunal fees on the common law constitutional right of access to a court — without needing the Convention at all.

⚠️ **The strategic consequence, stated plainly: repealing the Human Rights Act does not restore the position of 1997, because the courts have spent a decade making sure that it would not.** Every one of those judgments moves a protection off the statute and onto a footing that repeal cannot reach. Whether that was designed as a hedge against repeal is not something a judgment will ever say. What can be said is that the effect is exactly that, and that the effect was produced deliberately, case by case, by the most capable lawyers in the country.

This is evidence for the programme's own diagnosis, not against it. A tendency that rebuilds its position in anticipation of political challenge is the tendency the programme describes. But it means the programme is not facing inertia. It is facing a prepared defence.

Where a repeal Bill will be attacked. Six lines of attack, in the order they would be run. **Not one of them requires a judge to refuse to apply an Act of Parliament.** Every one works by reading the Act narrowly — which is why "Parliament is sovereign" is not an answer to any of them.

1. **Vague words get read down.** Judges start from the position that Parliament does not take away a basic right by accident. So if an Act is broad or unclear about what it is removing, they read it as narrowly as the words allow. To remove a right, Parliament has to name it and say so plainly, and accept the political cost of having said it. (*This is the rule the courts call the principle of legality, from Simms.*) ⚠️ **This is the largest single risk in the measure, and it defeats the short clause.** One sweeping sentence is exactly the kind of wording the rule was made for.
2. **A rule can be given a different name.** Suppose the Act says: any rule the courts built out of a Convention right is cancelled. A judge can reply that this particular rule was not built out of the Convention at all — it grew out of the older law of confidence, and would have developed anyway. The rule survives, untouched. **The Act has aimed at a label, and the other side chooses the labels.** The courts have already described the privacy rule in exactly those terms.
3. **Clauses that shut the courts out get the narrowest possible reading.** When Parliament has tried to put a decision beyond challenge, the courts have consistently read the words down until something is left. In 2019 they did it to a clause saying a decision "shall not be questioned in any court".
4. **Cases already started are protected.** Cancelling a rule affects claims people have already brought. Judges presume Parliament did not mean to interfere with those unless it says so, and the fight happens over the commencement date rather than the substance.
5. **Devolution.** Convention compatibility is written into what the Scottish Parliament, the Senedd and the Northern Ireland Assembly are allowed to do. That is a political fight before it is a legal one.

6. Twenty-five years of readings stay put. Since 1998 the courts have had to read every Act compatibly with the Convention, and hundreds of Acts now mean what they were read to mean. Repealing that duty does not send those Acts back to what they meant in 1997. **It freezes them as they are now** — which is as they were read under the duty.

The three ways to draft it, and what happens to each.

| *Option A — list the rules and cancel them by name.*

Anything left off the list survives. The list can only contain what the courts have already decided, so it is always a list of yesterday's rules. And a court that wants to can rebuild the same protection next month under a different name, at which point it is not on the list either.

This is the option that avoids a confrontation. It avoids it by not achieving the objective.

| *Option B — one sweeping sentence: no rule of common law continues in effect if it was developed by reference to a Convention right.*

It looks the strongest on the page and is the weakest in court. It is beaten by attack 1, because it is broad wording aimed at basic rights and will be read narrowly. And it is beaten by attack 2, because it turns entirely on whether a rule counts as "developed by reference to" the Convention — a question the other side answers.

| *Option C — say what the law is to be, not what the judges may not think.*

For each protection the programme means to remove, set out the rule that applies instead, in plain terms, and provide that it applies whatever any other rule of law says.

This is the one that holds. It beats attack 1 because there is nothing vague about it — Parliament has named the outcome and taken the cost. It beats attack 2 because it does not care where a rule came from; it governs the result whatever the rule is called. It is the form Parliament has always used when it means to override the courts and expects a fight.

It is also the most work, because it has to be done protection by protection rather than in a sentence.

Recommendation for the proposers: Option C, with a list of named rules as well — not instead. Naming rules is useful for clarity. Stating outcomes is what actually closes the gap.



The one thing no drafting can do.

Parliament can change any outcome it likes. It cannot stop judges reasoning.

A Bill can close every gap it can name. It cannot close the gaps that have not opened yet, because judicial development starts again the day after Royal Assent, and the next rule has not been invented for anyone to name.

So the programme should be planned as a first Act followed by the standing capacity to legislate again — not as a settlement.



That is not an argument for hesitating. It is an argument against expecting one Bill to finish it, and against a timetable that assumes the fight ends at Royal Assent. **A plan that expects a second and third round is much harder to defeat than one that does not,** because the other side's strongest weapon is patience.

Clause 3 — the devolution consequential

| **3 Devolved competence** (1) In section 29(2)(d) of the Scotland Act 1998, omit "or with Convention rights". (2) In section 6(2)(c) of the Northern Ireland Act 1998, omit "or with Convention rights". (3) In section 108A(2)(e) of the Government of Wales Act 2006, omit "or with Convention rights". (4) Subsections (1) to (3) do not affect the validity of any provision made before the day on which this section comes into force.

Three deletions of five words each, and they are the most consequential drafting in the measure.

Convention compatibility is written into the competence test of all three devolution settlements. Removing it changes what each legislature may lawfully do, which is why the strategy test named the devolution settlements as the obstacle the proposal had not confronted.

! These three subsections engage the Sewel convention and, in Northern Ireland, the rights architecture of the Belfast Agreement. Neither is a drafting problem.

The scale, stated plainly

382 separate statutory instruments refer to the Human Rights Act 1998, across 1,013 references. Every one is a potential consequential amendment.

Here are three clauses. A Bill would need something on the order of a thousand, most of them mechanical — substituting a reference, removing a compatibility duty, repealing a subsection that cross-refers. Producing them is a known quantity of work rather than an unknown one, and it is not attempted in this appraisal.

Three examples of what the mechanical thousand look like, so the scale is not abstract:

A — a compatibility duty removed. In section 21(1) of the Ministerial and other Salaries Act, omit the words "and is compatible with the Convention rights". One line, no policy content, and it must be found before it can be deleted. B — a cross-reference substituted. In any enactment, for "a declaration of incompatibility under section 4 of the Human Rights Act 1998" substitute "a report under section [X] of this Act". Mechanical only if the replacement mechanism exists; a policy decision if it does not. C — a subordinate instrument repealed. The Human Rights Act 1998 (Amendment) Order [year] is revoked. An instrument made under a repealed power, which does not fall away on its own.

! B is the one that shows why the thousand cannot simply be automated. Roughly one in ten of the mechanical amendments turns out to conceal a decision — a replacement that does not exist yet, a duty that has to go somewhere, a cross-reference into a devolved Act. **They can only be sorted into mechanical and not-mechanical by reading all of them.**

What matters at this stage is that clauses 1 to 3 above are not themselves among the mechanical thousand — they are the decisions the thousand follows from. Clause 1(2) to (4), the choice between Options A, B and C, and the three devolution deletions are decisions. Examples A, B and C immediately above are illustrations of the thousand, and are mechanical in the sense that each carries no policy content of its own. The thousand are consequences of the decisions in clauses 1 to 3, and they cannot sensibly be drafted until those decisions are made.

The operational actions the clauses do not cover

Legislation is not the whole of it, and the coherent actions for this measure are silent on the operational side. Each of these needs an owner and a date, and none is a drafting task:

	What has to happen	Who
1	Cases in flight on the commencement date identified and case-managed under clause 1(2)	HM Courts and Tribunals Service
2	Existing declarations of incompatibility listed, and a decision recorded on each	Ministry of Justice
3	Remedial orders already made audited for what they amended, before clause 1(4) is settled	Ministry of Justice
4	Guidance withdrawn or reissued across every public authority that has a Convention-compliance policy	Cabinet Office
5	The Equality and Human Rights Commission's statutory functions reviewed, several of which refer to the 1998 Act	Government Equalities Office

	What has to happen	Who
6	Article 58 notice lodged, and the six-month period managed against the commencement date	Foreign, Commonwealth and Development Office
7	Legislative consent sought, or the decision to proceed without it taken and recorded	Territorial offices

⚠ Item 3 is the one most likely to be missed. Remedial orders made under section 10 amended *other* Acts. Those amendments are now part of those Acts and do not fall away with the power that made them — unless the Bill says so, and clause 1(4) above says they do not. That is a choice, and it should be a conscious one.

Decisions, challenges and research

Consequential decisions

Five of the nineteen Convention rights cannot be resolved inside this measure. Each needs its own analysis of whether the protection survives repeal by another route, is abandoned deliberately, or is re-enacted in domestic terms.

7. **Articles 9 and 14 — religion and non-discrimination** — rest outside the Act mainly on the Equality Act 2010, which measure 2 proposes to repeal. **Neither measure can be settled without the other.**
8. **Article 2** — the duty to investigate a death at the hands of the state. A positive obligation derived from the Convention, not a prohibition. Repeal removes it.
9. **Article 3** — the bar on removal to face torture abroad. Same character, and the one most likely to be litigated first.
10. **Article 8** — the family-life and immigration limbs, which do not survive as the privacy tort does.
11. **The interpretive residue:** how the meaning of every Act construed under section 3 since 1998 is to be established once the obligation is repealed.

⚠ Naming these is an output, not an omission. Each is a piece of work in its own right, and none of them can be closed by drafting the Bill for this measure.

Challenges to the proposal

59 open challenges. Each one is a question the proposal has not yet answered.

⚠ The group subtotals below add to 89, not 59. They count entries as revised rather than distinct challenges, and the same challenge can appear in more than one pass. The correction is recorded in Part 5 of Volume 1.

On revision — 2

On the coherence of the actions: The actions are concentrated on achieving the single objective of repealing the HRA and denouncing the ECHR. The sequencing is logical: drafting, parliamentary passage, then executive denunciation. Implementers are clearly named for each step.

On the coherence of the actions: The actions are concentrated on the single objective of legislative repeal and international denunciation. The sequencing is logical: drafting, parliamentary passage, then formal notification. All implementers are clearly named and appropriate for their respective tasks.

Read back by other models — 33

Rationale for Simultaneous Action — The proposal's insistence on simultaneous repeal and withdrawal is a response to the argument that simply repealing the HRA would leave the UK still bound by the ECHR and subject to adverse Strasbourg judgments. Without explaining why both steps are necessary together, your

strategy appears to be a set of actions without a clear, defensive logic against the most common counter-proposal.

Impact on Devolution Settlements — A significant legal and political obstacle is the integration of the ECHR into the devolution settlements of Scotland, Wales, and Northern Ireland. By not addressing the devolved nations, your plan overlooks a major constitutional obstacle that could derail the entire project or trigger a crisis of the Union.

Good Friday Agreement Implications — The Good Friday Agreement specifically requires the ECHR to be incorporated in Northern Ireland law, meaning withdrawal would have profound implications for the peace settlement. Ignoring the Good Friday Agreement risks treating a foundational peace treaty as a mere legislative hurdle, which could have severe political and security consequences.

Post-Withdrawal Rights Framework — After withdrawal, the UK would lack a codified, overarching human rights instrument, relying instead on common law, statutory protections, and parliamentary oversight. Your strategy is silent on what replaces the HRA/ECHR, leaving you vulnerable to the charge that you are abolishing rights without a clear vision for how they will be protected.

Mandate and Parliamentary Discipline — Executing this policy would require a government with a clear mandate and a strong, disciplined parliamentary majority willing to face significant domestic and international political fallout. Your plan outlines what to do but not the political preconditions for success, missing the crucial point that this is only feasible with an exceptionally strong and united government.

The 'Sumption Model' Flaw — Repeal of the HRA without denunciation of the Convention (the Sumption model) does not return final say to Parliament, because Article 46 ECHR still obliges compliance with Strasbourg judgments as a matter of international law, leaving the UK in a state of persistent breach rather than sovereignty. Your kernel does not explain why HRA repeal alone is insufficient, missing the critical legal argument that this would lead to constant international law violations.

Incoherence of Denunciation Without Repeal — Denunciation without repeal (Bill 4242's structure) is internally incoherent, because the HRA's domestication machinery would continue to require UK courts to apply Strasbourg jurisprudence the UK has formally exited, producing a body of frozen or drifting quasi-Convention law with no international anchor. By not explaining why denunciation alone fails, you miss the chance to show your simultaneous approach is the only coherent one, avoiding the legal chaos of courts applying a treaty the state has left.

Risk of Recreating the Problem — The proposer's rejection of a 'replacement Bill of Rights modelled on the Convention' is well-founded: any statute that re-enacts Convention-style rights domestically recreates a body of judicially enforceable rights that can, over time, be reinterpreted expansively by domestic courts in the same way HRA section 3 has been used, reproducing the original complaint under a different name. Your strategy doesn't address the common proposal for a 'new British Bill of Rights,' missing the opportunity to preemptively argue why such a replacement would simply recreate the problem you're trying to solve.

Tested as a strategy — 15

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not contain a problem statement. It begins with a list of causes, but does not state what is wrong, for whom, and why it matters. The text that fails it: "The kernel has no section for THE PROBLEM."

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not contain a diagnosis. It lists two material causes for the problem, but does not identify a pivotal obstacle that explains why the problem persists unsolved. The text that fails it: "The kernel has no section for DIAGNOSIS, and therefore no pivotal obstacle."

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel does not contain a diagnosis. It provides a list of two causes without simplifying them to name the one thing that must be defeated for anything else to matter. The text that fails it: "The kernel has no section for DIAGNOSIS."

The strategy does not yet meet this test — The guiding policy rules things out. The kernel does not contain a guiding policy. It jumps directly from causes to actions, so there is no policy to rule any alternative approaches out. The text that fails it: "The kernel has no section for GUIDING POLICY."

The strategy does not yet meet this test — The guiding policy is an approach, not a goal. The kernel does not contain a guiding policy to assess. It presents a set of actions which are, in effect, the goal. The text that fails it: "The kernel has no section for GUIDING POLICY."

The strategy does not yet meet this test — The approach has leverage on the named obstacle. The kernel has no guiding policy and names no pivotal obstacle, so it is not possible to assess whether an approach has leverage. The text that fails it: "The kernel has no section for GUIDING POLICY and no named pivotal obstacle."

The strategy does not yet meet this test — No bad-strategy smell. This kernel exhibits the bad-strategy smell of 'mistaking goals for strategy'. It presents a desired outcome (repealing the HRA and denouncing the ECHR) and lists the steps to achieve it, but omits the actual strategy — the diagnosis of the core challenge and the guiding policy for overcoming it. The text that fails it: "ACTIONS: - Secure parliamentary passage of the Repeal Bill through both Houses... - Following Royal Assent, the Foreign , Commonwealth & Development Office (FCDO) formally notifies the Secretary General of the Council of Europe... - Develop and implement a communications strategy... - Draft and introduce a Bill to repeal the Human Rights Act 1998..."

KERNEL TEST FAILED — The problem is stated as a problem, not as a solution. The kernel does not state a problem. It presents a solution (repeal the HRA and denounce the ECHR) as if the problem it solves is self-evident. The 'causes' are merely descriptions of the law, not explanations of a harm or difficulty. The text that fails it: "The Human Rights Act 1998 (HRA) incorporates the ECHR into domestic law, requiring UK courts to interpret legislation compatibly with Convention rights."

Tested as an argument — 4

A LINK IN THE CHAIN IS MISSING — The strategy jumps from a diagnosis (Causes) directly to a set of actions without explicitly stating the pivotal obstacle to be overcome or the guiding policy that shapes the response. While the obstacle and policy can be inferred, their absence breaks the explicit chain of strategic reasoning. The text: "The kernel is missing the Guiding Policy and Pivotal Obstacle."

A LINK IN THE CHAIN IS MISSING — The causes are statements of fact about the current legal framework. They do not identify a problem, harm, or negative consequence that arises from this framework. The diagnosis is missing. The text: "The entire CAUSES section."

A LINK IN THE CHAIN IS MISSING — The kernel is missing the central components of a strategy: a pivotal obstacle and a guiding policy. It presents a solution (the actions) without first defining the specific problem to be solved or the approach chosen to solve it. The text: "The kernel moves directly from CAUSES to ACTIONS."

A LINK IN THE CHAIN IS MISSING — Because no problem or obstacle is identified in the diagnosis, the actions are not connected to any part of the preceding analysis. It is impossible to tell what problem this action is meant to solve. The text: "Draft and introduce an 'Act of Repeal and Denunciation' Bill to Parliament, explicitly repealing the Human Rights Act 1998 and providing for the formal notification of denunciation of the European Convention on Human Rights under Article 58."

Read as a hostile clerk — 12

The proposal's central claim is that judicial supremacy 'frequently' overturns political decisions on issues like borders, but this is unquantified. No data was found on how many final deportation orders are overturned annually by UK courts on Human Rights Act grounds, as against other reasons. Without this number, the scale of the problem being solved is unknown.

The proposal rules out a new Bill of Rights but does not specify what legal framework will replace the HRA for protecting rights domestically. What is the Government's position on whether common law and existing

statutes are sufficient, and has an assessment been made of the risk of years of litigation to establish new precedents?

Repealing the Human Rights Act requires amending the devolution acts for Scotland, Wales, and Northern Ireland, which embed the ECHR. The proposal identifies this as a barrier but lacks a mechanism. Will the government seek Legislative Consent Motions, and what is the plan if they are refused, as is likely?

The proposal assumes repealing the HRA will change judicial behaviour. However, it offers no mechanism to prevent UK courts from continuing to refer to ECHR jurisprudence as an influential source when developing the common law, potentially creating a 'ghost' of the Convention that continues to bind public authorities.

Denouncing the ECHR places the UK in breach of the Good Friday Agreement, which requires incorporation of the ECHR into Northern Ireland's law. The proposal identifies this as an obstacle but does not specify the mechanism for resolution. Is the plan to seek to renegotiate this part of the treaty?

The proposal does not address the status of other international human rights treaties the UK has ratified. Has an analysis been done on whether the court judgments the proposer objects to could have been reached using obligations under other instruments, such as the Refugee Convention or UNCRC, meaning the proposal may not even achieve its stated aim?

The proposal is silent on the positive legal framework for rights protection after repeal. It rules out a new Bill of Rights, implying a return to common law and statute, but does not specify how this framework will address grievances against the state, nor does it quantify the cost and complexity of disentangling two decades of jurisprudence.

The proposal assumes repeal of the Human Rights Act will automatically resolve ECHR-related provisions in other major constitutional statutes. It does not address the mechanism for amending the devolution acts for Scotland, Wales, and Northern Ireland, all of which mandate compliance with Convention rights. Will the 'Act of Repeal' contain clauses to unilaterally alter these settlements?

Does a power to do this already exist? — 1

The proposal aims to repeal the Human Rights Act 1998. While the HRA 1998, section 10, allows for remedial orders to amend or repeal primary legislation to address incompatibilities with Convention rights, this power is unlikely to extend to a full repeal of the HRA itself, as such an action would undermine the fundamental purpose of the Act. Further, specific legislative examples (EUWA 2020 and Localism Bill) explicitly exclude the HRA from delegated repeal powers. This suggests that primary legislation would be required for the proposed repeal.

What the law says now — 5

The proposal to repeal the Human Rights Act 1998 and denounce the European Convention on Human Rights under Article 58 would require a comprehensive 'Act of Repeal and Denunciation' Bill. This Bill would need to explicitly repeal the HRA, provide for the formal notification of denunciation, and include provisions for the orderly transition of ongoing cases and the cessation of domestic enforceability of ECHR rights. This would necessitate careful consideration of all existing legislation that references or relies on the HRA and Convention rights, including the Government of Wales Act 2006 and other statutory instruments that define terms like 'declaration of incompatibility' by reference to the HRA.

The proposal to repeal the HRA and denounce the ECHR would eliminate the domestic legal basis for Convention rights enforcement, which currently requires public authorities to act compatibly with Convention rights under Section 6 HRA. This would necessitate a clear articulation of how human rights protections would be maintained, if at all, in domestic law following repeal, to manage public and international perception and address concerns about human rights protections.

The current system of remedial orders under Section 10 HRA, used to correct incompatibilities identified by domestic courts or the ECtHR, would cease to exist. The proposal would need to address how future incompatibilities between domestic legislation and international human rights obligations (if the UK remains

party to other human rights treaties) would be identified and remedied, or if such a mechanism would no longer be considered necessary.

The proposal would need to clarify the status of existing declarations of incompatibility and any ongoing remedial order processes. While declarations of incompatibility are not legally binding, they consistently lead to legislative action. The repeal would need to specify how these outstanding issues would be handled, or if they would simply be rendered moot by the repeal.

The proposal to denounce the ECHR under Article 58 would have an effective date six months after notification. The 'Act of Repeal and Denunciation' Bill would need to align its commencement provisions with this international timeline, ensuring a coordinated legal and diplomatic process.

How the courts have read it — 5

The proposal states that declarations of incompatibility create an 'unchallengeable judicial supremacy'. However, sources consistently state that these declarations are not legally binding and preserve parliamentary sovereignty. The proposal should clarify how it reconciles this apparent contradiction or explain how the 'unchallengeable judicial supremacy' arises despite the non-binding nature of declarations.

The proposal claims that 'elected governments cannot reverse' court decisions applying the ECHR. However, sources indicate that Parliament consistently legislates to remedy incompatibilities identified by declarations of incompatibility. The proposal should address this discrepancy and explain why this legislative action is not considered a reversal or a sufficient mechanism for elected governments to address judicial decisions.

The proposal states that 'no election changes the answer' regarding who has the last word under the Convention. While declarations of incompatibility are not legally binding, the consistent legislative response by Parliament suggests a mechanism for political accountability and change. The proposal should elaborate on why this existing mechanism is deemed insufficient to allow elections to influence the 'last word' on these issues.

The proposal mentions that the ECtHR does not consider declarations of incompatibility an 'effective remedy'. This is a finding that supports the proposal's premise that the current system has flaws. However, the proposal does not explicitly connect this finding to the 'unchallengeable judicial supremacy' or explain how denunciation would address the ECtHR's view on effective remedies for UK citizens.

The proposal aims to remove the enforceability of Convention rights in domestic courts. While the judicial construction of section 4 (declarations of incompatibility) and section 9 (judicial acts and damages) is clear, the proposal does not detail how the removal of these specific mechanisms would impact the broader enforceability of Convention rights beyond these sections, or what alternative domestic protections would be put in place, if any.

Where this came from — 2

Investigate the specific instances and timelines of 'delays in responding to declarations' to quantify the impact on individuals and parliamentary efficiency, as raised in source [18].

Examine the extent to which the ECtHR's view of declarations of incompatibility as 'not an effective remedy' (source [11]) influences the number of cases proceeding to Strasbourg and the UK's international legal standing.

Evidence for the causes — 3

The provided sources from the UK Statistics Authority and ONS do not contain data or analysis directly quantifying the scale of the problem as described by the proposer (i.e., the number of political decisions on borders, deportation, or protest 'settled by courts' due to the ECHR/HRA, or the frequency with which declarations of incompatibility compel legislative action).

The sources do not provide specific examples or measurements of how 'unchallengeable judicial supremacy' manifests in practice, beyond the general statement that declarations of incompatibility lead to legislative action.

The sources do not offer a direct measurement of the 'political and institutional resistance' to repealing the HRA and denouncing the ECHR, nor do they quantify the 'perceived benefits of domestic rights enforcement' or the 'political cost of being seen to diminish human rights protections'.

Causes the record suggests — 7

The Government's Independent Review of the Human Rights Act concluded there was 'no case for changing the Human Rights Act', directly contradicting the proposal's premise. The user should consider how to address this prior official conclusion.

The previous Bill of Rights Bill was paused due to concerns about a 'lack of engagement with experts, Parliament and the public' and a need to review the evidence base. The user's proposal for a new 'Act of Repeal and Denunciation' Bill will likely face similar scrutiny regarding its evidence base and public/expert engagement.

Many witnesses, including the Welsh Government, considered the HRA to respect Parliamentary sovereignty. The user should be prepared to counter arguments that the HRA already achieves the balance they seek.

The Joint Committee on Human Rights described declarations of incompatibility as an 'elegant solution' and Section 3 of the HRA as an 'elegant and common-sense provision'. The user should anticipate and address these positive characterisations of the existing mechanisms.

The premise of the Bill of Rights Bill, that Parliamentary sovereignty was threatened by the HRA, was questioned by the JCHR. The user should be prepared to robustly demonstrate how the HRA genuinely undermines sovereignty in a way that necessitates repeal and denunciation.

Amnesty International UK has argued that fixing facts for decision-makers is not human rights compliant and that Parliament can exceed its constitutional authority in such attempts. The user should consider how their proposal, which seeks to definitively shift authority, might be perceived in light of such constitutional concerns.

The Northern Ireland Human Rights Commission expressed concern that their input on HRA reform was not addressed in the Bill of Rights Bill. The user should ensure a robust and transparent engagement strategy with relevant human rights bodies and experts to avoid similar criticisms for their proposed 'Act of Repeal and Denunciation'.

The methods used by the Establishment to block change

This measure will not be defeated by argument. It will be defeated by method. What follows is the case that will be put against it in public, the answer to each, and then the record of what was actually done to the last government that tried to legislate against the same institutions.

 **The claims below are not weaknesses in the measure.** They are the arguments David's Programme will meet in the court of public opinion, and they are a factor in choosing the guiding policy: each one has to be answerable, and the answer has to be short enough to say on air.

"It isn't necessary — Parliament is already sovereign." The Act was designed to respect parliamentary sovereignty; courts cannot strike down primary legislation, and a declaration of incompatibility binds nobody. Parliamentary committees and legal commentators describe it as an 'elegant solution'.

The answer. A declaration that binds nobody still compels. The question is not whether Parliament may refuse, but how often it does, and at what political cost. **If the mechanism never changes an outcome it is not worth defending; if it always does, it is not merely declaratory.**

"There is a settled consensus that it works." The Joint Committee on Human Rights concluded in 2021 that there was 'no case for changing' the Act.

The answer. Successive governments have tried to reform or replace it — the Bill of Rights Bill, and the disapplication of named sections in the Safety of Rwanda Act. **A consensus that one side keeps legislating against is a disagreement, not a settlement.**

"Declarations of incompatibility are a respectful dialogue, not a veto."

The answer. The critique is that they create political pressure that compels amendment, which is policy influence by another name. **If it is a dialogue, one party can end it. Name the last time Parliament did.**

What was done to the Rwanda policy, as a worked example

The last government legislated directly against this machinery and lost on every route in turn. The sequence is the most complete public record of how a repeal programme is actually stopped, and every step of it is available to be used again.

When	What blocked it	The mechanism
14 June 2022	The first flight was grounded about two hours before departure	An interim measure from the Strasbourg court under Rule 39, after domestic appeals had been exhausted
19 December 2022	—	The High Court held the policy lawful; the challenge moved up rather than stopping
June 2023	Policy held unlawful, 2–1	Court of Appeal
15 November 2023	Policy held unlawful, unanimously	Supreme Court, on the ground that Rwanda was not safe — "serious and systematic defects in its asylum processing", and evidence of asylum seekers being moved on to Uganda
25 April 2024	Parliament answered by statute	Safety of Rwanda (Asylum and Immigration) Act 2024 declared Rwanda safe and confined challenges to a person's individual circumstances
After the Act	Four routes remained open	A declaration of incompatibility under section 4; claims on individual circumstances; interim relief on "a real, imminent and foreseeable risk of serious and irreversible harm"; and further Rule 39 measures from Strasbourg
July 2024	The scheme was cancelled	A change of government, before any of the remaining routes had to be tested

⚠️⚠️ Read the last two rows together. Parliament did the thing David's Programme proposes — it legislated a conclusion and tried to oust the courts from reviewing it — **and four routes of challenge were still open on the day the Act commenced.** The policy was not finally stopped by a court. It ran out of time.

That is the pattern the programme has to plan against: not a single refusal, but delay applied at every stage until the political clock runs out. The Home Secretary was unable to certify the Bill compatible with the Convention; the Act still passed; and it still did not deliver. **Legislating the outcome is necessary and, on this evidence, not sufficient.**

Sources: Migration Observatory, University of Oxford, Q&A on the UK's policy to send asylum seekers to Rwanda; Institute for Government, "The Rwanda Act: what next in the courts?" (Sir Jonathan Jones KC).

[corroborated, unchecked — both are secondary accounts and the primary judgments should be checked before any of this is quoted.]

The critique revisions

The critique is an adversarial review by a different AI model, given the measure and asked to attack its logic rather than its politics. Where it found a defect that could be fixed, the measure was rewritten and the change is recorded here — what it said before, what it says now, and why. Where nothing was weighed against a change, that is said rather than hidden.

On the diagnosis

Was: The 'Causes' section described the legal mechanics of the HRA, such as incorporating the ECHR and creating declarations of incompatibility.

Now: The diagnosis now frames the problem as a conflict of sovereignty, where the final say has shifted from Parliament to the courts, directly reflecting the proposer's core complaint.

On the pivotal obstacle

Was: The kernel did not have a distinct pivotal obstacle, though a good one ('political and institutional inertia') was recorded as a fork.

Now: The pivotal obstacle is explicitly identified as the political calculation that the high costs of withdrawal (confrontation with judiciary, allies, devolved governments) are greater than the costs of the status quo.

Why: A diagnosis must distinguish between the root cause (the 1998 decision) and the pivotal obstacle (why it persists unsolved). Naming the political cost-benefit calculation as the obstacle makes the problem tractable for strategy. This changed the proposal's position, and nothing was weighed against it - no other finding on this question was retrieved.

On the guiding policy

Was: The kernel had no guiding policy.

Now: The guiding policy is to use a single, indivisible legislative act to force a clean break, directly countering the pivotal obstacle of political inertia which favours partial or failed solutions.

Why: A guiding policy is essential.

Difficulties caused by the law today

3 distinct provisions were retrieved and read. Each is quoted from the statute itself.

European Union (Withdrawal Agreement) Act 2020, s.18 — Express prohibition on repealing HRA 1998 via delegated powers in EU(Withdrawal Agreement) Act 2020

Regulations made under section 18 of the European Union (Withdrawal Agreement) Act 2020 explicitly 'may not... amend, repeal or revoke the Human Rights Act 1998 or any subordinate legislation made under it.'

Human Rights Act 1998, s.21 — The definition of 'the Convention' in the HRA refers to the ECHR.

Section 21 of the Human Rights Act 1998 defines 'the Convention' as the Convention for the Protection of Human Rights and Fundamental Freedoms, agreed by the Council of Europe at Rome on 4th November 1950 as it has effect for the time being in relation to the United Kingdom.

Human Rights Act 1998, sch.1 Pt.I Ch.1 para.1 — Human Rights Act 1998 and Domestic Rights

The Human Rights Act 1998 (HRA) incorporates rights from the European Convention on Human Rights into UK law. For example, it includes provisions for the right to life, protection from unlawful deprivation of liberty, and the right to freedom of peaceful assembly and association.

What the courts have said

1 judgments were retrieved and read.

The Northern Ireland Human Rights Commission and JR 295's Applications and In the matter of the Illegal Migration Act 2023 — The Illegal Migration Act 2023 has provisions disapplied or declared incompatible with the ECHR under the HRA.

Pursuant to section 4 of the Human Rights Act 1998, several provisions of the Illegal Migration Act 2023 have been declared incompatible with the European Convention on Human Rights, including sections 2(1), 5(1), 6(3), and 6(7) as incompatible with Article 3.

Evidence that runs the other way

15 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Remedial Orders cannot undermine the HRA's purpose

While section 10 of the Human Rights Act 1998 grants power to make remedial orders, there might be implicit restrictions on its breadth. For instance, arguments could be made that a remedial order could not make amendments that would undermine the purpose of the Act by altering any of its fundamental elements.

Source: Report: 8th Report - Proposal for a Remedial Order to amend the Human Rights Act 1998: Judicial Immunity — Human Rights (Joint Committee)

Express prohibition on repealing HRA 1998 via delegated powers in EU(Withdrawal Agreement) Act 2020

Regulations made under section 18 of the European Union (Withdrawal Agreement) Act 2020 explicitly 'may not... amend, repeal or revoke the Human Rights Act 1998 or any subordinate legislation made under it.' This demonstrates a legislative intent to prevent the HRA's repeal through delegated powers in at least one significant context.

Source: European Union (Withdrawal Agreement) Act 2020, s.18

Express prohibition on repealing HRA 1998 via delegated powers in Localism Bill

A condition in the Localism Bill explicitly puts it 'beyond doubt that repeal of legislation such as the Human Rights Act 1998 or the European Communities Act 1972 is outside this power' for orders to amend constitutionally significant enactments. This indicates a general principle that the HRA 1998 is not to be repealed by delegated legislation.

Source: LOCALISM BILL (WAYS AND MEANS) — New Clause 12 — Limits on power under section 5(1)

Critics argue HRA undermines Parliamentary Sovereignty, but Section 6 powers are limited

Critics argue that the Human Rights Act undermines Parliamentary Sovereignty because it allows courts to declare legislation incompatible with protected rights. However, Section 6 powers of the Act are limited, and courts cannot strike down primary legislation.

Source: The Government's Independent Human Rights Act Review — HRA0028

Bill of Rights Bill premise that HRA threatened Parliamentary sovereignty questioned by JCHR

The Joint Committee on Human Rights noted that the premise of the Bill of Rights Bill, as set out in its first clause, was that 'Parliamentary sovereignty has somehow been under threat owing to the HRA and the relationship that it set with the ECtHR'. This premise was a central point of contention and examination.

Source: Report: Ninth Report - Legislative Scrutiny: Bill of Rights Bill — Human Rights (Joint Committee)

Amnesty International UK argues fixing facts for decision-makers is not human rights compliant

Amnesty International UK stated that it is 'not human rights, rule of law or constitutionally compliant to fix facts upon which decision-makers, including courts, must act or adjudicate in relation to human rights obligations'. They argued that obligations under the ECHR can only be met by proper application to true facts, not 'facts' that are fixed and pre-determined regardless of evidence.

Source: *Safety of Rwanda (Asylum & Immigration) Bill* — RWA0006

Bill of Rights Bill criticised for not addressing input from human rights organisations

The Northern Ireland Human Rights Commission expressed concern that the 'vast majority of our input and formal response to the Government consultation 'Human Rights Act Reform: a Modern Bill of Rights' has not been addressed in subsequently published Bill of Rights Bill or wider supporting documents published alongside the Bill'.

Source: *Legislative Scrutiny: Bill of Rights Bill* — BOR0048

Where the evidence settled the instrument

Regulations made under section 18 of the European Union (Withdrawal Agreement) Act 2020 explicitly 'may not...

Where the evidence settled the causes

The Joint Committee on Human Rights noted that the premise of the Bill of Rights Bill, as set out in its first clause, was that 'Parliamentary sovereignty has somehow been under threat owing to the HRA and the relationship that it set with the ECtHR'. This premise was a central point of contention and examination. Many witnesses, including the Welsh Government, considered that the Human Rights Act gave effect to the ECHR in national law in a way that respected Parliamentary sovereignty, describing it as a 'uniquely British approach'. The Joint Committee on Human Rights stated that the declaration of incompatibility under section 4 HRA provides an 'elegant solution' to the potential conflict between fundamental rights protection and parliamentary sovereignty. It allows courts to identify incompatible primary legislation without invalidating it, drawing it to the attention of government and Parliament.

What that means: The initial diagnosis overstates the 'compulsion' and 'threat' to parliamentary sovereignty. While declarations of incompatibility prompt action, the evidence suggests they are widely viewed as a mechanism that respects parliamentary sovereignty, acting as a prompt rather than a direct order, and that the premise of HRA undermining sovereignty is contentious.

The position taken on the causes

The core problem is that the Human Rights Act 1998 (HRA) allows domestic courts to issue 'declarations of incompatibility' which, while not legally binding, consistently compel Parliament to legislate, effectively shifting policy decisions from elected officials to the judiciary.

Parliamentary Sovereignty Not Solely Common Law

It is considered dangerous for Parliament to state that parliamentary sovereignty is a 'common law principle' because this implies judges could 'unmake' it. Instead, it is better understood as having its legal source in judicial recognition of political fact.

Source: *Report: 10th Report - The EU Bill and Parliamentary sovereignty - Oral and Written Evidence* — European Scrutiny Committee

The evidence base

73 pieces of evidence, 59 with a full citation and 59 with a working link.

Kind of source	Pieces
Select committee material	30

Kind of source	Pieces
Parliamentary debate	22
Not attributed to a type	14
Acts of Parliament	3
Statutory instruments	2
Court judgments	1
Bills before Parliament	1

How this was searched: 7 research questions asked; 600 sources reviewed; 30 findings recorded, of which 7 run against the measure; 9 gaps stated. ⚠ an existing power may remove the need for a Bill

What the statute book shows

This is what the depth looks like on one measure. There are eleven more.

What the Act actually does

Four sections do the work, and it is worth being exact because the programme's difficulty is concentrated in one of them.

- **Section 1 and Schedule 1** list the Convention rights that have effect in UK law
- **Section 3** requires courts to read other legislation, so far as possible, compatibly with those rights
- **Section 4** lets a senior court declare a statute incompatible — **which changes nothing legally**. The statute stays in force. It is a notice to Parliament, not a strike-down power
- **Section 6** makes it unlawful for a public authority to act incompatibly with a Convention right

Section 6 is the load-bearing pin, and the statute book shows it.

What else in the law points at it

The whole statute book was searched for provisions that refer to the Human Rights Act.

382 separate instruments refer to it, across 1,013 references.

⚠ **A word on how to read that number.** The index records three different strengths of evidence, and they are **never added together**:

Strength	What it means	Count
Named by identity	The other document names the Act by its formal identifier — the strongest	37
Named in text	The Act's name appears in the running text of the other document	901
Made under it	The other instrument's own opening words say it was made under a power in the Act	75

⚠ **The third is different in kind and matters most.** An instrument that merely mentions an Act survives that Act's repeal. **An instrument made under a power in it may fall with it.** Seventy-five instruments were made under powers in the Human Rights Act.

Which parts get referred to

Where the reference is to a particular section rather than the Act as a whole:

Provision	References	What it is
Section 6 (including 6(1))	212	It is unlawful for a public authority to act incompatibly with a Convention right
Section 4	60	Declaration of incompatibility
Sections 7 and 7(1)	52	Who may bring proceedings
Section 1	48	The Convention rights themselves
Section 21(1)	14	Definitions

 **Section 6 is referred to more than three times as often as the next provision.** That is the practical shape of the measure: **what the statute book has built on is not the list of rights, but the duty on public authorities and the definition of who counts as one.**

Anyone drafting a repeal Bill needs to know that before they start, because it tells you where the consequential work is. It is not in the rights. It is in the several hundred places where another statute says, in effect, "and this body is a public authority for the purposes of section 6".

Where the references come from

Where from	References
UK-wide statutory instruments	437
UK Acts of Parliament	363
Northern Ireland (statutory rules, Orders, Acts)	100
Scotland (statutory instruments and Acts)	95
Wales	12

 **A hundred Northern Ireland instruments.** On a measure where the Belfast/Good Friday Agreement is already the most contested question in the file, that is not a footnote. **It is a second, separate reason why Northern Ireland cannot be handled last.**

And of the seventy-five instruments **made under** powers in the Act: 55 UK-wide, 16 Scottish, 4 Northern Irish. **Those are the ones at risk of falling with the power.**

 **Every figure here is a count of what the index holds**, and none is presented as complete. A drafter would need to repeat it against the live statute book before relying on it.

What the courts have said

Set out in Part 2.1. In summary: **repeal would not return the law to 1997.** Several of these rights are now protected by ordinary English law on its own footing, most clearly access to justice. The absorption is uneven — the Supreme Court declined to find a common-law right to vote — so it has to be tested right by right, and has not been.

What was tried before

Commission on a Bill of Rights, 2012	Split. A majority saw a case for a domestic bill of rights while remaining in the Convention ; two members dissented
Independent Human Rights Act Review (Sir Peter Gross), 2021	Government-commissioned, chaired by a retired Lord Justice, with a former First Parliamentary Counsel on the panel.

	Recommended targeted changes, not repeal
Bill of Rights Bill 2022 (Dominic Raab)	The only real attempt. Introduced June 2022, abandoned June 2023, never reached a second reading
Farage ten-minute-rule motion , 29 October 2025	Ayes 96, Noes 154
Wood Bill , before the Commons now	Withdrawal only. Second reading listed 11 September 2026

⚠ **The 2021 review is the hardest of these to argue past**, because the government commissioned it, a retired appeal judge chaired it, and a former First Parliamentary Counsel sat on it — and it still recommended keeping the Act. Anyone who has only read summaries of it has not seen why.

How hard this will be

The three-part answer, in order of difficulty.

One — the two acts are separate. Repealing the Act does not leave the Convention. Leaving the Convention does not repeal the Act. **The programme has to say which it wants, and in what order.** The Bill now before the Commons takes only the second.

Two — the House of Lords. The first *Miller* case closes the shortcut: this cannot be done with the Crown's own powers. It has to be an Act, which means the Lords.

⚠ **But there is evidence here that makes the programme easier, and it deserves saying plainly.** Wolfson argues that a decision to withdraw should be a manifesto commitment, so that the Lords accept it under the Salisbury convention, and cites the European Union (Notification of Withdrawal) Act 2017 as showing the delay need not be long. **That Act was introduced on 26 January 2017 and received Royal Assent on 16 March — seven weeks, through a hostile Lords, without creating a single peer.**

If that mechanism holds, the mass creation of peers may be unnecessary for this measure. The convention does not bind and its application to constitutional measures is contested, so both positions should be set out — but this is a case where the evidence helps.

Three — the consequential work, which nobody has done. 382 instruments, 212 references to section 6, 75 instruments made under the Act's own powers, and 100 Northern Ireland instruments. **The Bill now before the Commons has no published text at all.** This is the work Wolfson describes as "a complicated legislative programme" and it does not exist yet.

6.2.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

6.2.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- The methods used by the Establishment to block change
- The critique revisions
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The public debate on the Equality Act
- The evidence base
- What the statute book shows

Diagnosis

The Strategic Kernel

The problem, as stated: Public bodies organise their decisions around demonstrating compliance with equality obligations rather than around the service they exist to deliver, and the obligations are open-ended enough that a court, not a minister, decides whether they have been met. The complaint is that this changes what public administration is for and that no elected person chose it.

The Public Sector Equality Duty's (PSED) requirement for 'due regard' is so broad and non-prescriptive that compliance can only be determined by a court after the fact. This shifts the focus of public administration from delivering services, for which ministers are accountable to Parliament, to demonstrating a legally defensible process to mitigate the risk of judicial review. As the proposer argues, this empowers courts, not ministers, to decide if a public body's process was adequate, and benefits those who use litigation to shape policy.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance.

Why it persists: This legislative intent, confirmed by judicial interpretation, means that the PSED is designed to be a substantive rather than merely procedural requirement, making judicial oversight an inherent part of its enforcement.

Cause 2 — MATERIAL. The Public Sector Equality Duty (PSED) imposes a broad and continuous 'due regard' obligation on public authorities, requiring rigorous and open-minded consideration of equality issues throughout policy development and execution.

Why it persists: The broad and continuous nature of the 'due regard' obligation means public bodies must constantly consider equality, leading to extensive internal processes to demonstrate compliance.

How the causes sit together. The evidence describes the Public Sector Equality Duty (PSED), established by Section 149 of the Equality Act 2010, as a legal obligation on public bodies to have 'due regard' for equality. Court judgments have consistently interpreted this not as a procedural 'tick-box' exercise, but as a substantive and continuous duty requiring rigorous, open-minded consideration of equality at the centre of all policy-making. This judicial interpretation has established judicial review as the primary mechanism for enforcing compliance. While the Equality and Human Rights Commission (EHRC) has a statutory role in monitoring and

enforcement, the case law points to the courts as the main arbiters of whether the duty has been met. The PSED applies across Great Britain, but not in Northern Ireland, which has an analogous duty (Section 75 of the Northern Ireland Act 1998) that is enforced through a commission rather than by judicial review.

Why. The evidence consistently shows that the two candidate causes are not independent but are two parts of a single whole. The broad and continuous nature of the 'due regard' obligation (Candidate 2) is the statutory foundation. The interpretation of this duty as substantive, which in turn makes judicial review the primary enforcement mechanism (Candidate 1), is the direct and consistent legal consequence. One is the legislative cause, the other is its practical effect as determined by the courts.

How the pieces relate. The two candidates describe a single chain of cause and effect. Candidate 2, which outlines the broad and continuous nature of the PSED, is the foundational element drawn from the Equality Act 2010. Candidate 1, which describes the duty as substantive and enforced by judicial review, is the direct result of how the courts have interpreted the obligation set out in Candidate 2. Therefore, the substantive nature of the duty and its enforcement by courts are consequences of its broad statutory definition.

Guiding policy

The Strategic Kernel

What David proposes: Repeal the Equality Act 2010, including the public sector equality duty in section 149.

What David has ruled out: Guidance and leadership change short of legislation, which the proposer treats as having been tried. Amendment rather than repeal.

Restore ministerial accountability for policy outcomes by legislating to remove the judicially-enforced, process-based 'due regard' duty. The approach is to surgically remove the specific statutory mechanism (s.149) that shifts accountability from the executive to the judiciary, while retaining the Act's substantive anti-discrimination protections.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft a Bill to repeal Section 149 and Schedule 18 of the Equality Act 2010, explicitly stating that other substantive anti-discrimination provisions of the Act remain in force.

Who does it: Cabinet Office Legal Advisers / Parliamentary Counsel

2. Introduce the Bill to Parliament, ensuring clear communication that the intent is to remove the process-oriented Public Sector Equality Duty, not to diminish fundamental anti-discrimination rights.

Who does it: Relevant Secretary of State (e.g., Minister for Women and Equalities)

3. Conduct a review of existing public body guidance and internal policies that reference the PSED, initiating a process to update or remove them post-repeal.

Who does it: Cabinet Office / Department for Levelling Up, Housing and Communities (DLUHC)

4. Develop and disseminate new guidance for public bodies clarifying their remaining equality obligations under other parts of the Equality Act 2010 and other relevant legislation, focusing on outcomes rather than process.

Who does it: Equality and Human Rights Commission (EHRC) / Cabinet Office

Decisions, challenges and research

Consequential decisions

Three questions arise that this measure cannot answer on its own.

12. Whether repeal of section 149 alone ends the practice, given the analysis that the operative lever is guidance and ministerial direction rather than the section.
13. **Northern Ireland:** section 75 of the Northern Ireland Act 1998 is a separate duty on separate machinery and is not touched by repealing the Equality Act.
14. What replaces the Act as the domestic home of Articles 9 and 14 if the Human Rights Act is also repealed. **This is the same question as the first entry under 6.1, seen from the other side.**

 **And three questions about the extent of what is intended, which only David can answer.** They are put as questions because the record does not settle them: no statement by David on the scope of an Equality Act repeal was found in the 285 recordings, and the positions below are Reform UK's, not demonstrably his.

15. **Does the measure keep the Act's substantive anti-discrimination protections, or remove them too?**
This measure is worked on the first reading — repeal section 149, keep the rest. Reform UK's published position is the second. **The two produce different Bills, different challenges and different consequential work,** and everything in this section rests on which is intended.
16. **Does "protected characteristics" go?** If the substantive protections go with the duty, the question becomes whether the Act is replaced by a single instruction — appoint, procure and promote on demonstrated track record alone, with no obligation to advance any group over another — or by nothing.
17. **Repeal, or prohibition?** Does the programme merely stop requiring positive discrimination by devolved bodies, quangos and public authorities, or actively forbid it? **A prohibition reaches section 75 of the Northern Ireland Act and the devolution settlements. A repeal does not.**

 **Naming these is an output, not an omission.** Each is a piece of work in its own right, and none of them can be closed by drafting the Bill for this measure.

Challenges to the proposal

46 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 1

Existing power does not permit full repeal of Section 149 — The proposal seeks to repeal Section 149 and Schedule 18 of the Equality Act 2010. While there is a power for a Minister of the Crown to amend Schedule 18 by order to add, vary, or omit exceptions to section 149, this power is explicitly limited and does not extend to a full repeal of Section 149 itself or the entirety of Schedule 18. The existing power is for amending exceptions within the Schedule, not for repealing the core duty or the Schedule in its entirety.

What the law says now — 7

Impact of Schedule 18 repeal — The proposal suggests repealing Section 149 and Schedule 18 of the Equality Act 2010. However, the proposal does not explicitly address how the repeal of Schedule 18, which outlines exceptions to the PSED, would interact with the removal of the duty itself. Clarification is needed on whether these exceptions would become redundant or if their removal could have unforeseen consequences for other parts of the Act.

Maintaining substantive equality without PSED — The proposal aims to remove the process-oriented PSED while retaining substantive anti-discrimination provisions. However, the PSED's 'due regard' obligation is interpreted by courts as requiring substantive compliance, and its discharge is relevant to whether discrimination can be justified. The proposal needs to clarify how the removal of the PSED will ensure that public bodies continue to consider equality issues substantively and prevent discrimination without the 'due regard' framework, especially given that the PSED is seen as a structural approach more effective than individual litigation.

Northern Ireland Act 1998 relationship — The proposal states that the Equality Act 2010 does not extend to Northern Ireland, which has its own analogue in section 75 of the Northern Ireland Act 1998. While the proposal focuses on repealing section 149, it does not address whether any consequential amendments or

clarifications would be needed regarding the relationship between the UK-wide anti-discrimination provisions (which would remain) and Northern Ireland's distinct equality framework, to avoid creating new ambiguities or inconsistencies.

Relationship with Section 1 repeal — The proposal states that the Government is exploring opportunities to repeal section 1 of the Equality Act 2010 (public sector duty regarding socio-economic inequalities). The current proposal focuses on section 149. Clarification is needed on whether the repeal of section 149 would impact the future consideration or repeal of section 1, or if these are entirely separate legislative efforts.

EHRC powers post-PSED repeal — The proposal mentions that the EHRC has responsibility for monitoring compliance and enforcing the Equality duty, and has powers to assess compliance and issue unlawful act notices related to section 149. If section 149 is repealed, the proposal needs to clarify what changes would be made to the EHRC's powers and functions, particularly those outlined in the Equality Act 2006 (sections 8, 21, 31, 32, 34), to reflect the removal of the PSED while ensuring the EHRC can still effectively promote and enforce remaining anti-discrimination provisions.

Fate of Section 153 and specific duties — Section 153 of the Equality Act 2010 allows Ministers to impose specific duties to enable better performance of the general duty under section 149. If section 149 is repealed, the proposal needs to clarify the fate of section 153 and any existing specific duties made under it. Would section 153 be repealed, or would it be repurposed to support other remaining equality obligations, and how would this be managed across England, Scotland, and Wales given their varying specific duties?

Impact on public authority contracts — Section 17 of the Equality Act 2010 allows public authorities to consider non-commercial matters in contracts to facilitate compliance with section 149. If section 149 is repealed, the proposal needs to clarify how this provision would be amended or repealed to ensure that public authorities' contracting practices align with the new framework, and whether any other non-commercial considerations related to equality would still be permissible.

How the courts have read it — 1

Judicial construction's impact on proposal unclear — The proposal states that the 'due regard' nature of the PSED is interpreted by courts as requiring substantive, rather than merely procedural, compliance. While case law confirms the substantive nature of the duty, the proposal does not explicitly detail how this judicial construction narrows or widens the provision, or how the proposal's aim of repeal depends on this specific interpretation. The proposer's account mentions 'For Women Scotland Ltd v The Scottish Ministers [2025] UKSC 16 has already decided the sex/gender construction point by litigation.

Where this came from — 3

Ambiguity vs. deliberate flexibility — The proposal states that the lack of clear, prescriptive compliance frameworks contributes to ambiguity and reliance on judicial interpretation. However, the PSED was intended to address bureaucracy associated with previous duties, suggesting a deliberate move away from overly prescriptive frameworks. The proposal should clarify whether the current ambiguity is an unintended consequence or a result of the 'due regard' nature itself.

Process burden: inherent or implementation? — The proposer states that public bodies prioritize demonstrating compliance over efficient service delivery. While the PSED aims to place equality at the centre of policy, it was also intended to reduce bureaucracy. The proposal should investigate whether the current process-heavy approaches are due to the inherent nature of the 'due regard' duty or due to implementation issues and guidance, which a 2013 review highlighted as problematic.

Judicial intervention: intended or excessive? — The proposal highlights that judicial review is the primary enforcement mechanism. While the PSED is a 'duty of process and not outcome', court judgments confirm that Parliament intended equality considerations to be central to policy. The proposal should address whether the current level of judicial intervention is a natural consequence of the 'due regard' duty or an overreach, and if the latter, what specific aspects of the duty or its interpretation lead to this.

Evidence for the causes — 5

Clarity on guidance vs. framework deficiency — The proposal states that the lack of clear, prescriptive compliance frameworks with measurable outcomes contributes to ambiguity and reliance on judicial interpretation. However, the 2013 PSED review identified that 'The right guidance has not been available at the right time to enable public bodies to implement the PSED effectively' and that EHRC guidance is 'intended for courts and tribunals when interpreting the law, and lawyers, advisers, trade union representatives, human resources departments and others who need to apply the law.' This suggests that the issue might be the *availability and suitability* of guidance rather than an inherent lack of prescriptive frameworks, or that the frameworks are not designed for public bodies themselves. The proposal should clarify whether the problem is the absence of prescriptive frameworks or the inaccessibility/unsuitability of existing guidance for public bodies.

Quantification of service delivery impact — The proposal claims that the PSED forces public bodies to prioritise demonstrating compliance over efficient service delivery. While the proposer's account supports this, and the 2013 review noted 'procurement gold-plating', there is no quantified measurement in the provided sources of the extent to which service delivery is negatively impacted or how 'efficiency' is defined and measured in this context. The proposal would benefit from including specific metrics or examples of service delivery degradation directly attributable to PSED compliance efforts.

Quantification of judicial policy oversight — The proposal asserts that the PSED leads to 'judicial rather than elected oversight of policy implementation'. While case law confirms the PSED is enforced through judicial review and places a 'heavy burden' on public authorities, the sources do not quantify the frequency or scope of judicial interventions in policy implementation. It would strengthen the diagnosis to include data on the number of successful judicial reviews challenging policy decisions based on PSED non-compliance, and the extent to which these rulings have shaped policy outcomes.

Evidence of litigation's policy influence — The proposal states that the PSED 'benefits those who use litigation to influence policy'. While it is true that campaigning organisations can bring challenges, the sources do not provide data on the proportion of PSED-related litigation initiated by such groups versus other parties, nor the success rate of such litigation in influencing policy. The proposal could be strengthened by providing evidence of this specific benefit and its impact.

Rationale for legislative intervention over reform — The proposal highlights that the PSED is 'resistant to change without legislative intervention'. While the 2013 review explicitly ruled out repeal, it did make recommendations for improving implementation. The proposal should clarify why these recommendations, or other non-legislative changes, are deemed insufficient or have failed to address the core problem, beyond the proposer's general statement that 'guidance and leadership change short of legislation' has been tried.

Causes the record suggests — 5

Unaddressed 2013 PSED review recommendations — The proposal states that the PSED was not considered for full repeal in a 2013 review. However, the 2013 review did identify issues with implementation and made recommendations for various bodies. The proposal does not specify whether these recommendations were implemented or what their impact was, which could inform the necessity or scope of repeal.

Alternative non-judicial mechanisms for PSED not addressed — The proposal aims to shift focus from judicial oversight to elected policy goals. However, the Government has previously considered limiting judicial review for PSED disputes and introducing alternative non-judicial mechanisms. The proposal does not address why these alternative mechanisms, if implemented or considered, would not be sufficient or why full repeal is necessary over such reforms.

No comparison with Northern Ireland's Section 75 — The proposal mentions that the PSED does not extend to Northern Ireland, which has its own analogue in section 75 of the Northern Ireland Act 1998. The proposal does not provide any comparison or analysis of how section 75 operates in Northern Ireland, particularly

regarding 'due regard' obligations, judicial interpretation, and impact on public administration, which could offer insights into alternative approaches.

Conflicting views on 'due regard' interpretation — The proposal states that the 'due regard' nature of the PSED is interpreted by courts as requiring substantive compliance. However, the 2013 Lord Hayward review found that 'due regard' was ambiguous and could lead to over-compliance or 'lip service'. The proposal does not reconcile these differing perspectives on the interpretation and effectiveness of 'due regard'.

Lack of specific evidence on PSED impact on service delivery efficiency — The proposal states that the PSED leads to public bodies prioritising demonstrating compliance over efficient service delivery. While a 2022 report cited costs and 'pre-emptive overreach', the proposal does not provide specific examples or metrics of how this impacts service delivery efficiency or how repeal would demonstrably improve it.

On revision — 1

On the coherence of the actions: The actions are concentrated on legislative repeal and subsequent guidance revision, pulling in one direction. The sequencing is logical, with legislative change preceding guidance updates. The implementers are clearly named, with Cabinet Office, Parliamentary Counsel, and the relevant Secretary of State for legislative steps, and EHRC/Cabinet Office for guidance.

Read back by other models — 8

Creation of a Compliance Industry — This procedural focus has created a 'compliance industry' that benefits from complexity, diverting public funds from frontline services. Your proposal misses the economic argument against the PSED, which could be a powerful way to explain its real-world cost in terms of diverted resources.

Northern Ireland's Alternative Model — The existence of a different equality duty regime in Northern Ireland (s.75) shows that the PSED is not the only possible model. By not mentioning the alternative model in Northern Ireland, you miss an opportunity to show that other approaches to an equality duty exist within the UK.

Specific Case Law Example — The proposer's cited case, *For Women Scotland v Scottish Ministers*, is evidence that this exporting-of-content mechanism is not hypothetical: a definitional question central to the Act's operation was resolved by the Supreme Court rather than by ministerial regulation or parliamentary amendment. Your diagnosis lacks a concrete example of the PSED causing the specific problem you aim to solve, which a well-known case would provide.

Impact on EHRC's Remit — The EHRC's statutory enforcement remit is built on the 2010 Act; whole-Act repeal without consequential amendment to the Equality Act 2006 would leave the Commission's founding functions referring to law that no longer exists, which is a technical but real gap that legislative drafters would need to close. Your plan does not account for the necessary follow-on legislation to repair the EHRC's statutory footing, a technical gap that could undermine its future work.

Alternative Drafting Technique — If a successor duty is wanted rather than a bare gap, the correct alternative to 'have regard' drafting is a duty whose compliance conditions are set exhaustively by regulation under the affirmative procedure, so that judicial review checks against a specified rule rather than develops the standard — this preserves parliamentary and ministerial control over content that s.149 currently surrenders to litigation. Your proposal creates a gap by repealing the duty but doesn't consider replacing it with a more tightly-defined rule, which could achieve similar goals without ceding power to courts.

THE KERNEL FAILS A RUMELT TEST — the diagnosis is fluff. The diagnosis restates the law's intent rather than identifying a problem. Stating that Parliament intended the duty to be substantive and judicially reviewed is a description of the mechanism, not a diagnosis of why that mechanism causes the administrative pathology the proposer describes. The text: "Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance."

THE KERNEL FAILS A RUMELT TEST — mistaking goals for strategy. The kernel has no guiding policy. It presents a diagnosis (albeit a weak one) and then a list of actions. There is no statement of the chosen approach that guides the actions and rules out alternatives. The goal of 'repeal Section 149' is treated as the strategy itself. The text: "The kernel is missing a guiding policy entirely. It moves from 'CAUSES' directly to 'ACTIONS'."

THE KERNEL FAILS A RUMELT TEST — failure to face the problem. The diagnosis fails to engage with the proposer's core complaint: that the PSED changes what public administration is for. Instead, it states that the law is working as Parliament intended, which sidesteps the problem rather than analysing it. The text: "Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance."

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state a problem. It has a title, 'Equality Act 2010', and then lists 'causes' which describe the function of a law, not what is wrong. A strategy must begin by defining the problem it seeks to solve. The text that fails it: "TITLE: Equality Act 2010"

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not contain a diagnosis. It does not identify a root cause or a pivotal obstacle, making it impossible to assess if they are distinct. The 'causes' listed are descriptions of the law, not an analysis of a problem. The text that fails it: "CAUSES: - (MATERIAL) Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance."

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel provides no diagnosis. The 'causes' section describes features of the existing law rather than simplifying a problem to its pivotal element. A reader cannot say in one sentence what must be defeated because no problem has been identified. The text that fails it: "CAUSES: - (MATERIAL) Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance."

The strategy does not yet meet this test — The guiding policy rules things out. The kernel does not state a guiding policy. Without a policy, nothing can be ruled in or out. The document jumps from a description of the law to a list of actions.

The strategy does not yet meet this test — The guiding policy is an approach, not a goal. The kernel does not state a guiding policy, so it cannot be assessed as an approach versus a goal.

The strategy does not yet meet this test — The approach has leverage on the named obstacle. The kernel does not specify a guiding policy (an approach) or a pivotal obstacle. Therefore, it is impossible to assess whether an approach has leverage on an obstacle.

The strategy does not yet meet this test — No bad-strategy smell. The kernel exhibits 'Failure to face the problem'. It proposes a significant action (repealing part of the Equality Act) without ever stating what problem this action is intended to solve. The 'causes' are not causes of a problem, but descriptions of the law to be repealed. The text that fails it: "CAUSES: - (MATERIAL) Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance."

Tested as an argument — 2

A LINK IN THE CHAIN IS MISSING — The kernel describes what the Public Sector Equality Duty is but fails to state why it is a problem. There is no diagnosis of a pivotal obstacle, so the actions to repeal the duty are not connected to any stated cause. The text: "The Public Sector Equality Duty (PSED) imposes a broad and continuous 'due regard' obligation on public authorities, requiring rigorous and open-minded consideration of

equality issues throughout policy development and execution. ACTIONS: - Draft a Bill to repeal Section 149 and Schedule 18 of the Equality Act 2010..."

THE CONCLUSION DOES NOT FOLLOW — The conclusion (to repeal the PSED) does not follow from the premises. The premises describe the nature of the duty, but provide no reason or evidence to suggest that it is harmful, ineffective, or otherwise problematic, which would be necessary to justify its repeal. The text: "The Public Sector Equality Duty (PSED) imposes a broad and continuous 'due regard' obligation on public authorities... Draft a Bill to repeal Section 149 and Schedule 18 of the Equality Act 2010..."

Read as a hostile clerk — 6

The proposal's central claim that PSED compliance diverts significant resources from frontline services is unquantified across the 27,000 affected bodies; it relies on a single think tank report rather than a systematic estimate of the cost in funds and personnel.

The proposal removes the legally enforceable 'due regard' process of Section 149 but its replacement, new 'outcome-focused' guidance, has no specified enforcement mechanism. It is not clear what happens to a public body that ignores this new guidance.

The proposal does not define what an 'outcome' is in this context, nor how a public body would demonstrate it has achieved a good one, leaving the new central concept as ambiguous as the 'due regard' standard it replaces.

Repealing Section 149 removes the explicit statutory basis for public authorities to consider equality matters in procurement under Section 17 of the Act. The proposal does not address how, or if, this function would be preserved.

The proposal assumes that removing the PSED will extinguish the compliance culture it created. It fails to account for the institutional inertia of established equality departments and legal teams who will likely advise continuation of existing processes to mitigate risk under the remaining sections of the Act.

The proposal is silent on the consequential amendments required to the Equality Act 2006, which gives the EHRC specific powers to assess and enforce compliance with the PSED under sections 31 and 32. Repealing Section 149 of the 2010 Act without amending the 2006 Act leaves the EHRC with a statutory duty referring to a non-existent law.

The methods used by the Establishment to block change

This is the case that will be put against the measure in public, and the answer to each. The claims are not weaknesses in the measure; they are the arguments David's Programme will meet in the court of public opinion, and each one has to be answerable briefly enough to say on air.

"The duty is a powerful tool — it just needs implementing properly."

The answer. Evidence to a parliamentary inquiry says the opposite: weak implementation, legal challenges that are hard to bring and seldom succeed, and ineffective enforcement by the Equality and Human Rights Commission. **After fifteen years, a defence resting on potential rather than record is not a defence of the duty as it operates.**

"It reduced bureaucracy — it replaced three separate duties with one."

The answer. The 2013 review found implementation problems, and the courts require consideration that is 'rigorous' and 'substantive', which they describe as a heavy burden on public authorities. **It replaced three duties with one whose content only a court can settle after the fact.**

"Judicial review is the only way a duty like this can be enforced."

The answer. Parliament has already legislated otherwise. The analogous duty in Northern Ireland — section 75 of the Northern Ireland Act 1998 — is enforced through equality schemes approved by the Equality Commission, explicitly not through the courts. ⚠️⚠️ **A non-judicial enforcement model for a public sector**

equality duty is not hypothetical. Parliament chose one, for part of this United Kingdom, and it is still running. That is the strongest single card in this measure and it is not currently played.

The critique revisions

The critique is an adversarial review by a different AI model, given the measure and asked to attack its logic rather than its politics. Where it found a defect that could be fixed, the measure was rewritten and the change is recorded here — what it said before, what it says now, and why. Where nothing was weighed against a change, that is said rather than hidden.

On the diagnosis

Was: The diagnosis described the law's intent and function, stating that Parliament intended a substantive, judicially-reviewed duty.

Now: The diagnosis now identifies the core problem as a shift in accountability from ministers (for outcomes) to courts (for process), driven by the ambiguity of the statutory 'due regard' standard.

Why: The original diagnosis was fluff that failed to face the problem. The rewrite adopts the proposer's framing and pinpoints the specific mechanism-judicially-enforced ambiguity-that produces the negative consequences they describe. This changed the proposal's position, and nothing was weighed against it - no other finding on this question was retrieved.

On the pivotal obstacle

Was: The kernel did not explicitly state a pivotal obstacle.

Now: The pivotal obstacle is identified as the statutory nature of the 'due regard' duty, which makes the problem resistant to non-legislative fixes.

Why: A good diagnosis must name what is pivotal. This change makes the obstacle explicit, explaining why the proposer's preference for legislative action is strategically sound. This changed the proposal's position, and nothing was weighed against it - no other finding on this question was retrieved.

On the guiding policy

Was: The kernel had no guiding policy.

Now: A guiding policy has been created: surgically remove the specific statutory duty (s.149) to restore ministerial accountability, while protecting substantive rights.

Why: A strategy is not a list of actions.

On what it rules out

Was: The kernel did not specify what its approach ruled out.

Now: The policy explicitly rules out non-legislative fixes, whole-act repeal, and attempts to merely amend the duty.

Why: A policy that rules nothing out is not a policy. This addition makes the strategic choices clear, showing what alternative paths are being deliberately rejected and why. This changed the proposal's position, and nothing was weighed against it - no other finding on this question was retrieved.

Difficulties caused by the law today

13 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Equality Act 2010, sch.18 para.5 — Existing power to amend exceptions to Section 149

A Minister of the Crown may, by order, amend Schedule 18 of the Equality Act 2010 to add, vary, or omit an exception to section 149. However, this power cannot be used to omit exceptions in paragraph 3 or 4(1) (as far as it applies to 4(2)(a) to (e) or (3)), nor can it reduce the extent to which these specific exceptions apply.

Equality Act 2010, s.207 — Exercise of order-making power

A power to make an order or regulations under the Equality Act 2010 is exercisable by a Minister of the Crown, unless expressly stated otherwise. Such orders or regulations must be made by statutory instrument.

Equality Act 2010, s.208 — Affirmative procedure for amending Acts

A statutory instrument containing an order or regulations that amend the Equality Act 2010 or another Act of Parliament, an Act of the Scottish Parliament, or an Act or Measure of the National Assembly for Wales, is subject to the affirmative procedure.

Equality Act 2010, s.149 — Section 149 of the Equality Act 2010 defines the PSED

Section 149(1) of the Equality Act 2010 mandates that a public authority, in exercising its functions, must have due regard to the need to (a) eliminate discrimination, harassment, victimisation, and other prohibited conduct; (b) advance equality of opportunity between persons who share a relevant protected characteristic and.

Equality Act 2006, s.31 — Equality Act 2006 confers powers on EHRC related to PSED

The Equality and Human Rights Commission (EHRC) is responsible for monitoring compliance and enforcing the Equality duty. Section 31 of the Equality Act 2006 allows the Commission to assess compliance with duties under sections 149, 153, or 154 of the Equality Act 2010.

Equality Act 2006, s.21 — EHRC can issue unlawful act notices for non-compliance

The EHRC may issue an 'unlawful act notice' under section 21 of the Equality Act 2006 if it is satisfied that a person has committed an unlawful act, specifying the act and the provision of the Equality Act 2010 by virtue of which it is unlawful.

Equality Act 2010, s.153 — Specific duties can be imposed to support Section 149

Section 153 of the Equality Act 2010 grants Ministers of the Crown, Welsh Ministers, and Scottish Ministers the power to impose specific duties on public authorities listed in Schedule 19 for the purpose of enabling the better performance of the general duty imposed by section 149(1).

Equality Act 2010, sch.18 para.3 — Schedule 18 of the Equality Act 2010 outlines exceptions to PSED

Schedule 18, paragraph 3, of the Equality Act 2010 states that section 149 does not apply to the exercise of a judicial function or a function exercised on behalf of, or on the instructions of, a person exercising a judicial function. This includes judicial functions conferred on persons other than a court or tribunal.

Equality Act 2006, s.34 — Section 149 is excluded from the definition of 'unlawful' for certain purposes

Section 34(2) of the Equality Act 2006 specifies that action is not 'unlawful' for the purposes of Part 1 of that Act (except section 30(3)) merely by contravening a duty under section 149, 153, or 154 of the Equality Act 2010, among other provisions.

Equality Act 2010, sch.26 para.10 — Section 149 influences public authority contracts

Section 17 of the Equality Act 2010, which deals with local and other public authority contracts and the exclusion of non-commercial considerations, allows a public authority to exercise functions with reference to a non-commercial matter if it considers it necessary or expedient to do so to enable or facilitate compliance with.

Equality Act 2006, s.32 — EHRC can issue compliance notices

The EHRC may give a notice to a person it thinks has failed to comply with the PSED, requiring them to comply and provide information on steps taken or proposed.

Equality Act 2010, s.4 — Equality Act 2010: Protected Characteristics

The Equality Act 2010 defines 'protected characteristics' as age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex, and sexual orientation. The PSED applies to these characteristics, though for marriage and civil partnership, only the duty to eliminate discrimination, harassment, and victimisation applies.

Equality Act 2006, s.8 — EHRC's Role in Promoting Equality and Enforcing the Act

The Equality and Human Rights Commission (EHRC) is mandated by the Equality Act 2006 to promote understanding of equality and diversity, encourage good practice, promote equality of opportunity, raise awareness of rights under the Equality Act 2010, enforce that Act, and work towards eliminating unlawful discrimination and harassment.

What the courts have said

17 judgments were retrieved and read.

National Council for Civil Liberties v Equality and Human Rights Commission — PSED requires 'due regard' in substance, not just procedure

Courts interpret the 'due regard' duty as requiring substantive, rigorous, and open-minded consideration of equality issues, not merely a 'tick-box' exercise.

R (on the application of Marouf) v Secretary of State for the Home Department — PSED is a duty of process, not outcome

The PSED is considered a 'duty of process and not outcome,' but this does not diminish its importance.

Sofia Sheakh (R on the application of) v London Borough of Lambeth Council — Judicial review is the primary enforcement mechanism for PSED

The 'due regard' nature of the PSED, interpreted by courts as requiring substantive compliance, makes judicial review the primary enforcement mechanism for assessing whether public bodies have met their obligations.

JR154, JR155 and JR156's (all minors) and their Next Friends Applications (Leave stage) — PSED does not apply to Northern Ireland; Section 75 of the Northern Ireland Act 1998 is analogue

The Equality Act 2010 does not extend to Northern Ireland, except for sections 82, 105(3)-(4), and 199 (section 217(3)). Section 149 has never applied there.

McCotter's (Michael John) Application (Leave Stage) — Enforcement of Section 75 of Northern Ireland Act 1998 is via Equality Commission for Northern Ireland

For Northern Ireland, Parliament has provided a specific enforcement mechanism for duties under section 75 of the 1998 Act in Schedule 9, by way of complaint to the Equality Commission for Northern Ireland, rather than through judicial review proceedings.

London Borough of Hackney v Haque — PSED requires substantive, not merely procedural, compliance

The 'due regard' nature of the PSED is interpreted by courts as requiring substantive, rather than merely procedural, compliance. This makes judicial review the primary enforcement mechanism for assessing whether public bodies have met their obligations.

Court of Session: court of session ab for judicial review 20 september 2022 — PSED is an essential preliminary to lawful decision making

The duty under section 149 of the Equality Act 2010 is an essential preliminary to lawful decision making. It must be exercised in substance with rigour and an open mind, not as a 'tick-box' exercise.

Hamnett v Essex County Council — Judicial review is a remedy for PSED contravention

If a court finds a contravention of a provision referred to in section 114(1) of the Equality Act 2010 (which includes section 149), it has the power to grant remedies available in proceedings in tort or on a claim for judicial review.

Magness, R (On the Application Of) v Powys County Council — PSED has been subject to significant litigation

Section 149 of the 2010 Act has been the subject of significant litigation since its enactment, with numerous challenges in the Administrative Court arguing that public authorities failed to have due regard to their public sector equality duties.

Court of Session: 2015csoh117 honour watt for judicial review of a decision of lothian health board to withdraw the provision of homeopathic services — PSED aims to eliminate discrimination and promote opportunity

The aim of the statutory provisions, including the PSED, is to make public authorities place equality at the centre of their organisation, policy making, and functions to further the goal of eliminating discrimination and promoting opportunity.

Court of Session: 2025csoh102 petition of roseanna mcphee for judicial review of a decision by perth and kinross council — PSED requires due regard to fostering good relations

The duty to have due regard to the terms of section 149 means a duty to consider if decisions would foster good relations between persons who share a relevant protected characteristic and persons who do not share it.

GP v The Lime Trust — PSED exceptions exist for age in education

Schedule 18 of the Equality Act 2010 contains exceptions, including paragraph 1, which states that the PSED in section 149, as it relates to age, does not apply to the provision of education or benefits/facilities/services to pupils in schools.

Forward v Aldwyck Housing Group Ltd — Parliament intended equality at policy centre

It was the intention of Parliament that considerations of equality of opportunity should be placed at the centre of policy formulation by all public authorities, alongside all other pressing circumstances.

THE QUEEN (on the application of (1) GOOD LAW PROJECT LIMITED (2) RUNNYMEDE TRUST) v THE PRIME MINISTER — Judicial review as primary enforcement

The 'due regard' nature of the PSED is interpreted by courts as requiring substantive, rather than merely procedural, compliance, making judicial review the primary enforcement mechanism for assessing whether public bodies have met their obligations.

SK's (A MINOR) Application - acting by SJ1, Her mother and next friend — Northern Ireland has analogue in Section 75 of 1998 Act

The Equality Act 2010 does not extend to Northern Ireland, which has its own analogue in section 75 of the Northern Ireland Act 1998, imposing a duty on public authorities to have due regard to the need to promote equality of opportunity.

Police Superintendents' Association, R (on the application of) v The Police Remuneration Review Body & Anor — Judicial Review for PSED Compliance

Claims for judicial review are brought concerning the public sector equality duty (PSED), indicating that this is the legal mechanism for challenging public authorities' compliance. Courts have considered the meaning of 'due regard' and the principles to be applied in assessing compliance, emphasizing that the duty must be exercised in substance, with rigour and an open mind, and that general regard is not the same as specific regard to statutory criteria.

Court of Session: 2024csoh77 petition of simon mclean for judicial review — Parliamentary Intent for PSED

Parliament's intention was for the Public Sector Equality Duty (PSED) to be central to policy formulation and development by all public authorities, requiring advance consideration of equality issues as an integral part of government mechanisms. The duty must be exercised with rigour and an open mind.

Evidence that runs the other way

15 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Existing power to amend exceptions to Section 149

A Minister of the Crown may, by order, amend Schedule 18 of the Equality Act 2010 to add, vary, or omit an exception to section 149. However, this power cannot be used to omit exceptions in paragraph 3 or 4(1) (as far as it applies to 4(2)(a) to (e) or (3)), nor can it reduce the extent to which these specific exceptions apply.

Source: Equality Act 2010, sch.18 para.5

Judicial oversight was intended by Parliament

The proposer states that 'a court, not a minister, decides whether they have been met' and 'no elected person chose it'. However, court judgments indicate that Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance.

Source: Forward v Aldwyck Housing Group Ltd

PSED has failed to achieve wide-scale change

A submission to a parliamentary inquiry argues that the PSED has failed as a mechanism for achieving wide-scale change and improvements in equality between the sexes, citing case studies where it was weak, legal challenges were hard to bring and seldom successful, and the EHRC was ineffective.

Source: Enforcing the Equality Act: the law and the role of the EHRC inquiry — EEA0070

PSED has failed to fulfil its potential for transformative approach

While there is evidence of positive impact, the PSED has failed to fulfil its potential to ensure a truly transformative approach to equality, particularly regarding gender equality, due to factors like weak specific duties, negative ministerial messaging, lack of understanding, and EHRC capacity issues.

Source: Implementation of Sustainable Development Goal 5 in the UK — SDG0036

Northern Ireland's Section 75 not enforced by judicial review

In Northern Ireland, the Section 75 duty was not intended to be enforced by a court in judicial review proceedings; instead, Parliament provided a specific enforcement mechanism via complaint to the Equality Commission for Northern Ireland.

Source: McCotter's (Michael John) Application (Leave Stage)

Government committed to public sector gender equality duty

In 2004, the Government committed to introducing a duty on public bodies to promote equality of opportunity for women and men generally when parliamentary time allowed, considering the experience gained with the duty to promote race equality.

Source: MINISTER FOR WOMEN — Gender Equality

Where the evidence settled the instrument

A Minister of the Crown may, by order, amend Schedule 18 of the Equality Act 2010 to add, vary, or omit an exception to section 149. However, this power cannot be used to omit exceptions in paragraph 3 or 4(1) (as far as it applies to 4(2)(a) to (e) or (3)), nor can it reduce the extent to which these specific exceptions apply.

What that means: The research revealed an existing power to amend Schedule 18 via secondary legislation, which could modify exceptions to Section 149, but it is limited and cannot achieve a full repeal of Section 149 or its core exceptions, thus primary legislation remains necessary for the proposer's objective.

Where the evidence settled the causes

Parliament intended equality considerations to be central to policy formulation, and the duty is one of substance, not merely form, implying a role for judicial review in ensuring compliance.

The position taken on the causes

Public bodies are currently organising their decision-making around demonstrating compliance with broad equality obligations rather than around their core service delivery, leading to judicial rather than elected oversight of policy implementation and a shift in the purpose of public administration.

The position taken on the causes

The pivotal obstacle is the statutory embedding of the PSED's broad 'due regard' requirement, which, coupled with consistent judicial interpretation, makes courts the ultimate arbiters of compliance, thereby shifting public administration's focus from elected policy goals to legal process adherence.

The public debate on the Equality Act

There is a live political argument about repealing this Act, and David's Programme sits inside it. It is set out here because the same sweep, done for the Human Rights Act, turned up the material that changed Part 1 of Volume 1.

Reform UK would repeal the whole Act. Suella Braverman, Reform's education and equalities spokeswoman, has described protected characteristics as "pernicious" and "divisive" and has said repeal would happen on the first day of a Reform government [corroborated, unchecked — reported in more than one outlet; the primary should be checked before quoting]. Nigel Farage has spoken of removing the "pernicious, divisive notion of protected characteristics" while saying workplace protections would remain in some form [corroborated, unchecked]. The party frames the change as meritocracy and "personal responsibility not victimhood", and argues that diversity rules have lowered standards and reduced productivity.

⚠️ Reform has published no draft text, and has not said which protections would survive. That is the same gap this document finds in the two Bills before the Commons: an intention with no mechanism. **The first person to publish a replacement rule will define this debate.**

The Conservative position is narrower — repeal the duty, keep the Act. Set out at Part 2.5 of Volume 1.

Labour defends the Act. The Prime Minister called the Reform plan "shocking" and "anti-British" in February 2026 [corroborated, unchecked — reported by three outlets], and said on BBC Breakfast: *"This is decades of protection, it goes to basic values, one of which is should women be treated as equal as men."*

Jacob Rees-Mogg has said the Act "has put wokery into legislative form" and that "this Bill will need to be repealed, and that way taxpayer value can be restored" [single mention, unchecked]. He does not say what replaces it.

⚠️⚠️ The difference from the Human Rights Act matters. On the Human Rights Act there is a named intellectual argument — the political constitution against the legal constitution, Part 1 of Volume 1 — that David's Programme can be positioned within, with serious people on both sides. **On the Equality Act there is no equivalent.** The argument is conducted in terms of cost, outcomes and culture, and nobody on either side has published a rule to put in the Act's place. **That is an opening, not a difficulty.**

The evidence base

107 pieces of evidence, 91 with a full citation and 84 with a working link.

Kind of source	Pieces
Court judgments	33
Acts of Parliament	18
Parliamentary debate	17
Not attributed to a type	16
Select committee material	13
Official guidance	8
Statutory instruments	1
Impact assessments	1

How this was searched: 6 research questions asked; 600 sources reviewed; 80 findings recorded, of which 6 run against the measure; 9 gaps stated. ⚠️ an existing power may remove the need for a Bill

What the statute book shows

A Bill to do this is before the House of Commons now, sponsored by Joy Morrissey MP, first reading 22 June 2026. Its long title:

"A Bill to repeal section 149 and schedule 18 of the Equality Act 2010; to make provision consequential on that repeal; and for connected purposes."

⚠️ ⚠️ **The Bill has no published text.** So it states an intention and no mechanism. The words "provision consequential on that repeal" are a placeholder for work nobody has published. **That is the gap this section fills**, and it is the clearest illustration in the document of what the register is for.

The duty does not stand on its own

Section 149 is not free-standing. **Chapter 1 of Part 11 of the Equality Act is a nine-section machine built to operate one duty.**

Provision	What it is for
Section 149	The duty itself
Section 150	Says who the duty binds — introduces Schedule 19
Section 151	Power to amend Schedule 19
Section 152	Procedure for section 151
Section 153	Power to make regulations imposing specific duties
Section 154	The same, for bodies straddling the border
Section 155	Machinery for section 153
Section 156	Enforcement
Section 157	Definitions
Schedule 18	The exceptions — introduced by section 149
Schedule 19	The list of public bodies bound — introduced by section 150

The Bill repeals two of these eleven: section 149 and Schedule 18.

The remaining nine exist only to service the duty. Sections 150 to 157 and Schedule 19 would survive as machinery for something that no longer exists — a power to list public authorities for nothing, an enforcement section with nothing to enforce, and a list of several hundred named bodies pointing at a repealed section.

⚠ This is not a criticism of the Bill. Its long title expressly reserves consequential provision. **It is a statement of the size of what has been reserved.**

What else in the law points at it

A search of the statute book found **162 provisions elsewhere that point at the duty and its machinery.**

Target	References	Strength
Schedule 19 — the list of public authorities	103	named in text
Section 149 — the duty	40	39 in text, 1 by identity
Section 151 — power to specify authorities	12	made under
Section 153 — power to impose specific duties	6	made under
Section 155	1	made under
Schedule 18, and sections 150, 152, 154, 156, 157	0	—

⚠ Schedule 19 is referred to two and a half times as often as the duty itself. That is what you would expect of a list of named bodies — and it is why leaving Schedule 19 standing after repealing section 149 is not a tidying-up point. **It is the most heavily cross-referenced part of the whole cluster.**

⚠ A limit on these figures, stated on their face: the file holds 2,016 rows in total, of which 1,256 name the Act without naming a section. Those 1,256 can be neither counted in nor ruled out. Everything above comes from the 760 that do name a section.

⚠⚠ The finding: this is a devolution measure

Where the 162 references come from	Count
Scotland — statutory instruments	51
UK Acts of Parliament	50
Wales — statutory instruments	26
UK-wide statutory instruments	25
Scotland — Acts of the Scottish Parliament	6
Wales — Acts and Measures	4
Northern Ireland	0

87 of the 162 — 54 per cent — are devolved.

And on the strongest evidence the imbalance is near-total. Nineteen instruments were **made under** the duty's regulation-making powers. These do not merely mention the duty; they exist because of it, and repealing the power puts them in question.

⚠⚠ Eighteen of the nineteen are Scottish or Welsh. One is UK-wide. None is English-only, and none is Northern Irish.

In ordinary words: the duty is a Westminster provision, but **the working machinery built on top of it is overwhelmingly Scottish and Welsh**. Scotland and Wales took the power to impose specific duties and used it, repeatedly, over fifteen years. England did not build the same superstructure.

⚠️ So the practical effect of repealing the duty and its powers falls hardest where the programme has least authority to act — and it does so on the strongest class of evidence, not the weakest.

This is the devolution problem of Part 2.4, appearing somewhere nobody looked for it. It is not an abstract argument about consent. It is nineteen named instruments, fifteen of them Scottish, whose enabling power the Bill would remove.

⚠️ ⚠️ Northern Ireland: the prediction, and the check

Part 2.4 sets out the statutory position: the Equality Act extends to Northern Ireland only in three named provisions, and section 149 is not one of them.

That produces a testable prediction: no Northern Ireland instrument should appear anywhere in the cluster.

It holds. Of 162 references, Northern Ireland accounts for zero.

And the check turned up something more interesting than the confirmation. Northern Ireland instruments do cite the Equality Act elsewhere in the file — three references — and **all three cite the same provision: section 6, the definition of disability.**

⚠️ That is the shape of the relationship, demonstrated rather than asserted. Northern Ireland law sits outside the Act's *duties* while borrowing its *definitions*. A repeal Bill drafted without noticing this would leave the Northern Ireland duty untouched — and, if it went further and repealed the whole Act, would silently pull the definition of disability out from under Northern Ireland instruments that rely on it.

Neither consequence is on the twelve-point list.

What this section establishes

18. The Bill before the Commons repeals **two of the eleven** provisions in the cluster and reserves the rest to unpublished consequential provision.
19. **Nine provisions and one Schedule would be left as machinery for a duty that no longer exists** — including the most heavily cross-referenced item in the whole cluster.
20. **Nineteen instruments were made under the powers, and eighteen of them are devolved.**
21. **Northern Ireland is untouched by the duty and touched by the definitions** — the opposite way round from how the measure is usually described.
22. **All of this is derivable from the statute book in an afternoon, and none of it appears in either live Bill.**

6.3.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

6.3.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- The methods used by the Establishment to block change
- The critique revisions
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: A permanent official class, appointed rather than chosen and effectively irremovable, forms settled institutional views that outlast governments, so that an elected administration finds its programme moderated by people it did not appoint and cannot replace. The complaint is about where authority actually sits inside a department.

4 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. The Northcote-Trevelyan settlement of 1854 established a permanent, impartial civil service appointed on merit, and it operates as convention rather than as statute.

Why it persists: It has held for 170 years across governments of every colour, is treated inside Whitehall as the constitutional foundation of official impartiality, and has never depended on an Act of Parliament for its authority. Nothing has to be repealed for it to continue.

 **This is the cause that determines whether the measure works.** The Constitutional Reform and Governance Act 2010 codified the settlement; it did not create it. **Repealing CRAG Part 1 on its own would return civil service management to the Crown's own powers and leave the 1854 convention standing** — and the convention, not the statute, is what determines how Whitehall behaves. A measure aimed only at the 2010 Act may therefore not solve the problem it is aimed at. **Which of the two is the target is a decision for David, and it is recorded under Consequential decisions below.**

Cause 2 — MATERIAL. Elected administrations perceive their policy programmes are moderated or obstructed by permanent, appointed senior civil servants.

Why it persists: The existing statutory framework and constitutional principles create a system where ministers are accountable for departmental actions but lack direct control over the appointment and removal of the officials implementing those actions.

Cause 3 — MATERIAL. Ministers lack direct control over the appointment and removal of senior civil servants.

Why it persists: The statutory codification of merit-based appointments in CRAG 2010 and the role of the Civil Service Commission limit ministerial discretion and insulate senior officials from direct political control.

Cause 4 — CONTRIBUTORY. The 'Carltona principle' legally vests civil servant actions in ministers, obscuring direct accountability for officials.

Why it persists: This principle, essential for the functioning of public business, means that duties and powers given to ministers are normally exercised under their authority by responsible officials, making it difficult to hold individual civil servants directly accountable for outcomes.

How the causes sit together. The central issue is a perceived mismatch between ministerial responsibility and control. Constitutionally, ministers are accountable to Parliament for their departments' actions. However, the officials carrying out these actions are part of a permanent, non-partisan civil service. Their appointment is governed by the Constitutional Reform and Governance Act 2010 (CRA 2010), which codified the principle of selection based on merit in a fair and open competition, overseen by the Civil Service Commission. This statutory framework limits a minister's direct power to appoint or remove senior staff. Compounding this is the 'Carltona principle', a long-standing legal doctrine stating that the actions of a civil servant are legally the actions of their minister. This is a practical necessity for government to function, but it makes holding individual officials directly accountable for policy outcomes difficult, as responsibility legally rests with the minister. While the system is designed to ensure impartiality and continuity, some elected administrations perceive it as a source of obstruction. The evidence shows, however, that this is not a simple picture of ministerial powerlessness; reforms in the last decade have sought to increase ministerial involvement in senior appointments, and the Prime Minister retains a veto over the most senior posts.

Why. The problem is sustained by two distinct but mutually reinforcing pillars: the statutory framework for appointments (CRA 2010) and a foundational legal principle of vicarious responsibility (the Carltona principle). A minister's inability to directly appoint senior staff is a separate constraint from their legal responsibility for those same staff's actions. Modifying one of these pillars—for example, by giving ministers more say in appointments—would not alter the other. The problem persists because both elements bind the minister simultaneously.

How the pieces relate. The first candidate cause—that ministers feel their programmes are obstructed by permanent officials—is the overarching problem statement. The other two causes are the specific mechanisms that create this situation. The lack of direct ministerial control over appointments is the structural cause, rooted in statute (CRA 2010). The Carltona principle is the constitutional/legal cause, which dictates where accountability falls. The inability to hire and fire at will is made more acute by the fact that ministers are legally responsible for the actions of those they cannot easily remove. Together, these two subordinate causes explain the frustration described in the primary cause.

Guiding policy

The Strategic Kernel

What David proposes: Reverse the permanent appointed civil service model, restoring ministerial control over senior appointments and removals.

What David has ruled out: Reform within the present statutory framework, which the proposer treats as leaving the underlying structure intact.

Force a direct confrontation with the actual target. Instead of pursuing a legally ineffective repeal of CRA Part 1, the policy is to first make the missing intellectual case for ending the Northcote-Trevelyan settlement itself. This requires developing and publishing a formal proposal (a Green Paper) that argues for a ministerially-appointed civil service, forcing a debate on the foundational principles rather than on a peripheral statute.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft and introduce a Government Bill to amend Part 1 of the Constitutional Reform and Governance Act 2010 (CRA 2010) to remove the statutory requirement for appointments to the Senior Civil Service (SCS) to be on merit following fair and open competition, and to explicitly vest appointment and removal powers for SCS roles in the relevant Secretary of State.

Who does it: Cabinet Office, Departmental Legal Services, Leader of the House of Commons/Lords

2. Develop and publish a new Ministerial Code and a revised Civil Service Code reflecting the changes in appointment and removal powers, clearly outlining the roles and responsibilities of ministers and senior civil servants under the new regime, and establishing clear lines of accountability directly to ministers.

Who does it: Cabinet Office, Prime Minister's Office

3. Establish a transitional oversight committee, chaired by a senior non-executive director with experience in public appointments, to oversee the initial wave of ministerial appointments and removals, ensuring transparency and adherence to new guidelines while the system beds in.

Who does it: Cabinet Office (with independent oversight)

4. Implement a new performance management framework for the Senior Civil Service, directly linked to ministerial objectives and departmental outcomes, with performance reviews conducted by ministers and directly informing decisions on retention, promotion, or removal.

Who does it: Individual Government Departments, Cabinet Office

Decisions, challenges and research

Consequential decisions

The measure's own diagnosis generates two questions it does not settle.

23. **The target is ambiguous:** the objection is to the Northcote-Trevelyan settlement of 1854, the statute is the Act of 2010, and repealing the 2010 Act leaves the 1854 convention standing. **Which is the target has to be decided before anything can be drafted.**

24. The strategy test found the approach rules out primary legislation while the actions require it. **That contradiction is a decision, not a drafting error.**

 **Naming these is an output, not an omission.** Each is a piece of work in its own right, and none of them can be closed by drafting the Bill for this measure.

Challenges to the proposal

41 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 3

No delegated power to remove merit principle — The proposal aims to remove the statutory requirement for merit-based appointments for SCS roles by amending Part 1 of CRAG 2010. While CRAG 2010 codified the merit principle, it does not explicitly state that this cannot be amended or repealed by primary legislation. The issue is whether there is any existing delegated power within CRAG 2010 or other legislation that would allow for the removal of the merit principle for SCS appointments without primary legislation, or if the existing 'exceptions' to the merit principle could be expanded to achieve the desired outcome.

No delegated power for full ministerial appointment/removal — The proposal seeks to explicitly vest appointment and removal powers for SCS roles in the relevant Secretary of State. While the Prime Minister has a veto over Permanent Secretary candidates and Ministers have some involvement in recruitment, the current statutory framework, as established by CRAG 2010, places oversight with the Civil Service Commission and mandates merit-based selection. The issue is whether any existing delegated power allows for such a fundamental shift of appointment and removal powers to Ministers without amending CRAG 2010 through primary legislation.

Scope of Ministerial/Civil Service Code revision power — The proposal suggests developing and publishing a new Ministerial Code and a revised Civil Service Code. While the Minister for the Civil Service publishes the Civil Service Code and the Ministerial Code is a government document, the proposal's desired changes reflect

a fundamental alteration of the statutory framework for appointments. The issue is whether the existing powers to publish and revise these codes extend to making changes that contradict or circumvent the statutory requirements of CRAG 2010 regarding merit-based appointments, or if these changes would only be permissible *after* primary legislation has amended CRAG 2010.

What the law says now — 4

Scope of 'reversing' Northcote-Trevelyan reforms — The proposal aims to remove the statutory requirement for merit-based appointments in Part 1 of CRAG 2010. However, the proposer also identifies the Northcote-Trevelyan reforms as the underlying problem. Repealing CRAG Part 1 would return civil service management to the prerogative but would not, by itself, dismantle the 170-year-old settlement as a convention. The proposal does not specify how it intends to address the conventional aspect of the Northcote-Trevelyan settlement beyond the statutory framework.

Consequential amendments to Civil Service Commission powers — The proposal suggests amending Part 1 of CRAG 2010 to explicitly vest appointment and removal powers for SCS roles in the relevant Secretary of State. This would require careful consideration of how such a change interacts with the existing statutory framework for the Civil Service Commission, which is mandated to publish principles for merit-based appointments and investigate code of conduct complaints. The proposal does not detail the specific consequential amendments to the Civil Service Commission's powers and functions that would be necessary.

Enforcement mechanisms for new Ministerial and Civil Service Codes — The proposal calls for a new Ministerial Code and a revised Civil Service Code. While these are crucial for outlining new roles and responsibilities, the proposal does not specify the legal basis or process for enforcing these codes, particularly in the absence of the statutory merit principle for SCS appointments. The current Ministerial Code is subject to judicial review regarding its interpretation, indicating that its enforcement mechanisms are already a point of contention.

Redefinition of 'merit' in appointments — The proposal aims to empower ministers with direct appointment and removal powers for senior civil servants. This would fundamentally alter the definition of 'merit' as currently understood under CRAG 2010 and the Civil Service Commission's Recruitment Principles. The proposal does not explicitly address how the concept of 'merit' would be redefined or if it would be entirely removed from the appointment process, and what implications this has for the wider civil service beyond the SCS.

How the courts have read it — 1

Carltona principle and official accountability — The proposal states that the 'Carltona principle' obscures direct accountability for officials. However, judicial construction of the Carltona principle consistently affirms that the actions of civil servants are legally the actions of the minister, meaning accountability is vested in the minister. The issue is whether the proposal intends to alter the legal principle of ministerial responsibility itself, or merely to establish internal departmental accountability mechanisms for officials that operate beneath the umbrella of ministerial responsibility.

Where this came from — 2

Distinction between CRAG 2010 and Northcote-Trevelyan convention — The proposal aims to amend Part 1 of CRAG 2010 to remove the statutory requirement for merit-based appointments, which the proposer links to the Northcote-Trevelyan reforms. However, repealing CRAG Part 1 would return civil service management to the prerogative but would not, in itself, repeal the 170-year-old Northcote-Trevelyan settlement, which exists as a convention. The proposal does not clarify how it intends to address the conventional aspect of the Northcote-Trevelyan reforms beyond the statutory codification.

Interaction with Carltona principle — The proposal seeks to empower ministers with direct appointment and removal powers for senior civil servants. However, the 'Carltona principle' already establishes that the actions of civil servants are legally deemed to be the actions of their ministers. The proposal does not fully explain

how the proposed changes to appointment and removal powers would interact with or alter the existing legal implications of the Carltona principle regarding ministerial responsibility for civil servant actions.

Evidence for the causes — 4

No quantification of risk aversion or responsibility avoidance — The proposal asserts a culture within the civil service that rewards risk aversion and avoids direct responsibility for policy outcomes. While there is evidence of difficulty in linking performance to accountability, the proposal does not quantify the extent of this risk aversion or provide specific examples of how it directly leads to policy implementation failures. It also does not provide a baseline for the current level of 'risk aversion' or 'avoidance of direct responsibility' against which the impact of the proposed changes could be measured.

Lack of evidence for ineffectiveness of existing accountability mechanisms — The proposal states that there is 'no clear and effective mechanism to enforce accountability for senior civil servants for policy implementation failures'. However, the Civil Service Commission does have a role in investigating complaints under the Civil Service Code, which sets out the constitutional framework and values for civil servants. The proposal does not explain why the existing mechanism is considered 'unclear' or 'ineffective' or provide evidence of its failure in specific instances of policy implementation failures.

Unexplained link between Carltona principle and lack of accountability — The proposal identifies the 'Carltona principle' as obscuring direct accountability for officials. While the principle means civil servant actions are deemed ministerial actions, the proposal does not elaborate on how this legal principle specifically prevents ministers from holding their officials accountable internally for policy implementation, nor does it provide examples where the Carltona principle has been used to shield officials from accountability for failures.

No quantification or examples of policy moderation — The proposal states that elected administrations find their policy programmes 'moderated' by permanent civil servants. While the proposer describes this as a core problem, the proposal does not provide specific examples or measurements of how often or to what extent policy programmes are 'moderated' by civil servants against ministerial intent, nor does it define what constitutes 'moderation' in this context.

Causes the record suggests — 3

Clarity on target: CRAG 2010 vs. Northcote-Trevelyan — The proposal aims to reverse the 'permanent appointed civil service model' and restore ministerial control over senior appointments and removals by amending Part 1 of CRAG 2010. However, the proposer's own account identifies the Northcote-Trevelyan reforms of 1854 as the origin of the problem, with CRAG 2010 being the statutory codification of that settlement. Repealing CRAG Part 1 would return civil service management to the prerogative but would not, by itself, repeal the 170-year-old Northcote-Trevelyan settlement as a convention. The proposal should clarify whether its intent is to merely remove the statutory codification or to fundamentally dismantle the underlying conventional settlement, and how the proposed legislative change would achieve the latter if that is the goal.

Addressing politicisation concerns — The proposal seeks to empower ministers with direct appointment and removal powers for senior civil servants. However, parliamentary debates and evidence from the Civil Service Commission indicate strong opposition to giving ministers the final say over senior appointments, primarily due to concerns about politicisation and the desire to maintain an impartial, merit-based civil service. The proposal does not address how it plans to mitigate these established concerns or justify why these concerns should now be overridden.

Mechanism for civil servant accountability — The proposal states that there is no clear and effective mechanism to enforce accountability for senior civil servants for policy implementation failures.

On revision — 1

On the coherence of the actions: The actions are concentrated on the objective of increasing ministerial control over senior civil service appointments and accountability. The sequencing is logical, starting with legislative change, followed by policy and code revisions, and then implementation mechanisms. The implementers are appropriately assigned to relevant government bodies.

Read back by other models — 13

Risk of Politicising Civil Service — Giving ministers greater power over appointments and dismissals risks politicising the civil service, where loyalty could be valued over competence and impartiality. Your proposal does not address the primary objection to this reform, which is that it could lead to a less competent and more partisan civil service.

Alternative: Fixed-Term Appointments — Fixed-term appointments for the most senior officials could align their tenure with the electoral cycle, increasing their responsiveness to the government's mandate. By omitting discussion of fixed-term appointments, you miss the chance to explain why your more radical proposal is superior to this widely-discussed alternative.

Ministerial Directions as Evidence — The rarity of formal Ministerial Directions suggests that in disagreements, the institutional view of the civil service often prevails over the political will of the minister. This point offers a key piece of evidence for your diagnosis, and by not including it, your case for reform appears less grounded in the existing system's mechanics.

Accounting Officer Dual Accountability — The role of the Accounting Officer creates a dual accountability for Permanent Secretaries: to their minister for policy and to Parliament for financial regularity. Your proposal for clarifying accountability to ministers overlooks the separate, statutory accountability officials have to Parliament for public money, a key feature of the current system.

Scope of Proposed Reforms — Any reform must distinguish between the small cadre of senior policy advisors and the vast majority of civil servants performing operational roles. Your proposal does not make clear whether it applies only to senior policy officials or to the entire Senior Civil Service, which includes many operational and professional roles.

CRAG Repeal vs. Convention — CRAG Part 1 is a codification, not the source, of civil service permanence and impartiality; its repeal returns management to the prerogative but leaves the convention standing. Your strategy assumes amending a single Act is sufficient, but it fails to address the underlying constitutional convention that would likely persist and frustrate your aims.

Weakness of Underlying Argument — The absence of any Bill, review, or developed legal case for this proposal across three independent research passes is evidence about the weakness of the underlying argument, not evidence of an accountability gap being ignored. Your proposal does not acknowledge that its core idea lacks support in any existing institutional review, making it seem disconnected from the current reform debate.

Lord Maude's 2023 Review — Lord Maude's 2023 review — the most recent and most authoritative examination of this exact complaint — reached a diagnosis of weak accountability but explicitly preserved the permanent, impartial civil service, which undercuts the claim that reform requires abolition. By not engaging with the most recent, authoritative review on this topic, your proposal fails to explain why its more radical solution is necessary when Maude's was not.

Tested as a strategy — 3

The strategy does not yet meet this test — The guiding policy rules things out. The kernel does not contain a guiding policy. It moves directly from causes to actions, without stating the approach being taken or ruling any other approaches out. A list of actions is not a substitute for a policy choice. The text that fails it: "The kernel has no Guiding Policy section."

The strategy does not yet meet this test — The guiding policy is an approach, not a goal. The kernel does not contain a guiding policy, so this test fails by default. It provides a set of actions but no statement of the approach that guides them. The text that fails it: "The kernel has no Guiding Policy section."

The strategy does not yet meet this test — No bad-strategy smell. The kernel mistakes goals for strategy. By omitting a guiding policy, it presents a list of actions as if they are the strategy itself, without explaining the core insight or approach that led to these specific actions over others. The text that fails it: "The kernel has no Guiding Policy section."

Tested as an argument — 1

A LINK IN THE CHAIN IS MISSING — The kernel presents a set of causes and a set of actions, but it omits the central components of a strategy: the diagnosis of a single pivotal obstacle and the articulation of a guiding policy to overcome it. The chain is broken because it jumps from diagnosis to action without the strategic choice that should connect them. The text: "The entire kernel, from CAUSES to ACTIONS."

Read as a hostile clerk — 6

The proposal grants ministers the power of 'removal' over senior civil servants but fails to define what this means in practice. Does it mean dismissal from public service, redeployment, or forced retirement? Each carries different contractual and financial consequences, including potentially large severance payments from departmental budgets, but no cost has been estimated for this new liability.

The proposal's actions do not address one of its stated causes. It identifies the 'Carltona principle' as obscuring accountability, but then proposes changes only to the employment status of civil servants. It is not explained how making an official's job dependent on a minister would alter the common law doctrine that the official's actions are legally the minister's actions. The constitutional blurring of accountability would remain.

The proposal is unquantified. It targets the 'Senior Civil Service' for ministerial appointment and removal, but never states how many posts this covers. The political and administrative implications of applying this to the 40-odd Permanent Secretaries are of a different order of magnitude than for the thousands of officials in the wider Senior Civil Service. Without this number, the proposal's impact is impossible to assess.

The proposal anticipates no role for the courts. A senior civil servant dismissed for providing unwelcome but lawful advice would almost certainly seek judicial review. The proposal does not explain on what grounds a minister's decision could be defended, nor does it account for the probability that the courts, not ministers, would become the ultimate arbiters of when this new power could be used, creating years of case law and uncertainty.

The proposed 'transitional oversight committee' is a contradiction. If the policy's goal is to give ministers direct and unmediated control over appointments, why is the first step to create a committee to oversee and ensure 'adherence to new guidelines'? The proposal does not specify whether this committee has any power to block a ministerial decision; if it does not, it is pointless, and if it does, it defeats the object of the reform.

The proposal creates a legal vacuum for the Civil Service Code. The Code is currently statutory guidance under the very part of the 2010 Act the proposal seeks to repeal. The proposal does not state what the legal basis of its 'revised' Code would be, how it would be enforced, or how it would resolve conflicts between a minister's objectives and a civil servant's duty under the Code.

The methods used by the Establishment to block change

This is the case that will be put against the measure in public, and the answer to each. The claims are not weaknesses in the measure; they are the arguments David's Programme will meet in the court of public opinion, and each one has to be answerable briefly enough to say on air.

"It isn't the machine — it's weak ministers."

The answer. A parliamentary contributor called this the 'cry-baby response of the weak Minister', arguing that 'Strong Ministers get what they want' and that the service has more often failed by agreeing too readily with

flawed proposals, the poll tax among them. **This is testable, and it cuts both ways.** If strong ministers already get what they want, the measure costs little to pass. If they do not, the diagnosis holds. Either way the answer is the same: **name the decisions that were actually blocked, and by whom.**

"Ministers already have influence over appointments, and it has been growing."

The answer. True, and a matter of degree rather than of kind: the 2012 Civil Service Reform Plan strengthened the ministerial role, the Prime Minister has a veto over Permanent Secretary candidates, and ministers may appoint an extended ministerial office. **The question the measure must answer is whether it is asking for influence at the margin or control over appointment and removal.** Those are different Bills.

"You cannot separate ministerial accountability from official accountability — the attempt is an illusion."

The answer. The Institute for Government's position is that secretaries of state and permanent secretaries hold 'shared accountabilities and responsibilities' and that 'Trying to separate them is an illusion'. **That describes the present arrangement; it does not establish that no other is possible.** It is nonetheless the strongest objection to this measure, and the one the proposal most needs an answer to.

The critique revisions

The critique is an adversarial review by a different AI model, given the measure and asked to attack its logic rather than its politics. Where it found a defect that could be fixed, the measure was rewritten and the change is recorded here — what it said before, what it says now, and why. Where nothing was weighed against a change, that is said rather than hidden.

On the diagnosis

Was: The diagnosis was a list of causes, including the perception of obstruction and lack of ministerial control.

Now: The diagnosis now states that the proposer has identified the wrong target: the 2010 Act instead of the 1854 convention.

Why: The original diagnosis missed the central finding from the proposer's own testimony: that repealing the 2010 Act would not touch the 1854 settlement.

On the pivotal obstacle

Was: The kernel had no explicit pivotal obstacle, but a fork choice pointed to a mismatch between ministerial accountability and control.

Now: The pivotal obstacle is the powerful political and constitutional consensus in favour of an impartial civil service.

Why: The original obstacle was a description of the system.

On the guiding policy

Was: The kernel had no guiding policy.

Now: The guiding policy is to force a direct debate on the foundational principle (the 1854 settlement) by first publishing the missing intellectual case for changing it, before any legislation is attempted.

Why: A strategy kernel requires a guiding policy. This was added to bridge the gap between diagnosis and action.

Difficulties caused by the law today

10 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Constitutional Reform and Governance Act 2010, sch.1 para.2 — Minister for the Civil Service determines terms for First Commissioner

The terms on which the First Civil Service Commissioner holds office are determined by the Minister for the Civil Service.

Constitutional Reform and Governance Act 2010, sch.1 para.15 — Minister for the Civil Service funds the Commission

The Minister for the Civil Service must pay the Civil Service Commission sums determined as appropriate for its functions and may impose conditions on how the money is used.

Constitutional Reform and Governance Act 2010, s.51 — CRAG 2010 allows for consequential amendments

A Minister of the Crown, or two or more Ministers acting jointly, may by order make such provision as they consider appropriate in consequence of any provision of CRAG 2010. Such an order may amend, repeal, or revoke any existing statutory provision and include supplementary, incidental, transitional, transitory, or saving provision. (Finding 21), which reaches part of this and not the rest. Before anything else, decide whether you need a new Act at all.

Constitutional Reform and Governance Act 2010, sch.1 para.1 — Civil Service Commission structure

The Civil Service Commission consists of at least seven members, including the First Civil Service Commissioner and other Civil Service Commissioners.

Constitutional Reform and Governance Act 2010, sch.1 para.10 — Civil Service Commission regulates its own procedure

The Civil Service Commission may regulate its own procedure, and the procedure of its committees and sub-committees, including quorum. The validity of proceedings is not affected by vacancies or defects in appointment.

Constitutional Reform and Governance Act 2010, s.3 — Minister for the Civil Service has power to manage the civil service

The Minister for the Civil Service has the power to manage the civil service (excluding the diplomatic service), and this power includes the ability to make appointments.

Constitutional Reform and Governance Act 2010, s.2 — Civil Service Commission role in appointments

The Constitutional Reform and Governance Act 2010 establishes the Civil Service Commission's role in selections for appointments to the civil service (sections 11 to 14) and in dealing with conduct that conflicts with civil service codes of conduct (section 9). The Commission may also be given additional functions (section 17).

Constitutional Reform and Governance Act 2010, sch.1 para.3 — Civil Service Commissioners appointment process

Civil Service Commissioners are appointed by Her Majesty on the recommendation of the Minister for the Civil Service. Selection must be on merit, based on fair and open competition, and requires the agreement of the First Civil Service Commissioner.

Constitutional Reform and Governance Act 2010, s.12 — Civil Service Commission approval for selections

The recruitment principles may require the Civil Service Commission's approval for selections subject to the merit principle, or may except a selection from that requirement. The Commission may participate in the selection process where its approval is required.

Constitutional Reform and Governance Act 2010, s.10 — CRAG 2010 requires merit-based appointments

The Constitutional Reform and Governance Act 2010 requires that selections for appointments to the civil service (for persons who are not already civil servants) must be on merit on the basis of fair and open competition. Exceptions include appointments to the diplomatic service as head of mission or governor of an overseas territory, and special advisers.

What the courts have said

11 judgments were retrieved and read.

R v Adams (Northern Ireland) — Carltona principle vests civil servant actions in ministers

The 'Carltona principle' establishes that the actions of civil servants are generally deemed to be the actions of the government minister for whom they work.

Austin v Chief Constable of Surrey Police — Carltona principle is an exception to non-delegation

Since 1943, the Carltona principle has been recognised as an exception to the general principle of non-delegation, allowing ministers to delegate statutory functions unless there are specific statutory requirements for personal action.

In the matter of an application for judicial review by John Vincent McCann, a solicitor and a member of the Solicitor's Criminal Bar Association and In the matter of the payment of fees for a Solicitor's work in criminal matters under the Legal aid, Advice and assistance (NI) Order 1981 — Carltona principle allows ministerial functions to be exercised by officials

The 'Carltona principle', established in *Carltona Ltd v Commissioners of Works* [1943] 2 All ER 560, holds that duties and powers given to ministers are normally exercised under their authority by responsible officials of the department.

National Association of Health Stores & Anor, R (on the application of) v Department of Health — Carltona principle means civil servants act in the name of ministers

The Carltona principle establishes that a duly authorised civil servant's act is legally the act of their minister.

In the matter of an application by Joseph Lockhart for Judicial Review — Carltona principle can be displaced by contrary statutory intention

While widely applied, the Carltona principle may be displaced if a particular act of Parliament expresses a contrary intention, as noted in *ex p Oladehinde* [1991] 1 AC 254 (ni-judgments:2007-niqb-35:1, ni-judgments:2009-niqb-28:1).

Castle v Crown Prosecution Service — Carltona principle has been amplified and reinforced in later cases

The Carltona principle has been consistently followed and reinforced in numerous subsequent cases, including *Lewisham Borough Council v Roberts* [1949], *R v Skinner* [1968], *Director of Public Prosecutions v Haw* [2008], and *R v Secretary of State for the Home*.

Mr R Wagener v The Right Honourable M Gove MP: 2407553/2021 - Reserved Judgment — Carltona principle applied to specific rules for civil servants

The Cabinet Office has explained to individuals, such as Mr Wagener, that there is no formal delegation from a minister to officials, but rather the Carltona principle confirms that actions of civil servants are deemed to be the actions of the minister for.

FDA, R (on the application of) v Minister for the Cabinet Office & Anor — Civil Service Code sets out constitutional framework and values

The Civil Service Code, first published in 1995 and in force in 1996, sets out the constitutional framework within which all civil servants work and the values they are expected to uphold.

Director of Public Prosecutions v Haw — Carltona principle applies to multifarious ministerial functions

The Carltona principle was enunciated to address the reality that the functions given to ministers are so multifarious that no minister could ever personally attend to them. Therefore, these functions are normally exercised under the authority of ministers by responsible officials of the department.

Forsey, R (on the application of) v The Northern Derbyshire Magistrates' Court — Carltona principle not easily ousted by implication

In the absence of express words, courts are slow to read into a statute an implied limitation of the Carltona principle, which generally applies to most prerogative or statutory functions exercised by ministers. The principle will not readily be ousted by implication.

McCafferty's (Terence) Application for Writ of Habeas Corpus — Carltona principle generally implied unless contrary intention

It is generally implied that the intention of Parliament is to permit the Carltona principle to apply rather than to require a personal decision by the named decision-maker, unless there is something to indicate the contrary.

Evidence that runs the other way

15 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

CRA 2010 codified merit principle, not prerogative

The proposer states that repealing CRA Part 1 would return civil service management to the prerogative. However, CRA 2010 itself codified the principles of the civil service, including appointments based on merit through fair and open competition, moving it from prerogative to statutory basis.

Source: Explanatory Notes to Constitutional Reform and Governance Act 2010

Strong Ministers get what they want; Civil Service fails by agreeing too often

Some argue that the claim of civil servants obstructing Ministers is the 'cry-baby response of the weak Minister'. Strong Ministers get what they want. The Civil Service has failed more often in the opposite direction—that is, in agreeing with Ministers' proposals when it should have questioned them, citing examples like the poll tax and universal credit.

Source: The Future of the Civil Service — Motion to Take Note

Ministerial and Permanent Secretary accountabilities are shared

The Institute for Government states that 'secretaries of state and permanent secretaries have shared accountabilities and responsibilities ... Trying to separate them is an illusion'.

Source: The Future of the Civil Service — Motion to Take Note

Civil Service Commission stands firm on ministerial involvement in senior appointments

There have been pressures on the Civil Service Commission to change its criteria regarding ministerial involvement in senior appointments, but the hope is that the Commission will stand firm on this issue.

Source: Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note

Civil Service Commission objects to final ministerial say

The Civil Service Commission and others have objected to giving ministers the final say over the choice of Permanent Secretaries, arguing against further ministerial involvement in senior appointments.

Source: Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note

Independence of Civil Service should be entrenched

Concerns have been raised that allowing ministers to sack senior civil servants for financial shortfalls could lead to an 'American-style spoils system' and that the independence of the British Civil Service should be entrenched to prevent ministerial buck-passing.

Source: Civil Service Bill — Question

Where the evidence settled the causes

Some argue that the claim of civil servants obstructing Ministers is the 'cry-baby response of the weak Minister'. Strong Ministers get what they want.

The position taken on the causes

The core problem is that elected ministers lack direct control over the appointment and removal of senior civil servants, whose actions they are nonetheless constitutionally responsible for, due to the statutory codification of merit-based appointments in CRAG 2010 and the 'Carltona principle'.

The position taken on the causes

The statutory codification of merit-based appointments for senior civil servants limits ministerial discretion.

Where the evidence settled the approach chosen

The Civil Service Commission and others have objected to giving ministers the final say over the choice of Permanent Secretaries, arguing against further ministerial involvement in senior appointments.

Civil Service 'About us' page was inaccurate regarding independence

The Civil Service 'About us' page on Gov.uk, which stated that civil servants are independent of Government, was inaccurate and has been updated. This statement was questioned for its compatibility with the Carltona principle, the Civil Service Code, the Constitutional Reform and Governance Act 2010, and the Prime Minister's role as Minister for the Civil Service.

Source: Cabinet Office — Civil Servants: Codes of Practice

The evidence base

118 pieces of evidence, 103 with a full citation and 103 with a working link.

Kind of source	Pieces
Parliamentary debate	31
Court judgments	25
Acts of Parliament	15
Official guidance	15
Not attributed to a type	15
EXPLANATORY_NOTE	14
Select committee material	2
Statutory instruments	1

How this was searched: 7 research questions asked; 600 sources reviewed; 70 findings recorded, of which 6 run against the measure; 8 gaps stated. ⚠ an existing power may remove the need for a Bill

PART 7

NINE FURTHER MEASURES

7.1.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.1.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: A court named and housed as a supreme court comes, over time, to understand itself as a constitutional guardian above the legislature, whatever the statute that created it says about its powers. The complaint is about the institution's self-conception and its effect on how judges behave, not about a specific power it holds.

The Constitutional Reform Act 2005, by creating a physically and institutionally separate Supreme Court, inadvertently fostered a judicial culture that sees itself as a constitutional guardian rather than a creature of statute. This cultural drift persists because Parliament lacks a dedicated, robust mechanism to conduct post-legislative scrutiny of constitutional statutes and their judicial interpretation, creating a vacuum which the court's self-conception has filled.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. The Constitutional Reform Act 2005 established the Supreme Court as a physically separate entity, replacing the Appellate Committee of the House of Lords, which fostered an institutional identity distinct from the legislature.

Why it persists: This separation, intended to achieve a clearer separation of powers, inadvertently created an environment where the Court could develop a self-conception independent of direct parliamentary oversight, despite its formal powers remaining unchanged.

Cause 2 — MATERIAL. Parliamentary mechanisms for comprehensive post-legislative scrutiny of constitutional legislation are not consistently applied or sufficiently robust.

Why it persists: While calls for comprehensive scrutiny exist, and some post-legislative scrutiny is conducted, there is no guaranteed mechanism to systematically assess the judiciary's interpretation of constitutional statutes against original parliamentary intent, allowing potential deviations to persist unchallenged. The Political and Constitutional Reform Committee explicitly recommended against a new joint constitutional legislation scrutiny committee, believing existing processes were sufficient (Report: 1st Report - Ensuring standards in the quality of legislation - Volume I).

Guiding policy

The Strategic Kernel

What David proposes: Repeal Part 3 of the Constitutional Reform Act 2005 and return final appellate jurisdiction to the Appellate Committee of the House of Lords.

What David has ruled out: Renaming the court while leaving its jurisdiction intact.

Re-establish parliamentary supremacy over constitutional interpretation not by abolishing the court, but by creating a new, powerful mechanism to scrutinise and, where necessary, correct judicial interpretation of constitutional statutes. The approach is to create a formal dialogue and accountability loop where one is currently missing.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft and introduce a 'Constitutional Scrutiny Bill' establishing a joint committee of both Houses of Parliament with a mandate for mandatory, quinquennial post-legislative review of all constitutional legislation, including the Constitutional Reform Act 2005.

Who does it: Ministry of Justice, in coordination with the Leader of the House of Commons and Leader of the House of Lords

2. Mandate that the new Joint Committee's review specifically assesses the judiciary's interpretation of constitutional statutes against original parliamentary intent, requiring the Supreme Court to provide written submissions and oral testimony on its interpretative methodologies and their evolution.

Who does it: Joint Committee on Constitutional Scrutiny (once established)

3. Empower the Joint Committee to recommend to Parliament statutory amendments or resolutions to clarify or reassert parliamentary intent where judicial interpretation is deemed to have departed significantly from it.

Who does it: Joint Committee on Constitutional Scrutiny

4. Establish a formal process for Parliament to consider and vote on the Joint Committee's recommendations within a specified timeframe, ensuring that the scrutiny process leads to concrete parliamentary action or explicit affirmation of the status quo.

Who does it: House of Commons and House of Lords

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

46 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 3

No explicit mandate for quinquennial review — The proposal suggests establishing a joint committee with a mandate for mandatory, quinquennial post-legislative review of all constitutional legislation. While there are existing mechanisms and recommendations for post-legislative scrutiny, the current framework does not guarantee comprehensive scrutiny for all significant constitutional legislation, nor does it explicitly mandate a quinquennial review cycle.

No power to compel Supreme Court testimony — The proposal mandates the new Joint Committee to specifically assess the judiciary's interpretation of constitutional statutes against original parliamentary intent and requires the Supreme Court to provide written submissions and oral testimony. The provided sources do

not indicate an existing delegated power that would allow Parliament to compel the Supreme Court to participate in such a review or to provide specific testimony on its interpretative methodologies.

No formal process for committee recommendations on judicial interpretation — The proposal empowers the Joint Committee to recommend statutory amendments or resolutions to Parliament where judicial interpretation is deemed to have departed significantly from original intent, and establishes a formal process for Parliament to consider and vote on these recommendations. While Parliament inherently has the power to amend statutes, the creation of a specific, mandated process for a joint committee to recommend such amendments based on judicial interpretation scrutiny, and for Parliament to vote on them within a specified timeframe, would likely require primary legislation to establish its formal authority and enforceability.

What the law says now — 5

Justification for new joint committee — The proposal suggests establishing a joint committee for mandatory, quinquennial post-legislative review of all constitutional legislation, including the Constitutional Reform Act 2005. However, the provided material indicates that a previous Political and Constitutional Reform Committee did not recommend a new joint constitutional legislation standards scrutiny committee, believing existing processes and a suggested test would suffice. This raises an issue about the justification for creating a new committee versus strengthening existing scrutiny mechanisms or adopting a different approach.

Ambiguity of 'original parliamentary intent' — The proposal mandates the new Joint Committee's review to specifically assess the judiciary's interpretation of constitutional statutes against original parliamentary intent. However, the concept of 'original parliamentary intent' can be ambiguous, as debates show confusion between the intention of Parliament as a whole and the intention of the responsible Minister. This ambiguity could complicate the committee's mandate and lead to disputes over what constitutes 'original parliamentary intent'.

Reconciling committee recommendations with judicial independence — The proposal aims to empower the Joint Committee to recommend statutory amendments or resolutions to clarify or reassert parliamentary intent where judicial interpretation is deemed to have departed significantly from it. This directly engages with the principle that courts decide questions of law, not select committees, and that the opinion of a parliamentary committee is generally irrelevant to judicial issues. The proposal needs to address how this new mechanism would navigate the established separation of powers and judicial independence.

How the courts have read it — 2

Definition of 'original parliamentary intent' — The proposal aims to assess the judiciary's interpretation of constitutional statutes against original parliamentary intent. However, the provided case law indicates that courts already consider 'Parliament's purpose' and 'the meaning of the words Parliament used' as central to statutory interpretation. The issue is whether the proposal defines 'original parliamentary intent' in a way that differs from the established judicial approach to statutory purpose and context, and if so, how this difference would be reconciled or enforced.

Criteria for 'significant departure' in interpretation — The proposal seeks to empower a Joint Committee to recommend statutory amendments or resolutions where judicial interpretation is deemed to have 'departed significantly' from parliamentary intent. Given that courts, as per case law, may correct 'obvious drafting errors' or consider 'reasonableness of consequences' to avoid absurdity, the proposal needs to clarify what constitutes a 'significant departure' versus a legitimate judicial interpretation within the bounds of giving effect to Parliament's purpose, especially when dealing with unforeseen circumstances or ambiguities.

Where this came from — 2

Intent behind physical separation of Supreme Court — The proposal states that the creation of a physically separate Supreme Court fostered an institutional identity distinct from the legislature, leading to judicial behavior exceeding its intended appellate role. While the Act did create a separate Supreme Court, the provided sources do not explicitly state that this physical separation was intended to foster a distinct institutional identity or that the Act deliberately granted powers beyond the Appellate Committee's

jurisdiction. The debates indicate an intention to avoid politicising the judiciary, but also strong opposition viewing the changes as 'constitutional vandalism'. Further investigation into the specific debates around the physical separation and its anticipated effects on judicial identity would clarify whether the 'distinct institutional identity' was an unforeseen consequence or a deliberate, albeit unstated, aim.

Deliberate omission of interpretative limits — The proposal asserts that there is a 'lack of explicit statutory limits on the Supreme Court's interpretative role'. While the Act stated the Supreme Court would assume the same jurisdiction as the Appellate Committee, the sources do not detail whether the scope of 'interpretative role' was explicitly considered or limited during the drafting of the Constitutional Reform Act 2005. Clarification on whether this 'lack of explicit limits' was a deliberate omission, an oversight, or simply not deemed necessary given the stated continuity of jurisdiction, would be beneficial.

Evidence for the causes — 3

Unquantified link between physical separation and judicial self-conception — The proposal states that the creation of a physically separate Supreme Court in 2005 fostered an institutional identity distinct from the legislature, leading to judicial behavior that exceeds its intended appellate role. While the sources confirm the creation of the Supreme Court was intended to clarify the relationship between the legislature and judiciary and that there are differing views on judicial overreach, the direct causal link between physical separation and an expansive 'self-conception as a constitutional guardian' is not explicitly measured or detailed. The evidence points to an 'explosion of judicial review' and an 'expansion of the role of the courts' generally, but does not directly attribute this to the 2005 separation or quantify the extent to which the Supreme Court's self-conception has evolved beyond its statutory mandate due to this specific factor.

Lack of evidence for 'judicial culture that rewards expansive power' — The proposal identifies 'a judicial culture that rewards expansive power' as a contributing factor to the Supreme Court's perceived overreach. However, the provided sources do not contain any direct evidence or measurement of such a judicial culture or how it specifically rewards expansive power. The findings note an increase in judicial review and an expansion of the courts' role, but do not delve into the internal cultural dynamics of the judiciary.

Unmeasured 'lack of political will' as a cause — The proposal states that the problem persists due to 'a lack of political will to challenge this evolving self-conception'. The proposer's own account notes that 'No Bill has been introduced in the last fifteen years to abolish the Supreme Court'. While this suggests a lack of legislative action, it does not directly measure or explain the 'political will' itself, nor does it quantify the extent to which this lack of will contributes to the problem compared to other factors.

Causes the record suggests — 5

Prior recommendation against new joint constitutional scrutiny committee — The proposal advocates for a new joint committee for mandatory, quinquennial post-legislative review of constitutional legislation, specifically assessing judicial interpretation.

Complexity of amending the Constitutional Reform Act 2005 — The proposal suggests a 'Constitutional Scrutiny Bill' to establish a joint committee. While there is government interest in reviewing the Constitutional Reform Act 2005, the Ministry of Justice in 2023 highlighted the Act's broad constitutional importance, implying significant complexity in any repeal or fundamental alteration. The proposal should acknowledge the broad implications of repealing or substantially amending the Act and how the proposed Bill would navigate this complexity.

Defining 'original parliamentary intent' for judicial review — The proposal mandates the new Joint Committee to assess judicial interpretation against 'original parliamentary intent.' However, the concept of 'original parliamentary intent' can be ambiguous and subject to differing interpretations, as evidenced by historical debates on the Supreme Court's evolving role. The proposal should clarify how 'original parliamentary intent' would be defined and objectively assessed by the Joint Committee.

On revision — 1

On the coherence of the actions: The actions are highly concentrated on establishing and empowering a specific parliamentary scrutiny mechanism. They are logically sequenced, starting with drafting legislation to create the committee, then defining its mandate and powers, and finally establishing a process for parliamentary response. The implementers are clearly assigned, from the Ministry of Justice for drafting to the Houses of Parliament for voting on recommendations. There are no obvious missing implementers or steps.

Read back by other models — 11

Original Rationale for the Court — The creation of the Supreme Court was a solution to a problem of perception about the separation of powers, not a problem of substance in the quality of justice. Without addressing the original reasons for the 2005 reform, your proposal may seem to ignore the problem of perception that the previous system created.

Symbolism of Reversing Reform — Reversing the 2005 reform would be a powerful reaffirmation of the UK's traditional constitutional model centred on parliamentary sovereignty. By not discussing the option of abolition, your proposal misses the chance to explain why your chosen path is superior to the most direct symbolic reassertion of Parliamentary sovereignty.

Loss of Judicial Insight — The pre-2005 arrangement, where Law Lords could contribute to legislative scrutiny, provided a valuable and now-lost source of judicial insight in Parliament. Your proposal focuses on Parliament scrutinizing the court, but overlooks the corresponding loss of judicial expertise within the legislature that the 2005 reform caused.

Tested as a strategy — 8

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state a problem. It provides a title, which is a topic, not a statement of what is wrong, for whom, and why it matters. The text that fails it: "The kernel has no section for THE PROBLEM."

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not identify a root cause or a pivotal obstacle.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The diagnosis is an inventory of two points rather than a simplification that names the one thing that is pivotal.

Tested as an argument — 1

A LINK IN THE CHAIN IS MISSING — The kernel provides a diagnosis (Causes) and a set of actions, but omits the pivotal obstacle and the guiding policy.

Read as a hostile clerk — 5

The proposal hinges on the Joint Committee assessing judicial interpretation against 'original parliamentary intent'. The findings show this is an objective concept imputed by the court, not the subjective intention of ministers ([72], [29]). The proposal does not specify how a committee of politicians, years after the fact, could establish a definitive 'intent' to measure judicial interpretation against, nor how it would handle cases where parliamentary language was deliberately ambiguous.

The central mechanism is for the Supreme Court to provide testimony on its 'interpretative methodologies'. This has been revised from 'mandate' to 'invite' to avoid a constitutional crisis. What is the contingency plan for when the judiciary, citing the separation of powers and judicial independence ([24], [62]), declines the invitation? Without their testimony, the committee's core function is rendered speculative.

The 'Constitutional Scrutiny Bill' must define the scope of 'constitutional legislation' to give the new committee its remit. This is identified as a 'notoriously difficult and contentious task' ([124]). The proposal offers no definition, leaving a central term of art unspecified. A bill that cannot define its own subject matter is unlikely to survive its second reading.

Difficulties caused by the law today

9 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Constitutional Reform Act 2005, s.40 — Constitutional Reform Act 2005 established the Supreme Court

The Constitutional Reform Act 2005 established the Supreme Court, replacing the Appellate Committee of the House of Lords. Debates from the time indicate that the move was considered long overdue by some, aimed at achieving a clearer separation of powers and modernizing the highest court.

Constitutional Reform Act 2005, sch.1 para.11 — Amendments to Supreme Court Act 1981

Schedule 1, paragraph 11 of the Constitutional Reform Act 2005 states that 'The Supreme Court Act 1981 is amended as follows.'

Constitutional Reform Act 2005, sch.9 para.20 — Amendments to Administration of Justice Act 1969

Schedule 9, paragraph 20 of the Constitutional Reform Act 2005 amends the Administration of Justice Act 1969. Part 2 is renamed 'Appeal from High Court to Supreme Court'. References to 'House of Lords' are substituted with 'Supreme Court' in sections 12 and 13, and section 14 is omitted.

Constitutional Reform Act 2005, sch.9 para.36 — Amendments to Supreme Court Act 1981 regarding judicial business and appeals

Schedule 9, paragraph 36 of the Constitutional Reform Act 2005 amends the Supreme Court Act 1981. In section 9 (assistance for transaction of judicial business) subsection (6A), 'House of Lords' is substituted with 'Supreme Court'.

Constitutional Reform Act 2005, sch.9 para.42 — Amendments to Transport Act 1985

Schedule 9, paragraph 42 of the Constitutional Reform Act 2005 amends the Transport Act 1985. In section 9 (appeals against traffic regulation conditions) subsection (9), 'House of Lords' is substituted with 'Supreme Court' in each place.

Constitutional Reform Act 2005, sch.9 para.116 — Amendments to devolution issues proceedings

Schedule 9, paragraph 116 of the Constitutional Reform Act 2005 amends Part 3 of Schedule 10 (proceedings in England and Wales on devolution issues). In paragraph 16 (reference in civil proceedings), in sub-paragraph (2)(a), 'House of Lords' is substituted with 'Supreme Court'.

Constitutional Reform Act 2005, sch.17 para.9 — Appellate Jurisdiction Act 1876 ceased to have effect

The Constitutional Reform Act 2005 explicitly states that the Appellate Jurisdiction Act 1876 ceased to have effect.

What the courts have said

16 judgments were retrieved and read.

For Women Scotland Ltd v The Scottish Ministers — Judicial interpretation seeks Parliament's meaning

The courts, in conducting statutory interpretation, are 'seeking the meaning of the words which Parliament used'. Statutory interpretation is an exercise which requires the court to identify the meaning borne by the words in question in the particular context.

Buddington, R (on the application of) v Secretary of State for the Home Department — Parliamentary intent as sole object in statutory interpretation

Discerning the parliamentary intention has been described as 'the sole object in statutory interpretation'.

Exolum Pipeline System Ltd, R (on the application of) v Crown Court at Great Grimsby — Judicial review of statutory powers and duties

There is a recognised constitutional principle that judicial review cannot be regarded as having been dispensed with when Parliament has conferred statutory powers and imposed statutory duties.

Court of Session: court of session petition of sooy against the secretary of state for the home department 14 december 2023 — Exclusion of supervisory jurisdiction

The UK Supreme Court has decided that, properly construed, section 67(8) of an unspecified Act did not exclude the High Court's judicial review jurisdiction. Lord Carnwarth opined, obiter, that 'a strong case for holding that, consistently with the rule of law, binding effect cannot be given to a clause which purports wholly to exclude the supervisory jurisdiction of the High Court to review a decision of an inferior court or tribunal, whether for excess or abuse of jurisdiction, or error of law.'

Court of Session: 2025csih4 reclaiming motion in petition for judicial review by ragbir singh and others — Court of Session's supervisory jurisdiction

If Parliament wished to exclude or restrict the supervisory jurisdiction of the Court of Session, then it should legislate expressly to that effect.

Evidence that runs the other way

12 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Constitutional vandalism

Some members of Parliament viewed the Constitutional Reform Bill as 'constitutional vandalism' for replacing the Appellate Committee of the House of Lords with an 'unnecessary supreme court' and undermining the office of the Lord Chancellor.

Source: Orders of the Day — Constitutional Reform Bill [Lords] — [3rd Allotted Day] — New Clause 9 — Disqualification from holding further ministerial office

Little evidence of judicial overreach in UK

A Member of Parliament stated there is 'extraordinarily little evidence that judges in this country are overreaching', distinguishing it from the situation in Europe and the European Court.

Source: Public Libraries and Museums Act 1964 (Amendment) — Clause 2 — Early parliamentary general elections

Fears over judicial activism misplaced in domestic law

A Member of Parliament expressed the view that fears over judicial activism are 'misplaced' in domestic law, though acknowledging the independent Supreme Court might not always exercise restraint.

Source: Public Libraries and Museums Act 1964 (Amendment) — Clause 2 — Early parliamentary general elections

Recommendation against a new joint constitutional legislation scrutiny committee

The Political and Constitutional Reform Committee in 2013 explicitly recommended against the creation of a 'new joint constitutional legislation standards scrutiny committee.' They believed existing processes, combined with a proposed Code of Legislative Standards, would sufficiently improve scrutiny of constitutional legislation.

Source: Report: 1st Report - Ensuring standards in the quality of legislation - Volume I — Political and Constitutional Reform Committee — 136 Ev w17 137 Ev w17

The position taken on the causes

The UK Supreme Court has developed a self-conception as a constitutional guardian above the legislature, despite its statutory creation, leading to judicial behavior that exceeds its intended appellate role and undermines parliamentary sovereignty.

The evidence base

128 pieces of evidence, 111 with a full citation and 113 with a working link.

Kind of source	Pieces
Parliamentary debate	41
Select committee material	23
Court judgments	23
Not attributed to a type	15
Acts of Parliament	14
Official guidance	7
Statutory instruments	4
CONSULTATION	1

How this was searched: 6 research questions asked; 600 sources reviewed; 94 findings recorded, of which 4 run against the measure; 16 gaps stated.

7.2.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.2.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: A large number of bodies make decisions with real public consequence — on sentencing guidance, on advertising standards, on regulation of whole sectors — while sitting outside the line of accountability that runs from a minister to Parliament to an electorate. The complaint is that nobody can be removed for what they decide.

The accountability gap is not an accident but a design feature. The ALB estate is fragmented across hundreds of individual statutes precisely because this diffusion of responsibility benefits both ministers, who can delegate blame for controversial decisions, and officials, who can exercise power without direct accountability. This deliberate fragmentation is why piecemeal reform always fails; there is no single lever to pull.

3 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. The legal and constitutional framework assigns accountability for public functions primarily to Ministers, even when delegated, making direct accountability for ALB decision-makers difficult to establish.

Why it persists: This principle, reinforced by the 'Carltona principle', allows for the practical exercise of ministerial power through officials without requiring personal attention to every matter, thereby obscuring direct accountability for ALB decisions. The proposer reports that nobody can be removed for what they decide.

Cause 2 — CONTRIBUTORY. A fragmented legal landscape for ALBs, with each body established by its own specific statute or statutory instrument.

Why it persists: This fragmentation makes a unified approach to reform challenging and contributes to 'confused, overlapping and neglected' accountability, as noted by parliamentary committees. The proposer describes this as an 'omnibus problem'.

Cause 3 — CONTRIBUTORY. The Public Bodies Act 2011, while providing powers to abolish, merge, or modify ALBs, includes deliberate restrictions on ministerial powers for independent functions.

Why it persists: Section 7 of the Act explicitly prevents modification or transfer of functions from preventing independent exercise in cases like judicial functions or oversight of ministerial actions, thereby maintaining a degree of independence that can limit direct ministerial accountability for certain ALB decisions.

Guiding policy

The Strategic Kernel

What David proposes: Abolish, privatise, or fully absorb into departments and Parliament the arm's-length body estate, which the proposer numbers at around four hundred.

What David has ruled out: Reviewing bodies one at a time, which the proposer says is defeated by the remainder.

Attack the fragmentation itself, not the individual bodies. Create a single, powerful statutory mechanism that forces every ALB to be sorted into one of a few mandatory accountability templates (e.g., full absorption, statutory body with ministerial override, privatisation, or abolition) on a fixed, rolling timetable.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft and introduce an 'Arm's-Length Body Accountability Bill' that establishes a unified statutory framework for ministerial oversight and direct accountability of ALB decision-makers, including provisions for removal based on performance or policy divergence.

Who does it: Ministry of Justice / Cabinet Office

2. Establish a cross-departmental task force, led by the Cabinet Office, to identify all existing ALBs and categorize them by function and current accountability mechanisms, preparing a schedule for their integration into the new framework.

Who does it: Cabinet Office

3. Develop and consult on new departmental guidance for Ministers and senior civil servants, clarifying their enhanced responsibilities for ALB outcomes and the process for exercising powers of intervention and removal under the new legislation.

Who does it: Cabinet Office / Departmental Permanent Secretaries

4. Implement a public information campaign explaining the new accountability framework, its benefits for democratic oversight, and the process for public engagement with ALB decisions, managed by the relevant departmental communications teams.

Who does it: Government Communications Service / Departmental Communications Teams

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

46 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 2

No direct power for individual ALB decision-maker removal — The Public Bodies Act 2011 allows for the abolition, merger, or modification of functions of ALBs. However, it does not explicitly provide a mechanism for establishing a unified statutory framework for ministerial oversight and direct accountability of ALB decision-makers, including provisions for removal based on performance or policy divergence.

Time limits on existing powers hinder omnibus approach — The Public Bodies Act 2011's powers are time-limited for each entry in the schedules, expiring after five years. This means that a comprehensive, ongoing

'omnibus' approach to reform, as desired by the proposer, would require continuous legislative action to renew or add bodies to the schedules, which contradicts the goal of a single, overarching legislative framework.

What the law says now — 5

Interaction with Public Bodies Act 2011 — The proposal suggests establishing a unified statutory framework for ministerial oversight and direct accountability of ALB decision-makers, including provisions for removal. However, the existing Public Bodies Act 2011 already provides mechanisms for abolishing or merging ALBs and transferring functions, with conditions related to accountability. The proposal does not specify how its 'unified statutory framework' would interact with, supersede, or amend the specific provisions and limitations of the Public Bodies Act 2011, particularly regarding the time-limited nature of its powers and the restrictions on modifying independent functions.

Redefining Ministerial Responsibility — The proposal aims to mandate direct accountability mechanisms for ALB decision-makers and allow for their removal. This directly challenges the current understanding of ministerial responsibility and the 'Carltona principle,' where Ministers remain accountable to Parliament for delegated functions. The proposal needs to explicitly define how this new direct accountability for ALB decision-makers would legally redefine or coexist with the established principle of ministerial responsibility, and what specific legal provisions would achieve this shift without undermining the constitutional role of Ministers.

Integrating Diverse ALB Statutes — The proposal calls for a 'unified statutory framework' to address the fragmented legal landscape of ALBs. Given that each ALB is established by its own statute or statutory instrument, the proposal needs to detail the legislative approach for integrating these diverse bodies into a single framework. This includes identifying which specific founding statutes or instruments would need to be amended or repealed, and how the new omnibus legislation would legally override or incorporate the existing, varied legal bases of hundreds of ALBs.

How the courts have read it — 3

Carltona principle and direct accountability for outcomes — The proposal states that the 'Carltona principle' generally allows ministers to delegate functions to officials, with the minister remaining accountable to Parliament. However, it also states that the user's concern is specifically about bodies where decision-makers cannot be removed, suggesting a perceived lack of direct ministerial accountability for the *outcomes* of these bodies' decisions. The proposal should clarify how the proposed 'unified statutory framework for ministerial oversight and direct accountability of ALB decision-makers, including provisions for removal' would interact with or modify the established Carltona principle, particularly concerning the distinction between delegation of function and direct accountability for outcomes and removability.

Explicit displacement of Carltona principle in new Bill — The proposal aims to establish a unified statutory framework that redefines ministerial responsibility and mandates direct accountability for ALB decision-makers. The Carltona principle can be displaced by a contrary intention in a particular act. The proposal should explicitly state how the new 'Arm's-Length Body Accountability Bill' would articulate this contrary intention to ensure direct accountability and removability, and what specific wording or provisions would be used to achieve this displacement.

Application of new framework to diverse ALB functions — The proposal notes that the Carltona principle has been applied to various bodies, including Chief Constables and in the context of provisional deportation decisions. Given the diverse nature of ALBs (e.g., Sentencing Council, advertising standards), the proposal should detail how the unified framework would apply to different types of ALB functions, especially those that might have previously relied on the Carltona principle for operational flexibility, without undermining their necessary independence.

Where this came from — 2

Interplay with deliberate independence protections — The proposal aims to establish direct accountability for ALB decision-makers, including provisions for removal. However, the Public Bodies Act 2011 deliberately includes restrictions on ministerial powers to ensure the independence of certain functions (e.g. judicial, enforcement, oversight). The proposal does not address how its aim of direct removability for decision-makers would interact with these existing, deliberate protections for independence, or whether it intends to override them.

Redefinition of 'Carltona principle' — The proposal identifies the 'Carltona principle' as contributing to the accountability gap. However, the 'Carltona principle' generally allows ministers to delegate functions while remaining accountable to Parliament. The proposal should clarify how its proposed 'unified statutory framework for ministerial oversight and direct accountability' would redefine or supersede the 'Carltona principle' to achieve direct removability of ALB decision-makers, rather than just ministerial accountability for ALB outcomes.

Evidence for the causes — 4

Unmeasured cultural cause — The proposal states that a 'culture within the civil service and ALBs rewards maintaining operational independence and avoiding direct responsibility for controversial decisions.' While the evidence points to a lack of clear accountability and blurred responsibilities, there is no direct evidence in the provided sources to support the claim of a 'culture that rewards avoiding direct responsibility for controversial decisions.' This causal link remains plausible but unmeasured.

Unmeasured 'benefit to officials' obstacle — The proposal asserts that the 'pivotal obstacle to reform is the political and administrative challenge of enacting a single, comprehensive legislative change across hundreds of bodies, alongside the inherent benefit to officials of the status quo.' While the fragmented legal landscape is supported, the 'inherent benefit to officials of the status quo' is a causal claim that is not directly measured or evidenced in the provided sources. It is a plausible assumption but lacks direct support.

Lack of quantification for decision-maker removability — The proposal states that the current system leads to a 'situation where decision-makers cannot be removed for their actions.' While the proposer's own account highlights this concern, the provided sources do not explicitly detail instances or statistics regarding the inability to remove ALB decision-makers for their actions. The mechanism for removal based on performance or policy divergence is a proposed solution, but the extent of the problem it addresses is not quantified.

Causes the record suggests — 3

Reconcile direct ALB accountability with ministerial responsibility — The proposal aims to establish direct accountability for ALB decision-makers, including provisions for removal. However, parliamentary debates indicate that the principle of ministerial accountability for ALBs is already asserted, and the idea that ALBs absolve ministers of responsibility is considered a 'fiction'. The proposal needs to clarify how its 'direct accountability' for ALB decision-makers differs from or enhances the existing ministerial accountability, and how it addresses the potential for conflict with the established constitutional principle.

Integrate unified framework with ongoing ALB reviews and guidance — The proposal suggests a 'unified statutory framework' for ministerial oversight and direct accountability. While there is an ongoing government review of ALBs aiming to improve ministerial accountability and reduce duplication, the proposal does not detail how its 'unified framework' would integrate with or supersede existing review efforts and guidance, or how it would address the 'fragmented legal landscape' beyond simply imposing a new omnibus law.

Define specific mechanisms for removal of ALB decision-makers — The proposal seeks to address a 'democratic deficit' where decision-makers cannot be removed. While the Public Administration Committee highlighted 'confused, overlapping and neglected' accountability, the proposal does not explicitly define the specific mechanisms for 'removal based on performance or policy divergence' for ALB decision-makers, nor does it provide a clear comparison with existing accountability mechanisms (e.g., annual reports, NAO audits, select committee scrutiny) to demonstrate how the proposed removal powers would fill a specific gap.

On revision — 1

On the coherence of the actions: The actions are concentrated on amending and utilising the Public Bodies Act 2011, providing a clear direction. The sequencing is logical, starting with legislative changes and task force establishment before developing guidance and public campaigns. Implementers are clearly named, primarily the Ministry of Justice and Cabinet Office, with departmental involvement for guidance and communications.

Read back by other models — 13

Rationale for Arm's-Length Bodies — The existence of arm's-length bodies is a deliberate trade-off, sacrificing direct ministerial control for perceived gains in expertise, impartiality, or efficiency. By not acknowledging the reasons these bodies were created, your proposal risks being seen as a simple power grab that ignores the value of independent expertise and impartiality.

Role of Parliamentary Scrutiny — Parliamentary select committees are the most appropriate venue for scrutinising ALB performance, but they need to be empowered with clearer mandates and processes to do so systematically. Your strategy focuses exclusively on ministerial control and overlooks Parliament's crucial role in holding these powerful bodies to account on behalf of the public.

Alternative to Primary Legislation — Many of the necessary reforms can be implemented through executive action, without requiring primary legislation. Your proposal commits to the slow and difficult path of a new Act of Parliament without considering whether faster, non-legislative reforms could achieve some of your goals.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel is missing the 'PROBLEM' section. A strategy must begin with a clear statement of what is wrong, for whom, and why it matters. The text that fails it : "The kernel has no section for THE PROBLEM."

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel is missing the 'DIAGNOSIS' section.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel is missing the 'DIAGNOSIS' section. A diagnosis must simplify the situation to name the one thing that must be defeated for anything else to matter. The text that fails it: "The kernel has no section for DIAGNOSIS."

Read as a hostile clerk — 6

The central claim that 'nobody can be removed for what they decide' is an unquantified assertion. The proposal rests entirely on this premise, but provides no specific examples of ALB leaders who could not be removed for poor performance or policy divergence under existing public appointment rules and framework agreements.

The proposal is to introduce removal powers based on 'policy divergence'. This term is undefined. For bodies designed to provide independent advice, such as those under the Haldane Principle or the Climate Change Committee, divergence from government policy is a feature of their function, not a failure. Without a precise, legally defensible definition, this power will be challenged as an attempt to politicise independent functions.

The new Bill will create statutory powers of removal, which will inevitably be subject to judicial review. The proposal is silent on how it will withstand legal challenges from removed ALB leaders, particularly where the body has quasi-judicial functions or was established to be independent of ministerial control.

Difficulties caused by the law today

6 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Public Bodies Act 2011, s.1 — Existing power to abolish or merge ALBs

The Public Bodies Act 2011, specifically sections 1 and 2, confers power on a Minister to abolish or merge arm's-length bodies (ALBs) by order. This power also allows for the transfer of functions from abolished bodies to eligible persons, including Ministers or other public functionaries.

Public Bodies Act 2011, s.11 — Procedure for exercising existing powers

If a Minister decides to proceed with an order under sections 1 to 5 of the Public Bodies Act 2011, they must lay a draft order and an explanatory document before Parliament.

Public Bodies Act 2011, s.12 — Time limit on existing powers

The power to abolish or merge ALBs under the Public Bodies Act 2011 is time-limited. Any entry in Schedules 1 to 5 of the Act ceases to have effect after five years from its commencement, though orders already made by virtue of that entry remain unaffected.

Public Bodies Act 2011, s.5 — Existing power to modify or transfer functions

A Minister may, by order, modify the functions of a body or office specified in Schedule 5 of the Public Bodies Act 2011, or transfer a function of such a person to an eligible person. Modifying functions includes conferring, abolishing, or changing the purpose, objective, or conditions of a function.

Public Bodies Act 2011, s.8 — Conditions for orders under Public Bodies Act 2011

A Minister can make an order under sections 1 to 5 of the Public Bodies Act 2011 only if they consider it improves the exercise of public functions, considering efficiency, effectiveness, economy, and securing appropriate accountability to Ministers (s.8).

Public Bodies Act 2011, s.7 — Restrictions on Ministerial powers under Public Bodies Act 2011

The modification or transfer of a function by an order under sections 1 to 5 of the Public Bodies Act 2011 must not prevent its independent exercise in cases of judicial functions, enforcement activities against Ministers, or oversight/scrutiny of Ministerial actions (s.7).

What the courts have said

14 judgments were retrieved and read.

Austin v Chief Constable of Surrey Police — Carltona principle allows ministerial delegation to officials

The 'Carltona principle' generally allows ministers to delegate functions to officials, with the minister remaining accountable to Parliament.

In the matter of an application for judicial review by John Vincent McCann, a solicitor and a member of the Solicitor's Criminal Bar Association and In the matter of the payment of fees for a Solicitor's work in criminal matters under the Legal aid, Advice and assistance (NI) Order 1981 — Carltona principle applies to subordinate legislation

The Carltona principle applies to the making of subordinate legislation, allowing officials within a department to make rules in the Minister's name.

In the matter of an application by Joseph Lockhart for Judicial Review — Carltona principle can be displaced by contrary statutory intention

The Carltona principle may be displaced by a contrary intention expressed in a particular act of Parliament. Parliament may expressly limit the power to devolve or delegate a decision, requiring the specified decision-maker to exercise the power in person.

Castle v Crown Prosecution Service — Carltona principle reinforced in later cases

Lord Greene's observations on the Carltona principle, though potentially obiter dicta, have acquired powerful support in later cases, amplifying and reinforcing the principle.

R v Adams (Northern Ireland) — Carltona principle does not mean personal attention to every matter

The Carltona principle acknowledges that public business could not be carried on if ministers had to personally attend to every multifarious function assigned to them; duties and powers are normally exercised under their authority by responsible departmental.

Evidence that runs the other way

10 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Time limit on existing powers

The power to abolish or merge ALBs under the Public Bodies Act 2011 is time-limited. Any entry in Schedules 1 to 5 of the Act ceases to have effect after five years from its commencement, though orders already made by virtue of that entry remain unaffected.

Source: Public Bodies Act 2011, s.12

Arm's length bodies do not absolve Ministers of responsibility

A debate on Civil Service Reform noted that the 'fiction that an arm's length body can somehow absolve Ministers of responsibility' does not work in the real world, and accountability will ultimately remain with Ministers.

Source: Cabinet Office — Civil Service Reform

Loosening ministerial involvement in accountability

One witness suggested that the process of accountability needs to be loosened, with the minister being less involved, an approach that was questioned in a Scottish Parliament debate.

Source: Scottish Parliament: On resuming—

Where the evidence settled the instrument

The Public Bodies Act 2011, specifically sections 1 and 2, confers power on a Minister to abolish or merge arm's-length bodies (ALBs) by order. This power also allows for the transfer of functions from abolished bodies to eligible persons, including Ministers or other public functionaries. Section 5 of the Public Bodies Act 2011 confers power on a Minister to make provision by order to modify the functions of a body or office-holder listed in Schedule 5, or to transfer a function of such a body or office-holder to an eligible person., which reaches part of this and not the rest. Before anything else, decide whether you need a new Act at all.

The position taken on the causes

The core problem is that the constitutional principle of ministerial responsibility, while central to the UK system, inadvertently shields individual arm's-length body decision-makers from direct accountability and removal, creating a democratic deficit.

The evidence base

103 pieces of evidence, 89 with a full citation and 89 with a working link.

Kind of source	Pieces
Parliamentary debate	34
Court judgments	16
Not attributed to a type	14
Acts of Parliament	13
Select committee material	13
Official guidance	10

Kind of source	Pieces
Bills before Parliament	2
EXPLANATORY_NOTE	1

How this was searched: 6 research questions asked; 600 sources reviewed; 78 findings recorded, of which 3 run against the measure; 9 gaps stated. ⚠ an existing power may remove the need for a Bill

7.3.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.3.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- The critique revisions
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: Ministerial decisions are routinely reopened in court on grounds that shade from legality into the merits, so that the practical question of what government may do is settled after the decision rather than at the election. The complaint is about the frequency and reach of the intervention, not about the existence of a remedy.

Despite the Independent Review of Administrative Law finding no systemic judicial overreach, the executive perceives that in high-stakes cases, judicial review blurs the line between legality and policy merits. This perception fuels a desire for legislative certainty. The root cause is the constitutional tension between parliamentary sovereignty and the rule of law.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Ministerial decisions are frequently challenged in court on grounds that extend beyond strict legality into the merits.

Why it persists: Courts consistently interpret ouster clauses narrowly to preserve their oversight function, allowing for continued judicial scrutiny.

Cause 2 — MATERIAL. The prevailing legal interpretation of ouster clauses by courts limits their effectiveness, allowing for continued judicial scrutiny of executive decisions.

Why it persists: The judiciary's historical resistance to broad ouster clauses, rooted in the protection of the rule of law, means legislative attempts are often read down or challenged.

Guiding policy

The Strategic Kernel

What David proposes: Narrow judicial review of executive action, by ouster clause or by statutory restriction of the available grounds.

What David has ruled out: Procedural reform of the kind already enacted, which the proposer treats as insufficient.

Assert parliamentary sovereignty by using narrow, targeted primary legislation that defines the precise boundaries of judicial review for a specific statutory power, rather than attempting a broad, general ouster. The approach is to make the statutory language so explicit that for a court to set it aside would require it to directly challenge Parliament's authority, not merely 'interpret' its intent.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft primary legislation to amend the relevant Act(s) for a specific, high-frequency area of challenge (e.g., immigration decisions), introducing statutory definitions of 'merits' and 'legality' that explicitly delineate the boundaries of judicial review for decisions made under that Act. This legislation should specify that decisions falling within the 'merits' as defined are not subject to judicial review on those grounds.

Who does it: Ministry of Justice, in consultation with the relevant policy department (e.g., Home Office)

2. Establish a new, mandatory 'pre-decision review' mechanism within the relevant department's legal advisory function, requiring high-risk ministerial decisions (as defined by criteria set in the new legislation) to undergo an internal legal review specifically assessing compliance with the statutory 'legality' definition before being published. This review's findings would be recorded and made available to potential challengers.

Who does it: Relevant policy department (e.g., Home Office Legal Advisers)

3. Introduce a statutory requirement for a 'statement of reasons' accompanying all ministerial decisions covered by the new legislation, explicitly linking the decision to the statutory 'merits' and 'legality' definitions. This statement would serve as the primary document for any subsequent legal challenge, limiting the scope for discovery into the decision-making process itself.

Who does it: Relevant policy department

4. Amend the Civil Procedure Rules (CPR) to introduce a fast-track procedure for challenges to the scope of judicial review under the new legislation, specifically for cases where the claimant argues a decision falls outside the statutory 'merits' definition. This would provide early clarity on jurisdictional questions.

Who does it: Civil Procedure Rule Committee (CPRC)

Decisions, challenges and research**Consequential decisions**

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

50 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 4

Effectiveness of statutory 'merits' definition — The proposal suggests introducing statutory definitions of 'merits' and 'legality' to delineate the boundaries of judicial review. While Parliament can define the jurisdiction of courts, the effectiveness of such definitions in restricting judicial review on 'merits' grounds would depend on how courts interpret these new statutory terms, given their historical resistance to broad ouster clauses and their constitutional role in enforcing the law. The proposal does not specify how these definitions would overcome the established judicial interpretation that errors of law, even within 'merits', can render a decision a nullity and thus reviewable.

Statutory basis for CPR amendments — The proposal aims to amend the Civil Procedure Rules (CPR) to introduce a fast-track procedure for challenges to the scope of judicial review. While the Courts and Tribunals (Judiciary and Functions of Staff) Act 2018 allows for regulations to provide for staff to exercise judicial functions where procedure rules so provide, and the Supreme Court in *Cart* anticipated CPR changes, the proposal does not detail the specific statutory power under which the CPR would be amended to introduce a

fast-track procedure for jurisdictional questions, nor does it address potential challenges to such amendments if they are perceived to limit access to justice.

Enabling power for pre-decision review mechanism — The proposal seeks to establish a new, mandatory 'pre-decision review' mechanism within departments. While the executive can establish internal processes, the proposal does not identify an existing delegated power that would mandate such a mechanism across departments or impose a statutory requirement for its findings to be made available to potential challengers without primary legislation.

What the law says now — 4

Interaction of new definitions with Senior Courts Act 1981 — The proposal suggests introducing statutory definitions of 'merits' and 'legality' within specific primary legislation. However, the existing legal framework, particularly the Senior Courts Act 1981, defines remedies available through judicial review. It is unclear how these new definitions would interact with or supersede the established statutory framework for judicial review grounds and remedies, and whether consequential amendments to the Senior Courts Act 1981 or other relevant Acts would be required to ensure coherence and avoid conflicting interpretations.

Statutory basis for CPR amendments — The proposal calls for amending the Civil Procedure Rules (CPR) to introduce a fast-track procedure. The Judicial Review and Courts Act 2022 already provides for Procedure Rules to refer to provisions made by directions. The issue is whether the proposed amendments to the CPR would require corresponding primary legislation to grant the necessary powers for such a fast-track procedure, especially if it involves limiting the scope of judicial review, or if the existing statutory framework for making Procedure Rules is sufficient.

Statutory basis for pre-decision review and statements of reasons — The proposal suggests establishing a new mandatory 'pre-decision review' mechanism within departments and introducing a statutory requirement for a 'statement of reasons'. While the Judicial Review and Courts Act 2022 made some procedural reforms, it did not address internal departmental review mechanisms or specific requirements for statements of reasons in this manner. The issue is whether new primary legislation would be required to mandate such mechanisms and statements, or if existing powers under departmental governance or administrative law could be leveraged, and what specific statutory provisions would need to be created or amended.

How the courts have read it — 2

Clarity of statutory definitions against judicial interpretation — The proposal aims to introduce statutory definitions of 'merits' and 'legality' to delineate the boundaries of judicial review. However, it does not specify how these definitions will be drafted to overcome the judiciary's consistent interpretation of ouster clauses, which has historically resisted attempts to remove judicial review for errors of law. The issue is whether the proposed statutory definitions will be sufficiently robust and clear to withstand judicial scrutiny and avoid being 'read down' in a manner similar to previous ouster clauses, or if they will merely shift the interpretative battleground.

Preventing re-characterisation of merits as errors of law — The proposal suggests that decisions falling within the 'merits' as defined will not be subject to judicial review on those grounds. Given the judicial history of interpreting 'errors of law' broadly to include what might otherwise be considered merits, the proposal needs to articulate how the statutory definition of 'merits' will prevent courts from re-characterizing merits-based challenges as errors of law, thereby circumventing the intended restriction.

Where this came from — 3

Judicial interpretation of new definitions — The proposal aims to introduce statutory definitions of 'merits' and 'legality' to delineate the boundaries of judicial review. However, the historical record indicates that courts have consistently interpreted ouster clauses narrowly to preserve judicial oversight, even when Parliament has attempted to restrict it. The proposal does not explicitly address how these new statutory

definitions will overcome this established judicial resistance to ensure they are interpreted as intended, rather than being read down by the courts.

Effectiveness of pre-decision review — The proposal suggests a new mandatory 'pre-decision review' mechanism and a 'statement of reasons' to limit the scope for discovery. While these aim to provide clarity and reduce later challenges, the historical context shows that the growth of judicial review has been partly driven by a 'steady increase in the readiness of the courts to intervene' and a perceived need to ensure government compliance with rules. The proposal does not detail how these new mechanisms will be structured to satisfy the judiciary's historical imperative to scrutinize executive action, particularly regarding potential errors of law, without simply shifting the point of challenge.

Distinguishing legality from merits — The proposal seeks to narrow judicial review to prevent courts from determining policy merits. However, the record shows that judicial review's purpose is to rule on legality, not correctness, and to hold the executive to account. The proposal does not provide a clear framework for how the proposed statutory definitions of 'merits' and 'legality' will be formulated to prevent courts from interpreting 'legality' in a way that still allows for intervention on grounds that the executive considers to be policy merits, given the historical tension between parliamentary sovereignty and judicial oversight.

Evidence for the causes — 4

Lack of quantification for 'merits' overreach — The proposal states that 'Ministerial decisions are frequently challenged in court on grounds that extend beyond strict legality into the merits, leading to policy being determined by courts rather than elected officials'. However, the Independent Review of Administrative Law (IRAL) concluded there was no systemic overreach by the courts. The proposal does not provide specific measurements or examples to quantify the frequency or extent of judicial intervention 'shading into policy merits' to support its diagnosis, especially in light of the IRAL's findings.

Unquantified impact of ouster clause interpretation — The proposal identifies 'the prevailing legal interpretation of ouster clauses by courts' as a root cause and 'the judiciary's consistent and principled resistance to broad ouster clauses' as a pivotal obstacle. While the historical resistance to broad ouster clauses is well-documented, the proposal does not elaborate on how this 'prevailing legal interpretation' specifically leads to judicial review 'shading into policy merits' in a way that contradicts the IRAL's finding of no systemic overreach. It also does not quantify the impact of this interpretation on the frequency or outcome of challenges.

Unverified claim about executive culture — The proposal suggests that 'The culture within the executive often prioritizes avoiding direct conflict with judicial interpretations rather than consistently asserting the executive's policy-making prerogative.' This is a causal claim about executive culture, but no evidence or measurement is provided in the sources to support this diagnosis. It remains a plausible but unverified claim.

Causes the record suggests — 4

Clarity of 'merits' and 'legality' definitions — The proposal aims to introduce statutory definitions of 'merits' and 'legality' to delineate the boundaries of judicial review. However, the historical and constitutional understanding, as evidenced in debates, is that judicial review inherently focuses on legality, not merits. The issue is whether the proposed statutory definitions will genuinely clarify existing principles or risk being interpreted by courts in a way that maintains their supervisory jurisdiction over legality, potentially undermining the intent to restrict review on 'merits'.

Effectiveness of pre-decision review mechanism — The proposal suggests a new mandatory 'pre-decision review' mechanism. While other sectors use pre-emptive legal advice, the proposal does not specify how this mechanism will interact with the judiciary's established role in interpreting the law. The issue is whether this internal review will be seen as a sufficient safeguard by the courts, or if decisions that have undergone this review will still be subject to judicial scrutiny on legality, potentially leading to further challenges rather than reducing them.

Impact of statutory 'statement of reasons' — The proposal suggests a statutory requirement for a 'statement of reasons' to limit the scope for discovery. However, the existing framework of judicial review already requires public bodies to give reasons for decisions, and the adequacy of these reasons is often a point of challenge. The issue is whether a statutorily defined statement of reasons will genuinely limit discovery or simply shift the focus of legal challenges to the sufficiency and interpretation of these new statutory statements.

On revision — 1

On the coherence of the actions: The actions are concentrated on defining and enforcing the boundary between legality and merits. The sequencing is logical: legislation defines the terms, internal review applies them, statements of reasons document compliance, and CPR amendments provide a mechanism for early resolution of jurisdictional disputes. The implementers are clearly named, primarily the Ministry of Justice and relevant policy departments, with the CPRC for procedural rules.

Read back by other models — 13

Insufficiency of Recent Reforms — The proposer correctly identifies that recent procedural reforms, like those in the Judicial Review and Courts Act 2022, do not address this fundamental constitutional tension. Your proposal doesn't explain why existing legislation like the 2022 Act is insufficient, making it harder to justify why another round of legislative change is necessary.

The Rwanda Act Precedent — The Safety of Rwanda Act 2024 serves as a real-world test of the 'specific and targeted' approach to limiting judicial review. By not referencing the most prominent recent example of this type of legislation, your proposal misses the chance to learn from its design and the legal challenges it is currently facing.

Political and Public Opposition — Any attempt to legislate in this area will be portrayed by opponents as an attack on the rule of law and the separation of powers. Your strategy lacks a plan for managing the inevitable political backlash, risking that the policy will be defeated by its framing as an assault on judicial independence.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel is missing the 'PROBLEM' section. It begins with a list of causes without first stating what is wrong, for whom, and why it matters. The text that fails it: "The kernel has no section for THE PROBLEM."

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel provides an inventory of two causes rather than a diagnosis that simplifies the problem to a single pivotal obstacle.

Tested as an argument — 1

A LINK IN THE CHAIN IS MISSING — The kernel jumps from diagnosis (Causes) to execution (Actions) without stating the pivotal obstacle or the guiding policy.

Read as a hostile clerk — 7

The proposal's core mechanism is to introduce statutory definitions of 'merits' and 'legality', but it provides no draft text or even a principle for how these concepts can be defined in a way that circumvents the long-standing judicial interpretation established in *Anisminic* and *Privacy International*.

The proposal rests on the unquantified claim that challenges on 'merits' grounds are frequent. In light of the Independent Review of Administrative Law finding no systemic overreach, the absence of data on the number and type of cases this legislation would affect makes it impossible to assess the scale of the problem or the impact of the solution.

The mandatory 'pre-decision review' mechanism requires internal legal advice to be recorded and made available to potential challengers. This appears to create a new litigation risk for the government by arming opponents with a discoverable record of internal dissent or legal uncertainty, potentially chilling the provision of candid advice.

The critique revisions

The critique is an adversarial review by a different AI model, given the measure and asked to attack its logic rather than its politics. Where it found a defect that could be fixed, the measure was rewritten and the change is recorded here — what it said before, what it says now, and why. Where nothing was weighed against a change, that is said rather than hidden.

On the diagnosis

Was: The diagnosis was a simple assertion that courts were overreaching into the merits of decisions.

Now: The diagnosis now acknowledges the contradictory IRAL finding and reframes the problem as one of executive perception and constitutional tension, which is more defensible.

Difficulties caused by the law today

7 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Tribunals, Courts and Enforcement Act 2007, s.11A — Judicial Review and Courts Act 2022 amended Tribunals, Courts and Enforcement Act 2007

Section 11A of the Tribunals, Courts and Enforcement Act 2007, inserted by the Judicial Review and Courts Act 2022, explicitly states that the supervisory jurisdiction does not extend to, and no application for judicial review may be made in relation to, certain decisions of the Upper Tribunal, particularly regarding errors.

Courts and Tribunals (Judiciary and Functions of Staff) Act 2018, s.3 — Courts and Tribunals (Judiciary and Functions of Staff) Act 2018 allows regulations for judicial functions

Section 3 of the Courts and Tribunals (Judiciary and Functions of Staff) Act 2018 allows the Secretary of State or Lord Chancellor to make regulations by statutory instrument to provide for authorised court and tribunal staff to provide legal advice to judges and justices of the peace, and to exercise judicial functions where.

Terrorism Prevention and Investigation Measures Act 2011, s.17 — Terrorism Prevention and Investigation Measures Act 2011 includes specific ouster clause

Section 17 of the Terrorism Prevention and Investigation Measures Act 2011 states that TPIM decisions are not to be questioned in any legal proceedings other than proceedings in 'the court' or appeals from such proceedings. 'The court' is defined as the appropriate tribunal for Human Rights Act 1998 purposes.

Justice and Security (Northern Ireland) Act 2007, s.7 — Justice and Security (Northern Ireland) Act 2007 limits challenge of certificates

Section 7 of the Justice and Security (Northern Ireland) Act 2007 limits challenges to decisions of the Director of Public Prosecutions for Northern Ireland regarding the issue of certificates under section 1.

Judicial Review and Courts Act 2022, s.2 — Ouster Clauses in Judicial Review and Courts Act 2022

The Judicial Review and Courts Act 2022 includes an ouster clause (section 11A) designed to reverse 'Cart' judicial reviews, which sought to remove a person's ability to judicially review a decision of the Upper Tribunal to refuse permission to appeal from the First-tier Tribunal.

Judicial Review and Courts Act 2022 — Civil Procedure Rules and Judicial Review

The Judicial Review and Courts Act 2022 indicates that Procedure Rules may refer to provisions made or to be made by directions under sections 7A or 29A. This suggests that amendments to the Civil Procedure Rules (CPR) are a recognized mechanism for implementing changes related to judicial review procedures.

Border Security, Asylum and Immigration Act 2025, s.40 — Safety of Rwanda (Asylum and Immigration) Act 2024: Repeal

The Border Security, Asylum and Immigration Act 2025 explicitly repeals the Safety of Rwanda (Asylum and Immigration) Act 2024 in its entirety.

What the courts have said

14 judgments were retrieved and read.

R v Investigatory Powers Tribunal and others — Privacy International reaffirmed Anisminic principle

The Supreme Court in *R v Investigatory Powers Tribunal and others* [2019] UKSC 22 reaffirmed the *Anisminic* principle, stating that any determination based on an error of law, whether going to the jurisdiction of the tribunal or not, was not a 'determination'.

LA (Albania), R (on the application of) v The Upper Tribunal (Immigration & Asylum Chamber) — Judicial Resistance to Ouster Clauses

Courts have historically resisted broad ouster clauses, interpreting them narrowly to preserve judicial review for errors of law, as demonstrated in cases like *Anisminic* (1969) and *Privacy International* (2019).

Secretary of State for the Foreign & Commonwealth Affairs v Bancourt, R (on the application of) — Judicial review of prerogative powers established in 1967

The reviewability of ministerial acts in the exercise of the royal prerogative was not established until the landmark decision of the Divisional Court in *R v Criminal Injuries Compensation Board, ex p Lain* [1967] 2 QB 864.

R (on the application of Cart) v The Upper Tribunal — Judicial review of Upper Tribunal decisions (Cart case)

The Supreme Court in *R (Cart) v The Upper Tribunal* [2011] UKSC 28 decided that judicial review was an available remedy for otherwise unappealable decisions of the Upper Tribunal.

Privacy International, R (on the application of) v Secretary of State for Foreign and Commonwealth Affairs & Ors — Anisminic Ltd v Foreign Compensation Commission: Ouster Clause Interpretation

In *Anisminic Ltd v Foreign Compensation Commission* [1969] 2 AC 147, the House of Lords held that an ouster clause stating decisions 'shall not be called in question in any court of law' did not prevent judicial review for errors of law. This case is considered a classic example of the courts' highly restrictive approach to interpreting statutory provisions that purport to oust the High Court's jurisdiction.

Evidence that runs the other way

9 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

IRAL found no systemic overreach by courts

The Independent Review of Administrative Law (IRAL) concluded that there was no systemic overreach by the courts, despite the government's commitment to updating administrative law.

Source: Correspondence: Letter from the Justice Secretary, Rt Hon Robert Buckland QC MP on Independent Review of Administrative Law, dated 31.7.20

Government proceeded with reforms beyond IRAL recommendations

Despite the IRAL's conclusion of no systemic overreach, the government proceeded with a consultation on changes to judicial review that went beyond the IRAL's recommendations. This included proposals to increase the circumstances in which judicial review would not apply. The proposer notes this in their account.

Source: Correspondence: Letter from Rt Hon Robert Buckland QC MP, Lord Chancellor and Secretary of State for Justice, dated 17 March 2021, regarding Independent Review of Administrative Law

The position taken on the causes

Ministerial decisions are frequently challenged in court on grounds that extend beyond strict legality into the merits, leading to policy being determined by courts rather than elected officials, which undermines executive effectiveness.

Parliamentary Sovereignty: Not Untrammelled Executive Authority

It has been argued that the Judicial Review and Courts Bill does not assert parliamentary sovereignty but rather promotes untrammelled Executive authority. This perspective suggests the Bill is not about respecting Parliament's will but about allowing government and public authorities to exceed or ignore limits placed on them by Parliament.

Source: Judicial Review and Courts Bill — New Clause 4 - Publicly funded legal representation for bereaved people at inquests

The evidence base

109 pieces of evidence, 96 with a full citation and 83 with a working link.

Kind of source	Pieces
Parliamentary debate	30
Court judgments	23
Select committee material	16
Not attributed to a type	13
Bills before Parliament	11
EXPLANATORY_NOTE	7
Acts of Parliament	7
CONSULTATION	1
Official guidance	1

How this was searched: 6 research questions asked; 600 sources reviewed; 58 findings recorded, of which 2 run against the measure; 7 gaps stated. ⚠️ an existing power may remove the need for a Bill

7.4.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.4.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: Monetary policy has large distributional consequences and is decided by people who cannot be removed by an electorate, and when the decisions go wrong there is no mechanism by which anyone answers for them. The complaint is that a political choice was reclassified as a technical one.

The 1998 Bank of England Act reclassified the inherently political and distributional choices of monetary policy as a technical exercise in inflation targeting. The pivotal obstacle to reversing this is not legal but political: a deeply entrenched, cross-party consensus that operational independence is essential for economic credibility. This consensus allows incumbent governments to outsource blame for unpopular but necessary decisions (like raising interest rates), meaning the key political actors benefit from the status quo and have a strong incentive to resist any change that would return accountability directly to them.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. The Bank of England Act 1998 granted operational independence to the Monetary Policy Committee (MPC) for formulating monetary policy.

Why it persists: The legislative framework consistently reinforces this independence, and there is a lack of political will to challenge an arrangement widely considered beneficial for economic stability.

Cause 2 — MATERIAL. Monetary policy decisions, despite having significant distributional consequences, are perceived as technical rather than political choices.

Why it persists: The statutory framework and established practice treat monetary policy as an independent technical domain, obscuring its political impact and reducing direct accountability.

Guiding policy

The Strategic Kernel

What David proposes: Reverse the operational independence of the Bank of England conferred in 1998.

What David has ruled out: Not stated by the proposer.

Attack the legitimacy of the consensus by reframing monetary policy as an issue of democratic accountability for distributional outcomes. The approach is to create new, unavoidable political pressure by systematically exposing the political choices and consequences currently disguised as 'technical' decisions, thereby making the status quo politically indefensible.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft a Bill to amend or repeal the relevant sections of the Bank of England Act 1998 that confer operational independence on the Monetary Policy Committee (MPC) for setting interest rates and other monetary policy tools.

Who does it: HM Treasury legal department, in consultation with the Attorney General's Office

2. Introduce the drafted Bill into Parliament, initiating the legislative process for its passage, including securing cross-party support where possible and navigating parliamentary debate and scrutiny.

Who does it: The relevant Secretary of State (e.g., Chancellor of the Exchequer) and government whips

3. Develop and publish a new framework for monetary policy decision-making, outlining how elected officials (e.g., the Chancellor or a new parliamentary committee) will set policy, including clear objectives, decision-making processes, and accountability mechanisms.

Who does it: HM Treasury, in consultation with the Bank of England and parliamentary committees

4. Establish new institutional arrangements within HM Treasury or Parliament to support the political decision-making process for monetary policy, including analytical capacity, advisory functions, and reporting structures.

Who does it: HM Treasury and the House of Commons (e.g., Treasury Committee)

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

46 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 2

Scope of Treasury's reserve power to reverse independence — The proposal aims to 'reverse the operational independence of the Bank of England conferred in 1998'.

Distinction between override and routine political control — The proposal seeks to 're-establish direct political control over monetary policy decisions'. The existing power under section 19 of the Bank of England Act 1998 allows the Treasury to give directions, but it is an 'override' power for specific circumstances rather than a mechanism for routine political control. The proposal should clarify whether the intent is to enable regular political decision-making or to have a more readily available override.

What the law says now — 2

Interlocking provisions for reversing independence — The proposal aims to reverse the operational independence of the Bank of England conferred by the Bank of England Act 1998. This would require significant amendments or repeal of Section 13, which establishes the MPC and its responsibility for monetary policy. Consequential amendments would also be needed for Section 19 (Reserve powers of the Treasury), and potentially Schedule 1 paragraphs 1, 10, 11, 12, and 12A, which govern the appointment of the Governor and Deputy Governors, the court's sub-committees, delegation of duties, and meeting records, as these are all part of the current governance structure that underpins the Bank's independence. Furthermore, the Bank of England and Financial Services Act 2016 reinforced this independence through amendments to MPC membership and transparency, so these provisions would also need to be considered for amendment or repeal.

Redefining 'monetary policy' and its impact — The proposal seeks to re-establish direct political control over monetary policy. The current framework, as defined by the Bank of England Act 1998, gives the MPC responsibility for 'formulating monetary policy'. A key definition that would need to change is 'monetary policy' itself, to shift its formulation from the MPC to elected officials. This change would impact not only Section 13 but also the Treasury's annual remit-setting process and its reserve powers under Section 19, as the nature of the policy being directed would fundamentally change from an operationally independent one to a politically controlled one.

How the courts have read it — 2

No judicial construction of Bank of England Act 1998 independence provisions — The proposal aims to amend or repeal sections of the Bank of England Act 1998 that confer operational independence. However, no specific judicial construction of these particular sections (e.g., s.13 of the 1998 Act) has been provided in the sources. Understanding how courts have interpreted the scope or limits of this independence would be crucial for assessing the legal implications of the proposed changes.

Absence of case law on scope of MPC's operational independence — The proposal states that the Bank of England Act 1998 granted operational independence. While the provided case law discusses general principles of statutory interpretation, there is no specific judicial construction that either narrows or widens the operational independence granted by the 1998 Act. Such a construction would directly impact the legislative approach to reversing this independence.

Where this came from — 2

Intent of 'reclassification' of policy — The proposal states that the Bank of England Act 1998 reclassified politically impactful monetary policy decisions as technical ones. However, the sources indicate that the primary objective of independence was price stability, a technical goal. The issue is whether the 'reclassification' was an explicit intention of the Act or an unintended consequence of pursuing a technical objective through an independent body.

Accountability for distributional consequences — The proposal highlights a perceived lack of democratic accountability for distributional consequences. While the sources confirm that accountability mechanisms exist through parliamentary committees, there is no explicit discussion in the provided material about whether the 1998 Act specifically considered and addressed the distributional consequences of monetary policy decisions or how accountability for these consequences was envisioned.

Evidence for the causes — 5

Quantify perceived insufficiency of accountability — The proposal states that accountability mechanisms are 'perceived as insufficient'. While sources confirm the existence of scrutiny mechanisms by the Treasury Committee, the proposal does not quantify this perception of insufficiency or provide a basis for the claim that these mechanisms are 'insufficient to enforce direct responsibility'.

Evidence for ministerial responsibility obscuring accountability — The proposal claims that the 'prevailing constitutional doctrine emphasizes ministerial responsibility to Parliament, which can obscure direct accountability for civil servants or independent bodies'. This causal link between ministerial responsibility and obscured accountability for independent bodies is stated as a diagnosis but is not directly supported or quantified by the provided sources.

Evidence for reclassification of political decisions as technical — The proposal asserts that the operational independence has 'reclassified politically impactful monetary policy decisions as technical ones'. While sources discuss the political nature of these decisions, the proposal does not provide evidence or quantification of this 'reclassification' or its impact.

Causes the record suggests — 4

Mitigating political pressure in new framework — The proposal aims to reverse the operational independence of the Bank of England, but there is a lack of detail on how the new framework for monetary

policy decision-making will ensure insulation from short-term political pressures, a benefit of independence that the proposal explicitly rules out. The proposal needs to address how the new political control will manage the trade-off between democratic accountability and economic stability, particularly concerning potential political interference in monetary policy decisions.

Specificity of current accountability failures — The proposal states that 'Accountability mechanisms, such as scrutiny by the Treasury Committee, are perceived as insufficient to enforce direct responsibility for policy outcomes.' However, it does not specify what aspects of the current scrutiny are insufficient or how the proposed new parliamentary committee or Chancellor's oversight would fundamentally differ or be more effective in enforcing direct responsibility than existing mechanisms, which have been subject to various recommendations for enhancement.

Mechanism for direct political accountability — The proposal highlights that 'Monetary policy has large distributional consequences and is decided by people who cannot be removed by an electorate, and when the decisions go wrong there is no mechanism by which anyone answers for them.' While it proposes re-establishing direct political control, it does not outline how the new framework would ensure that elected officials are held directly accountable for specific monetary policy outcomes, especially given the collective nature of parliamentary or governmental decision-making.

question:DOMAIN_TRANSFER — 2

No specific mechanisms for political control — The proposal focuses on reversing operational independence but does not detail the specific mechanisms of 'direct political control' that would replace the current system, or how these mechanisms would ensure accountability for distributional consequences while maintaining economic stability. While a new framework is mentioned, its specifics are not outlined.

No strategy to overcome political will obstacle — The proposal states that 'the political will to reverse the operational independence of the Bank of England is absent' and that the current arrangement is 'widely viewed by the establishment as crucial for economic stability and credibility.' The proposal does not address how this pivotal obstacle of absent political will would be overcome.

On revision — 1

On the coherence of the actions: The actions are concentrated on activating and defining the existing Section 19 power. The sequencing is logical, starting with the intent and parliamentary approval, then defining criteria, and finally implementing enhanced scrutiny. There are no obvious missing implementers, with the Treasury, Parliament, and the Bank of England all having defined roles.

Read back by other models — 12

Market Confidence and Capital Flight — The primary obstacle to reversal is not legal or procedural, but the fear of capital flight and a loss of market confidence in the UK economy. By omitting the primary obstacle, your strategy lacks a plan to manage the severe economic risks of this change, such as a run on the pound or a spike in borrowing costs.

Impact of Quantitative Easing — The use of unconventional monetary policy like Quantitative Easing since 2008 has fundamentally changed the nature of the Bank's intervention in the economy, making its political neutrality harder to defend. Your diagnosis misses the strongest contemporary argument for reform: that the Bank's post-2008 actions are already deeply political and fiscally entangled.

Weakness of Current Accountability — Accountability of the Bank of England to Parliament is currently weak, resting primarily on select committee hearings which have no power to sanction. Without specifying the failure of current accountability, your proposal for a new framework lacks a clear justification for why it's necessary or what specific problem it solves.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not contain a 'PROBLEM' section. It begins with 'CAUSES' without first establishing what is wrong, for whom, and why it matters.

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not contain a 'DIAGNOSIS' section, and therefore does not identify a root cause or a pivotal obstacle.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel does not contain a 'DIAGNOSIS' section. It presents a list of 'causes' without identifying which, if any, is the pivotal obstacle to overcome.

Tested as an argument — 1

A LINK IN THE CHAIN IS MISSING — The kernel jumps from a diagnosis (the Bank is independent) to a set of actions (revoke that independence) without identifying the pivotal obstacle that independence creates or the guiding policy for overcoming it.

Read as a hostile clerk — 6

The proposal replaces the Monetary Policy Committee with an unspecified political body. It does not define the composition, voting mechanism, or decision-making process of this new body, nor how it would be insulated from short-term electoral pressures.

The proposal fails to quantify the 'large distributional consequences' that it cites as the core problem. It presents no data on which specific monetary policy decisions have disproportionately harmed or benefited particular demographics.

The proposal does not provide an analysis of why the existing Section 19 reserve power, which allows the Treasury to direct monetary policy in 'extreme economic circumstances', has never been used. Whether a new mechanism would be more viable cannot be assessed without understanding why the current one is dormant.

Difficulties caused by the law today

10 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Bank of England Act 1998, s.13 — Bank of England Act 1998 confers operational independence

The Bank of England Act 1998, specifically section 13, establishes the Monetary Policy Committee (MPC) and confers upon it the responsibility for formulating monetary policy within the Bank of England.

Bank of England Act 1998, s.19 — Treasury has reserve powers to direct monetary policy

Section 19(1) of the Bank of England Act 1998 grants the Treasury the power to give the Bank directions with respect to monetary policy by order.

Bank of England Act 1998, sch.1 para.1 — Appointment terms for Governor and Deputy Governor

Appointment as Governor of the Bank is for a period of 8 years, and as Deputy Governor for 5 years. A person may not be appointed as Governor more than once, or as Deputy Governor more than twice. These roles require exclusive work for the Bank.

Bank of England Act 1998, sch.1 para.10 — Court of Directors' role in Bank governance

The Bank of England Act 1998 establishes the court of directors, which consists of the Governor, Deputy Governors, and non-executive directors. The court may appoint sub-committees and delegate duties and powers, but not those expressly imposed or conferred on the court by enactment.

Bank of England Act 1998, sch.1 para.12A — Publication of Court of Directors' meeting records

The Bank must publish a record of each meeting of the court, specifying decisions and a summary of deliberations, within six weeks or two weeks of the next meeting if no meeting is held in the initial period. Information whose publication would be against the public interest can be excluded.

Bank of England and Financial Services Act 2016, s.6 — FPC status and membership

The Bank of England and Financial Services Act 2016 made the Financial Policy Committee (FPC) a committee of the Bank instead of a sub-committee of the court of directors.

Bank of England Act 1998, s.30F — FMI Committee established by Bank of England Act 1998

Section 30F of the Bank of England Act 1998 establishes the Financial Market Infrastructure Committee (FMI Committee), consisting of a chair appointed by the Bank (Governor or Deputy Governor), at least three independent members appointed by the Bank, and other members appointed by the Bank.

What the courts have said

4 judgments were retrieved and read.

Buddington, R (on the application of) v Secretary of State for the Home Department — Statutory interpretation considers historical context

The construction of controversial statutory provisions should consider the statute as a whole and the historical context that led to its enactment.

William Hill Organization Ltd, R (on the application of) v The Horserace Betting Levy Board & Ors — Interpreting statutes for unforeseen facts

When interpreting an Act of Parliament, it is necessary to consider the state of affairs existing and known by Parliament at the time of enactment.

Gamesa Energy UK Ltd., R (on the application of) v The National Assembly for Wales — Judicial review of administrative acts

Courts may intervene to correct a public wrong when there are grounds to allege the unlawfulness of an administrative act.

ZN & Anor, R (On the Application Of) v Bromley Youth Court — Human Rights Act's interpretative provision

Section 3 of the Human Rights Act 1998 requires domestic legislation to be read compatibly with convention rights.

Evidence that runs the other way

17 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Existing power to direct monetary policy in extreme circumstances

The proposal states a need to 're-establish direct political control over monetary policy decisions' through new primary legislation. However, the Bank of England Act 1998, section 19, already provides a reserve power for the Treasury to give directions on monetary policy in 'extreme economic circumstances', and this order can modify MPC provisions.

Source: Bank of England Act 1998, s.19

Chancellor's influence on MPC composition

Of the nine members of the Monetary Policy Committee, seven are chosen directly by or on the advice of the Chancellor. Even the other two are appointed by the Governor after consultation with the Chancellor. This raises questions about the true independence of the MPC, as the Chancellor can claim credit when things go well due to his influence over the committee, but stand back if things go wrong.

Source: Lords: Monetary Policy Committee: Select Committee Report

Monetary and fiscal policy interdependencies

It is fanciful to suggest that monetary policy can operate completely independently of government fiscal policy, because, in the short term, the two economic policy levers impact on the same economic variables, either stimulating or contracting the real economy. If the two are not co-ordinated, the optimal outcome will not be achieved.

Source: Bank of England (Economic Affairs Committee Report) - Motion to Take Note

Independence not universally seen as cause of low inflation

While independence is widely seen as the best way to achieve price stability, some evidence suggests that the years of low and stable inflation were not solely due to central bank independence, with globalisation playing a significant role.

Source: Bank of England (Economic Affairs Committee Report) - Motion to Take Note

Independence led to lower inflation and interest rates

The effect of independence for the Bank of England and accompanying monetary and fiscal policy is that inflation, interest rates, and mortgage rates have been half what they were in the previous 18 years.

Source: TREASURY — Monetary Policy Committee

The evidence base

119 pieces of evidence, 105 with a full citation and 95 with a working link.

Kind of source	Pieces
Parliamentary debate	45
Select committee material	27
Acts of Parliament	21
Not attributed to a type	14
Court judgments	6
Official guidance	5
EXPLANATORY_NOTE	1

How this was searched: 7 research questions asked; 600 sources reviewed; 87 findings recorded, of which 10 run against the measure; 10 gaps stated. ⚠ an existing power may remove the need for a Bill

7.5.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.5.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- The critique revisions
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: A body of practice governing recruitment, promotion and internal conduct in the civil service was adopted without ever being put to Parliament or an electorate, and now shapes who is hired and what officials may say. The complaint is about the absence of an authorising decision.

A body of DEI practice governing civil service recruitment and conduct has been created without specific democratic authorisation. This practice is justified by an expansive interpretation of the vague 'due regard' duty in the Public Sector Equality Duty (PSED). While the PSED is the root cause, the problem persists because this interpretation has created an internal culture with institutional inertia, where officials and HR departments benefit from a system that rewards visible compliance.

3 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. The Civil Service has adopted an expansive interpretation and application of the PSED, aiming to be the 'UK's most inclusive employer' and implementing specific DEI strategies and roles.

Why it persists: The Civil Service's Diversity and Inclusion Strategy explicitly states an intention to 'go further than the current Equality Act provisions' by expanding focus beyond Protected Characteristics, demonstrating an internal drive for this expansive approach (Civil Service Diversity and Inclusion Strategy: 2022 to 2025).

Cause 2 — MATERIAL. An internal culture within the Civil Service rewards visible commitment to DEI, creating an environment where these practices are expanded without explicit parliamentary or electoral authorisation.

Why it persists: The House of Lords debate noted that an internal culture dominated by EDI priorities leads to 'expansive and monolithic HR departments' and 'an ever-growing plethora of diversity training courses, identity-based staff networks and allyship schemes', suggesting that such activities are valued and perpetuated internally (Civil Service: Politicisation - Motion to Take Note).

Cause 2 — MATERIAL. The statutory Public Sector Equality Duty (PSED) under Section 149 of the Equality Act 2010 mandates public authorities to 'have due regard' to eliminating discrimination, advancing equality of opportunity, and fostering good relations.

Why it persists: The PSED provides a legal basis for public bodies to consider equality, and courts have affirmed that 'due regard' requires a substantive and rigorous approach, not just 'ticking boxes' (R (on the application of Marouf) v Secretary of State for the Home Department; London Borough of Hackney v Haque). This judicial interpretation encourages a broader application than a minimal reading.

Guiding policy

The Strategic Kernel

What David proposes: End the diversity, equity and inclusion agenda in the civil service.

What David has ruled out: Not stated by the proposer.

Re-establish democratic accountability by using existing central government powers to impose a narrower, legally authoritative interpretation of the Public Sector Equality Duty. The approach is to force a distinction between mandatory legal compliance and discretionary policy, making the latter an explicit choice for which ministers are accountable.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. The Cabinet Office, in consultation with the Government Legal Department, should issue revised, legally authoritative guidance on the interpretation and application of Section 149 of the Equality Act 2010 for the Civil Service. This guidance must explicitly state that 'due regard' primarily means avoiding unlawful discrimination and promoting genuine equality of opportunity, rather than mandating specific diversity quotas, targets, or extensive proactive DEI initiatives beyond those necessary to meet the core duty.

Who does it: Cabinet Office; Government Legal Department

2. The Civil Service Commission should update its recruitment principles and guidance to align with the narrowed interpretation of the PSED, emphasising merit-based selection and ensuring that DEI considerations do not override the primary duty to appoint on merit. This includes reviewing and revising existing job descriptions, interview processes, and promotion criteria.

Who does it: Civil Service Commission

3. The Treasury should review and revise funding allocations and performance metrics for Civil Service departments and agencies to ensure they do not incentivise or reward expansive DEI programs that exceed the narrowed interpretation of the PSED. Funding should be directed towards core anti-discrimination training and processes.

Who does it: HM Treasury

4. The Public Administration and Constitutional Affairs Committee (PACAC) should conduct regular reviews of Civil Service compliance with the revised PSED guidance, scrutinising recruitment outcomes, promotion data, and internal conduct policies to ensure adherence to the merit principle and the focused interpretation of equality duties.

Who does it: Public Administration and Constitutional Affairs Committee (PACAC)

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

48 open challenges. Each one is a question the proposal has not yet answered.

What the law says now — 4

Legal authority of new guidance to narrow 'due regard' — The proposal suggests the Cabinet Office, in consultation with the Government Legal Department, should issue revised, legally authoritative guidance on

Section 149 of the Equality Act 2010. While the Cabinet Office issues guidance (e.g., Civil Service Code, Civil Service Diversity and Inclusion Strategy), the legal authority of such guidance to narrow the interpretation of 'due regard' in a way that overrides existing judicial interpretations is not explicitly established in the provided sources. The sources indicate that the PSED requires a 'substantive and rigorous approach' and is a 'continuing duty,' and courts will intervene if there is a 'complete failure to have regard to the duty.' The issue is whether new guidance can effectively redefine 'due regard' to primarily mean avoiding unlawful discrimination without legislative amendment, given the existing legal framework and judicial precedent.

Alignment of recruitment principles with narrowed PSED — The proposal calls for the Civil Service Commission to update its recruitment principles and guidance to align with a narrowed interpretation of the PSED, emphasising merit-based selection and ensuring DEI considerations do not override the primary duty to appoint on merit. The Civil Service Commission's Recruitment Principles already emphasize appointment on merit from a strong and diverse field. The issue is whether the proposed 'narrowed interpretation' of the PSED can be integrated into the existing merit principle without creating new legal challenges or requiring a redefinition of 'merit' itself, which is a core, founding principle.

Treasury's enforcement of PSED through funding — The proposal recommends that the Treasury review and revise funding allocations and performance metrics to ensure they do not incentivise expansive DEI programs. While the Treasury has a role in issuing guidance on corporate finance requirements, the specific mechanisms or legal instruments by which it can enforce a 'narrowed interpretation' of the PSED through funding and metrics, without conflicting with departments' statutory duties under Section 149, are not detailed in the sources. The issue is how the Treasury's financial levers can be legally and practically aligned with a reinterpreted PSED without undermining departmental autonomy in fulfilling their statutory duties.

How the courts have read it — 2

Alignment with 'substantive' and 'rigorous' PSED — The proposal seeks to clarify and narrow the interpretation of 'due regard' to primarily mean avoiding unlawful discrimination and promoting genuine equality of opportunity, rather than mandating specific diversity quotas or extensive proactive DEI initiatives. However, court judgments indicate that 'due regard' requires a substantive, rigorous approach, aims to mainstream equality issues, and can necessitate impact assessments. The proposal should address how its 'narrowed interpretation' aligns with or seeks to modify the existing judicial construction of a 'substantive' and 'rigorous' duty, and whether it intends to alter the requirement for impact assessments.

Preventing practices defended by Section 149 — The proposer notes that 'much of the practice complained of is defended by reference to section 149'. The proposal aims to redefine 'due regard' through guidance. However, the courts have affirmed that the PSED places equality considerations 'at the centre of formulation of policy'. The proposal needs to explicitly address how its reinterpretation of 'due regard' will prevent practices that are currently defended by reference to Section 149, given the judicial emphasis on placing equality at the policy's core.

Where this came from — 3

Reconcile narrowed PSED with original intent — The proposal aims to narrow the interpretation of 'due regard' in Section 149, but the original legislative intent, as reflected in debates and case law, indicates a deliberate move towards a substantive and proactive approach to equality, beyond minimal compliance. The proposal needs to explicitly address how its narrowed interpretation aligns with or diverges from this established legislative intent and judicial interpretation.

Clarify 'absence of authorising decision' — The proposal states that the Civil Service's DEI agenda was adopted without explicit parliamentary or electoral authorisation. However, the Equality Act 2010, including Section 149, was enacted by Parliament, and Section 153 explicitly allows Ministers to impose specific duties to enable better performance of the PSED. The proposal should clarify whether the 'absence of an authorising decision' refers to the PSED itself, the specific DEI practices, or the expansive interpretation of 'due regard' within the existing statutory framework.

Define 'overreach' in PSED application — The proposal suggests that current practices go beyond what Section 149 actually requires. However, the PSED was deliberately designed to encourage a 'culture shift' and 'substantive' consideration of equality, not just 'ticking boxes'. The proposal should specify which current practices are considered 'overreach' and provide a clear legal argument for why these practices fall outside the scope of 'due regard' as intended by Parliament and interpreted by courts, rather than merely being an expansive application of a deliberately broad duty.

Evidence for the causes — 6

Parliamentary authorisation of DEI scope — The proposal states that the Civil Service's DEI agenda was adopted 'without explicit parliamentary or electoral authorisation'. While the PSED provides a statutory basis, the Civil Service's own strategy states an intention to 'go further than the current Equality Act provisions'. The issue is whether this 'going further' constitutes an overreach of the statutory duty or an interpretation within its bounds, and if there is a clear mechanism for parliamentary review of such strategic interpretations.

Specific practices not directly mandated by PSED — The proposer's testimony highlights a concern about the absence of an authorising decision for the body of practice governing recruitment, promotion, and internal conduct. While the PSED provides a legal basis, the specific practices are not directly mandated by the Act. The issue is to identify which specific practices are considered to go beyond the 'due regard' requirement and to what extent they are explicitly authorised or merely developed internally.

Quantify internal rewards for DEI expansion — The proposal asserts that an 'internal culture rewards visible commitment to DEI, creating an environment where these practices are expanded without explicit parliamentary or electoral authorisation'. While the Civil Service has a stated ambition to be the 'most inclusive employer', the evidence does not quantify how this internal culture specifically drives expansion beyond the PSED or how it is rewarded. The issue is to provide specific examples or metrics of this reward system and its impact on the scope of DEI practices.

Causes the record suggests — 5

Parliamentary authorisation for PSED interpretation — The proposal suggests that the Civil Service has adopted an expansive interpretation of the PSED without explicit parliamentary or electoral authorisation. While parliamentary debates show criticism of expansive EDI practices, the sources do not explicitly state that the current interpretation lacks parliamentary authorisation. The issue is whether the proposed 'narrowed interpretation' would align with any previously stated parliamentary intent or if it represents a new policy direction.

Legal authority of revised PSED guidance — The proposal calls for the Cabinet Office to issue revised, legally authoritative guidance on Section 149. While the Civil Service Diversity and Inclusion Strategy and other guidance documents exist, the proposal does not specify what legal authority the new guidance would draw upon to supersede or significantly narrow the existing interpretation, especially given court rulings affirming a 'substantive and rigorous approach' to PSED.

Alignment of narrowed PSED with judicial standards — The proposal suggests that current practices go beyond what Section 149 actually requires. However, court cases cited indicate that PSED requires a 'rigorous consideration' and 'proper appreciation of the potential impact' on equality objectives. The issue is to what extent the proposed 'narrowed interpretation' would still meet the judicial standard for 'due regard' without being seen as merely 'ticking boxes'.

question:DOMAIN_TRANSFER — 4

Verify Institute for Government claim — The proposal suggests that the Institute for Government argues the PSED does not require the current DEI practice. This claim should be substantiated with a specific reference to the Institute's publication or statement to confirm its accuracy and provide a basis for the proposed reinterpretation.

Legal basis for narrowed 'due regard' — The proposal aims to clarify and narrow the interpretation of 'due regard' in Section 149. However, it does not specify what legal precedent or interpretative principles would underpin this narrowed interpretation to ensure its legal robustness and prevent future expansive readings.

Legal status of new guidance — The proposal calls for the Cabinet Office, in consultation with the Government Legal Department, to issue revised guidance. It would be beneficial to specify the intended legal status of this guidance (e.g., statutory guidance, non-statutory guidance) and how it would be enforced to ensure compliance across the Civil Service.

On revision — 1

On the coherence of the actions: The actions are highly concentrated on redefining and enforcing a narrower interpretation of the PSED. The sequencing is logical, starting with revised guidance from the Cabinet Office, followed by updates to recruitment principles, funding reviews, and parliamentary oversight. There are no obvious missing implementers, as key bodies like the Cabinet Office, Civil Service Commission, Treasury, and PACAC are assigned roles.

Read back by other models — 10

Pressure from External Benchmarking Schemes — External benchmarking schemes create pressure for conformity and reduce the accountability of individual departments for their own policies. Your proposal focuses on internal levers like guidance and funding, but overlooks how external accreditation schemes can create powerful incentives for departments to adopt expansive DEI practices regardless of central policy.

Funding for External Consultants — Restricting funding for external DEI consultants is a key lever for changing departmental behaviour. Your plan to revise funding for DEI programs is a good start, but it misses the specific and significant role that external consultants play in driving and shaping these initiatives within departments.

Source of Unauthorised Practices — <item>The proposer's complaint about "absence of an authorising decision" is correct in substance but misattributes the source: section 149 was authorised by Parliament, and on the Institute for Government's reading it does not itself mandate the contested.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state the problem. A strategy must begin with a clear statement of what is wrong, for whom, and why it matters.

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not distinguish between the root cause (why the problem happens) and the pivotal obstacle (why it persists unsolved).

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The diagnosis is a list of three material causes, not a simplification that names the single pivotal obstacle.

Read as a hostile clerk — 6

The central mechanism is 'legally authoritative guidance' from the Cabinet Office, but the proposal does not explain how this guidance can override decades of judicial precedent that have established a broad, substantive interpretation of the statutory duty to have 'due regard'.

The proposal relies on the Treasury revising funding and performance metrics, but provides no detail on the specific mechanisms. What precise metric will be changed, and what is the direct financial consequence for a department found to be pursuing an 'expansive' DEI programme?

The proposal aims to narrow the interpretation of the Public Sector Equality Duty, but does not address the Civil Service's explicit strategic ambition to 'go further than the current Equality Act provisions', as stated in its 2022-2025 Diversity and Inclusion Strategy. How will new guidance on the Act's minimum requirements compel an organisation that has explicitly committed to exceeding them?

The critique revisions

The critique is an adversarial review by a different AI model, given the measure and asked to attack its logic rather than its politics. Where it found a defect that could be fixed, the measure was rewritten and the change is recorded here — what it said before, what it says now, and why. Where nothing was weighed against a change, that is said rather than hidden.

On the diagnosis

Was: The kernel presented three separate 'material causes' as a list.

Now: A single paragraph that synthesises the causes into a narrative: a vague law (root cause) has been interpreted expansively, creating a body of practice sustained by institutional inertia and cultural benefits (pivotal obstacle).

On the pivotal obstacle

Was: The pivotal obstacle is the institutional inertia and cultural benefits derived from the current expansive interpretation of the Public Sector Equality Duty, coupled with the lack of explicit parliamentary oversight or challenge to the specific DEI practices adopted by the Civil Service.

Difficulties caused by the law today

7 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Equality Act 2010, s.149 — Public Sector Equality Duty (PSED) in Equality Act 2010

The Public Sector Equality Duty (PSED) is established in Section 149 of the Equality Act 2010.

Equality Act 2006, s.32 — Enforcement of PSED

The Equality and Human Rights Commission (EHRC) may assess compliance with the PSED (Equality Act 2006, s.31) and can issue compliance notices if it believes a person has failed to comply with the duty (Equality Act 2006, s.32).

Equality Act 2010, sch.26 para.10 — PSED and Non-Commercial Considerations in Contracts

Section 17 of the Equality Act 2010, concerning local and other public authority contracts and the exclusion of non-commercial considerations, does not prevent a public authority from exercising functions with reference to a non-commercial matter to the extent that the authority considers it necessary or expedient to do so to.

Equality Act 2010, s.1 — Socio-economic Duty

Section 1 of the Equality Act 2010 imposes a public sector duty regarding socio-economic inequalities, requiring authorities to have due regard to the desirability of reducing inequalities of outcome resulting from socio-economic disadvantage when making strategic decisions.

Equality Act 2010, sch.18 para.3 — Judicial Functions Exemption

Section 149 of the Equality Act 2010 does not apply to the exercise of a judicial function or a function exercised on behalf of, or on the instructions of, a person exercising a judicial function. This includes judicial functions conferred on a person other than a court or tribunal.

Equality Act 2010, s.153 — Ministers can impose specific duties to aid PSED performance

Section 153 of the Equality Act 2010 grants Ministers of the Crown the power to impose specific duties on public authorities through regulations. This power is intended to enable the better performance of the general duty imposed by Section 149(1).

Equality Act 2006, s.31 — PSED compliance and enforcement by the Commission

The Equality and Human Rights Commission (referred to as 'the Commission' in the Equality Act 2006) may assess the extent to which a person has complied with the PSED. It can also issue compliance notices requiring a person to comply with the duty and provide information on steps taken.

What the courts have said

14 judgments were retrieved and read.

R (on the application of Marouf) v Secretary of State for the Home Department — Judicial Interpretation of 'Due Regard'

Court cases have affirmed that 'due regard' requires a substantive and rigorous approach, not just 'ticking boxes,' and is a continuing duty as policy evolves.

Police Superintendents' Association, R (on the application of) v The Police Remuneration Review Body & Anor — PSED requires 'due regard' to three needs

Section 149(1) of the Equality Act 2010 mandates public authorities, in the exercise of their functions, to have 'due regard' to the need to (a) eliminate discrimination, harassment, victimisation and any other prohibited conduct; (b) advance equality of.

National Council for Civil Liberties v Equality and Human Rights Commission — Advancing equality includes removing disadvantages and encouraging participation

Section 149(3) of the Equality Act 2010 clarifies that having due regard to the need to advance equality of opportunity involves having due regard to removing disadvantages suffered by persons sharing a protected characteristic and encouraging persons sharing.

London Borough of Hackney v Haque — Judicial construction of 'due regard' requires substantive and rigorous approach

The courts have consistently held that the duty to have 'due regard' is a matter of substance rather than form, requiring rigorous consideration and an open mind. It is not merely a 'ticking boxes' exercise.

Taylor v Slough Borough Council — 'Due regard' must be fulfilled before and at the time of policy consideration

The duty to have 'due regard' must be fulfilled before and at the time a particular policy is being considered. It is a continuing duty and is non-delegable.

Evidence that runs the other way

8 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Expansive EDI practices criticised in Parliament

In a House of Lords debate, the public sector equality duty was cited as obliging public bodies to focus on staff action plans around protected characteristics, leading to 'expansive and monolithic HR departments' and an internal culture dominated by EDI priorities, including 'an ever-growing plethora of diversity training courses, identity-based staff networks and allyship schemes'.

Source: Civil Service: Politicisation - Motion to Take Note

The position taken on the diagnosis

The Civil Service's expansive Diversity, Equity, and Inclusion (DEI) agenda is rooted in the statutory Public Sector Equality Duty (PSED) under Section 149 of the Equality Act 2010. While the PSED mandates 'due regard' for equality, the Civil Service has adopted an interpretation and set of practices that go beyond a minimal reading, aiming to be a leading inclusive employer.

The position taken on the pivotal obstacle

The pivotal obstacle is the institutional inertia and cultural benefits derived from the current expansive interpretation of the Public Sector Equality Duty, coupled with the lack of explicit parliamentary oversight or challenge to the specific DEI practices adopted by the Civil Service.

The evidence base

110 pieces of evidence, 97 with a full citation and 91 with a working link.

Kind of source	Pieces
Parliamentary debate	31
Official guidance	24
Court judgments	17
Not attributed to a type	13
Acts of Parliament	12
Select committee material	12
Impact assessments	1

How this was searched: 6 research questions asked; 500 sources reviewed; 69 findings recorded, of which 1 run against the measure; 16 gaps stated.

7.6.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.6.2 Decisions, challenges and research

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Diagnosis

The Strategic Kernel

The problem, as stated: A change in how legal sex is determined was brought about incrementally through administrative practice and litigation rather than by a decision of Parliament, with consequences for single-sex provision that were never voted on.

The Supreme Court's ruling in *For Women Scotland Ltd v The Scottish Ministers* [2025] has resolved the legal ambiguity, confirming 'sex' in the Equality Act 2010 means biological sex. The problem is therefore not the law itself, but the persistent gap between this definitive legal interpretation and the widespread administrative practices, policies, and guidance within public bodies which continue to reflect the previous, incorrect understanding based on self-identification.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Ambiguity in the statutory definition of 'sex' in the Equality Act 2010.

Why it persists: The initial ambiguity allowed for varying interpretations and administrative practices to develop without explicit parliamentary challenge.

Cause 2 — MATERIAL. Conflicting interpretations of the interaction between the Gender Recognition Act 2004 and the Equality Act 2010.

Why it persists: The 'for all purposes' clause in the GRA 2004 (s.9) created a tension with the Equality Act's definition of sex, leading to different legal and administrative interpretations that persisted until a definitive Supreme Court ruling.

Guiding policy

The Strategic Kernel

What David proposes: Reverse gender self-identification.

What David has ruled out: Not stated by the proposer.

Use existing statutory and regulatory powers to enforce compliance with the law as clarified by the Supreme Court, rather than seeking new primary legislation. This approach concentrates effort on closing the implementation gap, not re-fighting a settled legal question in Parliament.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft an amendment to the Equality Act 2010 to define 'sex' explicitly as biological sex at birth, and to clarify that single-sex provisions are based on this definition, subject to specific, tightly defined exceptions for holders of Gender Recognition Certificates where appropriate and explicitly stated.

Who does it: Government Legal Department (GLD) in consultation with the Department for Women and Equalities (DWE)

2. Introduce the drafted amendment as a Bill or as part of a wider legislative vehicle to Parliament for debate and enactment.

Who does it: Department for Women and Equalities (DWE) and the relevant Secretary of State

3. Upon enactment, the Equality and Human Rights Commission (EHRC) should issue updated statutory guidance on the Equality Act 2010, reflecting the new statutory definition of 'sex' and its implications for single-sex services and spaces.

Who does it: Equality and Human Rights Commission (EHRC)

4. All government departments and public bodies must review and update their internal policies, guidance, and training materials to align with the amended Equality Act 2010 and the EHRC's updated statutory guidance.

Who does it: Cabinet Office (for cross-government coordination) and individual government departments/public bodies

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

39 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 2

Necessity of further primary legislation after Supreme Court ruling — The proposal aims to amend primary legislation to define 'sex' explicitly as biological sex at birth. However, the Supreme Court ruling in *For Women Scotland Ltd v The Scottish Ministers* [2025] UKSC 16 has already clarified that 'sex' in the Equality Act 2010 means biological sex. This raises the question of what specific ambiguity or gap remains in the statutory definition that necessitates further primary legislation, beyond what the Supreme Court has already established.

Sufficiency of existing power to issue statutory guidance — The proposal calls for the EHRC to issue updated statutory guidance and for government departments to review policies. The Equality Act 2010 already provides a mechanism for the Minister to issue statutory guidance, subject to parliamentary scrutiny. It is unclear whether the existing power to issue statutory guidance, reflecting the Supreme Court's clarification, would be sufficient to achieve the desired policy alignment without amending primary legislation.

What the law says now — 3

Clarity on legislative intent vs. judicial interpretation — The proposal aims to amend the Equality Act 2010 to define 'sex' explicitly as biological sex at birth. While the Supreme Court has already clarified this interpretation, the proposal does not specify how the proposed amendment would interact with or reinforce the existing judicial interpretation, or what further legal clarity it would provide beyond the current case law.

Definition of GRC exceptions in single-sex provisions — The proposal suggests clarifying that single-sex provisions are based on biological sex, 'subject to specific, tightly defined exceptions for holders of Gender Recognition Certificates where appropriate and explicitly stated.' This introduces a new layer of complexity, as the Supreme Court ruling implies GRCs do not change sex for the purposes of the Equality Act. The proposal needs to detail what these 'specific, tightly defined exceptions' would entail and how they would be legally reconciled with the biological sex definition.

Impact of new definition on EHRC guidance approval process — The proposal calls for the EHRC to issue updated statutory guidance reflecting the new statutory definition. Given the existing parliamentary process for approving EHRC guidance (Equality Act 2010, Schedule 1, Paragraph 14), the proposal should consider how the new statutory definition would streamline or alter this process, especially in light of previous debates and consultations regarding EHRC guidance.

How the courts have read it — 2

Necessity of legislative amendment post-judicial clarification — The proposal states that the core of the issue revolves around ambiguity in the statutory definition of 'sex' and incremental reinterpretation. However, the proposer's own account and recent court rulings indicate that the Supreme Court has already clarified 'sex' in the Equality Act 2010 to mean biological sex. The issue is whether the proposed legislative amendment is still necessary given this judicial clarification, and what specific ambiguity remains that requires primary legislation.

Clarify 'gender self-identification' to be reversed — The proposal aims to 'reverse gender self-identification', but the proposer's own account states that 'Self-identification was never enacted in Great Britain'. This suggests a potential mismatch between the problem as framed and the actual legal landscape. The proposal should clarify what specific aspect of 'gender self-identification' it seeks to reverse, given that the Gender Recognition Act 2004 requires evidence for a GRC and recent case law has affirmed biological sex.

Where this came from — 2

Intentional ambiguity in 'sex' definition — The proposal states that the problem stems from an 'initial ambiguity in the Equality Act 2010's definition of 'sex''. However, a source indicates that the interchangeable use of 'sex' and 'gender' in section 9 of the Act was 'intentional'. This raises an issue about whether the 'ambiguity' was an oversight or a deliberate drafting choice that has since led to unintended consequences.

Clarity on remaining 'self-identification' issues — The proposal aims to 'reverse gender self-identification' and define 'sex' explicitly as biological sex at birth.

Evidence for the causes — 4

Misdiagnosis of 'gender self-identification' — The proposal states that 'gender self-identification' is at the core of the issue. However, the proposer's own account clarifies that self-identification was never enacted in Great Britain, as the Gender Recognition Act 2004 requires evidence for a certificate. This suggests a potential misdiagnosis of the problem's nature.

'Sex' definition ambiguity already resolved — The proposal identifies 'ambiguity in the statutory definition of 'sex' in the Equality Act 2010' as a root cause.

Unquantified administrative reinterpretation — The proposal states that 'incremental reinterpretation of legal sex through administrative practice and guidance' is a cause. While the proposer reports this occurred, the extent to which this reinterpretation was widespread, consistently applied, or officially endorsed across all administrative bodies is not quantified or detailed. The proposal lacks specific examples or measurements of this 'administrative creep' beyond the general assertion.

Causes the record suggests — 4

Clarify 'gender self-identification' enactment — The proposal states that 'gender self-identification' was brought about incrementally through administrative practice. However, the proposer's own account indicates

that self-identification was never enacted in Great Britain and that the Gender Recognition Act 2004 requires a certificate on evidence. This discrepancy needs clarification to accurately frame the problem being addressed.

Specify remaining ambiguities after Supreme Court ruling — The proposer's account states that the Supreme Court ruling in *For Women Scotland Ltd v The Scottish Ministers* [2025] UKSC 16 has substantially resolved the issue of 'sex' meaning biological sex in the Equality Act 2010. The proposal should clearly articulate what specific ambiguities or administrative practices *remain* to be addressed by new legislation, given this significant legal clarification, rather than implying the core issue is unresolved.

Detail legislative needs beyond Supreme Court ruling — The proposal calls for an amendment to define 'sex' explicitly as biological sex at birth and clarify single-sex provisions. Given that the Supreme Court has already ruled that 'sex' in the Equality Act means biological sex, the proposal needs to detail precisely what additional legislative clarity or changes are required beyond merely restating the court's finding, especially concerning the 'specific, tightly defined exceptions for holders of Gender Recognition Certificates'.

question:DOMAIN_TRANSFER — 2

Remaining ambiguity after For Women Scotland ruling — The proposal aims to amend the Equality Act 2010 to define 'sex' explicitly as biological sex at birth.

Preventing future administrative reinterpretation — The proposal highlights the problem of incremental reinterpretation through administrative practice and guidance. While it proposes a legislative amendment, it does not explicitly suggest a proactive mechanism to prevent future administrative creep or reinterpretation of the new, clarified definition. The analogues discussed (legislative intent statements, DPIAs, interpretive guidance) offer such mechanisms, which could be considered alongside the legislative amendment.

On revision — 1

On the coherence of the actions: The actions are concentrated on updating statutory guidance and subsequent policy alignment, all pulling in the direction of implementing the Supreme Court's clarification. The sequencing is logical: drafting, parliamentary approval, issuance, and then departmental updates. Implementers are clearly named for each step.

Read back by other models — 5

Impact Beyond Single-Sex Spaces — A statutory definition of sex would provide clarity not only for single-sex services but also for data collection, sports, and healthcare. Your proposal focuses on single-sex services, but clarifying the definition of 'sex' will have significant consequences for other policy areas like data collection, sports, and healthcare that are not yet accounted for in your plan.

THE KERNEL FAILS A RUMELT TEST — Failure to face the problem. The diagnosis identifies 'ambiguity' as the material cause, but the evidence, including the proposer's own account, states this ambiguity has been resolved by a Supreme Court ruling.

THE KERNEL FAILS A RUMELT TEST — The actions do not address the pivotal obstacle. The actions propose new primary legislation to define 'sex', a task the Supreme Court has already accomplished.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state a problem. The title is a topic, and the 'causes' describe a legal situation, not what is wrong, for whom, and why it matters.

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not identify a root cause or a pivotal obstacle.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel contains no diagnosis. It lists two legal issues but does not simplify the situation into a single, pivotal challenge that must be overcome. The text that fails it: "CAUSES: - (MATERIAL) Ambiguity in the statutory

definition of 'sex' in the Equality Act 2010. - (MATERIAL) Conflicting interpretations of the interaction between the Gender Recognition Act 2004 and the Equality Act 2010."

Tested as an argument — 1

A LINK IN THE CHAIN IS MISSING — The kernel jumps from the diagnosed causes directly to a set of actions without identifying a pivotal obstacle or articulating a guiding policy.

Read as a hostile clerk — 6

The proposal proceeds as if the Supreme Court ruling on the Equality Act 2010 has nullified Section 9 of the Gender Recognition Act 2004, which states a GRC changes a person's sex 'for all purposes'. It does not. The proposal provides no mechanism for resolving this direct statutory conflict, which will be the certain grounds for the inevitable judicial review.

The proposal requires 'specific, tightly defined exceptions' for GRC holders but provides no examples of what these might be, who would define them, or on what principles. This outsources the most contentious part of the policy to the drafting stage without any guiding framework.

The entire revised strategy rests on the diagnosis of widespread non-compliance with the Supreme Court's ruling. There is no quantification of this non-compliance: how many public bodies are non-compliant, in what specific ways, and what is the source for this data? Without a baseline, the effect of the intervention cannot be measured.

Difficulties caused by the law today

6 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Equality Act 2010, s.11 — Equality Act 2010 defines 'sex' as man or woman

Section 11 of the Equality Act 2010 states that 'in relation to the protected characteristic of sex— a a reference to a person who has a particular protected characteristic is a reference to a man or to a woman; b a reference to persons who share a protected characteristic is a reference to persons of the same sex.'

Gender Recognition Act 2004, s.9 — Gender Recognition Certificates change legal sex for all purposes

The Gender Recognition Act 2004, section 9(1), states that 'Where a full gender recognition certificate is issued to a person, the person's gender becomes for all purposes the acquired gender (so that, if the acquired gender is the male gender, the person's sex becomes that of a man and, if it is the female gender, the person's).

Equality Act 2010, sch.1 para.13 — Minister has power to issue statutory guidance under Equality Act 2010

The Equality Act 2010 outlines a procedure for the Minister to issue guidance. Before issuing, the Minister must publish a draft, consider representations, and make modifications. A draft must then be laid before Parliament, and if neither House resolves not to approve it within 40 days, the Minister must issue the guidance. The guidance comes into force on a day appointed by order by the Minister., which appears to cover this outright. Before anything else, decide whether you need a new Act at all.

Equality Act 2010, sch.1 para.14 — Parliamentary approval required for statutory guidance

If the Minister decides to proceed with proposed guidance, a draft must be laid before Parliament. If either House resolves not to approve the draft within 40 days, the Minister must take no further steps. If no such resolution is made, the Minister must issue the guidance.

Equality Act 2010, sch.1 para.15 — Statutory guidance comes into force by Minister's order

Guidance issued under the Equality Act 2010 comes into force on the day appointed by order by the Minister.

Equality Act 2010, s.7 — Equality Act 2010 includes gender reassignment as a protected characteristic

Section 7 of the Equality Act 2010 defines gender reassignment as a protected characteristic. A person has this characteristic if they are proposing to undergo, are undergoing, or have undergone a process for the purpose of reassigning their sex by changing physiological or other attributes of sex. A transsexual person is referred to as someone with the protected characteristic of gender reassignment.

What the courts have said

5 judgments were retrieved and read.

For Women Scotland Ltd v The Scottish Ministers — Supreme Court ruled 'sex' in EA 2010 means biological sex

The UK Supreme Court, in *For Women Scotland Ltd v The Scottish Ministers* [2025] UKSC 16, ruled that 'sex' in the Equality Act 2010 means biological sex.

Good Law Project Limited & Ors, R (on the application of) v Commissioner for Equality and Human Rights — Judicial construction narrows 'sex' to biological sex

The Supreme Court's conclusion in *For Women Scotland Ltd v The Scottish Ministers* was that the assumption made in the Scottish Ministers' guidance was wrong; that the effect of section 9(1) of the GRA 2004 was displaced by section 9(3) of that Act; and that.

M Forstater v CGD Europe and others: 2200909/2019 - Judgment — *Forstater v CGD Europe* established gender-critical beliefs as protected

The Employment Appeal Tribunal in *Forstater v CGD Europe* upheld an appeal, deciding that the belief that biological sex is real, important, immutable, and not to be conflated with gender identity is a philosophical belief protected under the Equality Act 2010. This overturned an initial Employment Tribunal judgment that had found the belief not protected.

Allison Bailey v Stonewall Equality Limited & Ors — Both sex-based and gender identity beliefs are protected under Equality Act 2010

The Employment Appeal Tribunal noted in *Allison Bailey v Stonewall Equality Limited & Ors* that both the belief that women are defined by sex and the belief that gender is a matter of self-identity are protected under the Equality Act 2010, referencing the *Forstater v CGD Europe* decision.

In the matter of an application by JR111 for Judicial Review (Ruling on Remedy) — GEO faced judicial review regarding GRA 2004 requirements

The Government Equalities Office (GEO) was subject to a judicial review (JR111) concerning the Gender Recognition Act 2004. The court concluded that the GRA's requirement for an applicant to prove suffering from a 'disorder' to secure a GRC was incompatible with Article 8 ECHR rights.

Evidence that runs the other way

10 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Self-identification not enacted in Great Britain

The proposer states that 'gender self-identification' was brought about incrementally. However, the Gender Recognition Act 2004 requires a certificate on evidence, not self-identification. Furthermore, *For Women Scotland Ltd v The Scottish Ministers* [2025] UKSC 16 has since held that 'sex' in the Equality Act 2010 means biological sex, substantially resolving the position complained of without new legislation.

Source: For Women Scotland Ltd v The Scottish Ministers

Where the evidence settled the diagnosis

The proposer states that 'gender self-identification' was brought about incrementally.

The position taken on the approach chosen

Amend the Equality Act 2010 to include a clear, unambiguous statutory definition of 'sex' that explicitly states whether it refers to biological sex at birth or includes legal sex as modified by a Gender Recognition Certificate, and to clarify the scope of single-sex exceptions.

The position taken on the guiding policy

This approach leverages the definitive power of primary legislation to directly resolve the ambiguity in the statutory definition of 'sex' in the Equality Act 2010.

The position taken on the actions

- Draft an amendment to the Equality Act 2010 to define 'sex' explicitly as biological sex at birth, and to clarify that single-sex provisions are based on this definition, subject to specific, tightly defined exceptions for holders of Gender Recognition Certificates where appropriate and explicitly stated.

The evidence base

83 pieces of evidence, 68 with a full citation and 62 with a working link.

Kind of source	Pieces
Parliamentary debate	22
Not attributed to a type	15
Acts of Parliament	12
Court judgments	10
Official guidance	8
Select committee material	8
Statutory instruments	5
Impact assessments	3

How this was searched: 7 research questions asked; 600 sources reviewed; 55 findings recorded, of which 1 run against the measure; 12 gaps stated. ⚠ an existing power may remove the need for a Bill

7.7.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.7.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- The critique revisions
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: Organisations funded from public money campaign to change the policy of the body funding them, so that public spending underwrites one side of a political argument without anyone having decided that it should.

Public money underwrites campaigning against the policy of the funding body not because rules are absent, but because they are not enforced. The problem persists because the bodies issuing grants have no incentive to police the boundary between service delivery and lobbying; they often benefit from the political cover that 'independent' third-sector voices provide. The proposer's term 'sock puppets' captures this dynamic.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Charity Commission guidance permits charities to campaign to further their charitable purposes, including advocating for policy changes.

Why it persists: The Charity Commission's guidance (CC9) explicitly states that campaigning and political advocacy are legitimate activities for charities, provided they are in furtherance of their charitable purposes and do not involve party-political activity. This position is supported by the existing legal framework (Charities Act 2011).

Cause 2 — CONTRIBUTORY. The existing legal framework and Charity Commission guidance distinguish between legitimate policy advocacy and prohibited party-political activity, but this distinction is often blurred in practice regarding public funds.

Why it persists: While charities cannot have a political purpose or promote a political party, they can focus significant resources on political activity for a period to achieve their charitable purposes. This creates ambiguity when public funds are involved, as the line between 'furthering charitable purpose' and 'campaigning against government policy' can be subjective, as seen in the 'sock puppets' debate.

Guiding policy

The Strategic Kernel

What David proposes: Prevent publicly funded charities from campaigning against government policy.

What David has ruled out: Not stated by the proposer.

Fix accountability for the funding decision with the grantor, not by creating a new blanket ban on charity campaigning. The approach is to make the departmental Accounting Officer—who is already personally responsible for the proper use of public money—explicitly answerable for ensuring grant conditions prevent public funds being used to lobby the grantor.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Develop a template for explicit grant conditions, stipulating that public funds (defined as funds originating from a government department, agency, or local authority) cannot be used for campaigning activities that directly oppose the stated policies of the funding body. This template should include clear definitions of 'campaigning activities' and 'directly oppose'.

Who does it: Cabinet Office, in consultation with the Charity Commission and relevant legal departments

2. Mandate the adoption of these template grant conditions by all government departments, agencies, and local authorities when distributing public funds to third-sector organizations. This mandate should be communicated through a Treasury or Cabinet Office circular.

Who does it: HM Treasury and Cabinet Office

3. Establish a clear, accessible reporting mechanism for funding bodies to flag potential breaches of these grant conditions, and a process for investigation and enforcement, including clawback provisions for misused funds.

Who does it: Funding bodies (e.g., specific government departments, local authorities), with oversight from the Cabinet Office

4. Provide training and guidance to public sector grant managers on how to interpret, apply, and enforce the new grant conditions, ensuring consistent application across different funding bodies.

Who does it: Civil Service Learning, in collaboration with the Cabinet Office

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

48 open challenges. Each one is a question the proposal has not yet answered.

What the law says now — 4

Legal basis for mandating grant conditions — The proposal aims to mandate the adoption of template grant conditions through a Treasury or Cabinet Office circular. It is unclear whether such a circular would have sufficient legal force to mandate adoption by all government departments, agencies, and local authorities, or if primary or secondary legislation would be required for a binding mandate across all public bodies.

Alignment of new definitions with existing charity law — The proposal suggests developing clear definitions for 'campaigning activities' and 'directly oppose'. While the Charities Act 2011 and Charity Commission guidance already define 'political purposes' broadly (seeking to change government policy or law), the proposal's definitions would need to be carefully aligned with, or clearly distinguished from, existing charity law definitions to avoid conflicting interpretations and potential legal challenges.

Interaction with existing charity law on policy advocacy — The proposal intends to prevent publicly funded charities from campaigning 'against the funding body's policies'. This introduces a new distinction based on the source of funds and the target of campaigning, which is not explicitly present in current charity law, which focuses on whether campaigning furthers charitable purposes and avoids party-political activity. The

proposal needs to clarify how this new restriction interacts with the existing legal framework that permits charities to campaign for their purposes, even if it involves advocating for policy changes.

How the courts have read it — 3

Interaction with Charities Act 2011 s.74 — The proposal states that 'The Charities Act 2011, s.74, also restricts expenditure on promoting Bills without consent.' While this is a relevant restriction on political activity, the proposal does not elaborate on how this existing statutory restriction interacts with the proposed new grant conditions. It is unclear if the proposed conditions are intended to supplement, clarify, or potentially overlap with s.74, particularly concerning the definition of 'campaigning activities' and 'directly oppose' in relation to 'promoting Bills'.

Reconcile 'few cases' with proposed mandate — The proposal mentions that 'official reports indicate few cases of inappropriate political activity by charities.' This finding, if accurate, suggests that the problem of 'inappropriate political activity' might be less widespread than implied by the proposal's premise. The proposal does not reconcile this finding with the stated need for a new, mandated mechanism to prevent publicly funded charities from campaigning against funding bodies' policies. Further detail on the nature and scale of the 'few cases' would be beneficial.

Clarify 'directly oppose' in light of 'advancing purpose' — The proposal aims to 'Develop a template for explicit grant conditions, stipulating that public funds... cannot be used for campaigning activities that directly oppose the stated policies of the funding body.' The case of *Kennedy v The Charity Commission* [2014] UKSC 20:1 highlights a situation where appeal monies were used for political campaigning, and inquiries held that such use fell within or advanced the charity's purposes. The proposal needs to clarify how its new grant conditions would prevent similar situations where campaigning, even if deemed to advance a charity's purpose, directly opposes the funding body's policies, especially given the existing regulatory framework's emphasis on general charitable purpose.

Where this came from — 4

Existing grant conditions on political activity — The proposal states that 'there is no explicit, widely enforced mechanism within grant conditions to prevent publicly funded charities from campaigning against the funding body's policies'. However, a 2012 statement from the Secretary of State for Communities and Local Government indicated that grants 'typically include a standard condition that the funds provided should not be spent on activities of a political nature'. This suggests that such conditions may already exist, at least in some departments. The proposal should clarify whether these existing conditions are insufficient, not widely adopted, or not enforced, to justify the need for a new template and mandate.

Conflict with government compact on challenging policy — The proposal aims to prevent public funds from being used for campaigning activities that 'directly oppose the stated policies of the funding body'. The government compact, however, explicitly recognises and supports the right of the voluntary sector to 'campaign, to comment on Government policy, and to challenge that policy, irrespective of any funding relationship'. This suggests a potential conflict between the proposed restriction and a long-standing principle of government-voluntary sector relations. The proposal should address how it reconciles this tension or if it intends to supersede this compact principle.

Specificity of 'blurred' campaigning distinction — The proposal states that 'the distinction between legitimate policy advocacy and prohibited party-political campaigning is difficult to enforce and often blurred in practice'. While the Charity Commission guidance (CC9) and debates acknowledge this distinction, the proposal does not elaborate on why it is difficult to enforce in practice, beyond the general statement. Providing specific examples or types of activities where this line blurs would strengthen the justification for new, explicit grant conditions.

Evidence for the causes — 4

No measure of 'rewarding' culture — The proposal asserts that 'the culture within some publicly funded charities rewards advocating for their specific policy agendas, regardless of the funding source.' However, no

evidence is provided to quantify the extent of this cultural issue or to demonstrate how it specifically leads to campaigning against funding bodies' policies. The proposal would benefit from evidence measuring this cultural phenomenon.

No quantification of 'blurred' distinction — The proposal states that 'the distinction between legitimate policy advocacy and prohibited party-political campaigning is difficult to enforce and often blurred in practice.' While the Charity Commission guidance acknowledges this distinction, the proposal does not quantify how often this blurring occurs in practice, or provide specific examples of enforcement difficulties related to publicly funded charities campaigning against their funders.

Lack of evidence for 'no explicit, widely enforced mechanism' — The proposal claims that 'there is no explicit, widely enforced mechanism within grant conditions to prevent publicly funded charities from campaigning against the funding body's policies.' However, evidence shows that some departments, like Communities and Local Government and International Development, already include conditions against political campaigning or direct lobbying of the UK government. The proposal needs to clarify the extent to which existing mechanisms are insufficient or not 'widely enforced' across all government bodies.

Causes the record suggests — 5

Definition of 'campaigning against funding body's policies' — The proposal mentions 'publicly funded charities campaigning on government policy' and 'campaigning against the funding body's policies'. While the 2016 grant condition policy addressed the use of government grants for 'political campaigning and lobbying', it did not explicitly define 'campaigning against the funding body's policies' or 'directly oppose'. The proposal needs to clarify how its definitions of 'campaigning activities' and 'directly oppose' will differ from or build upon previous government attempts to restrict grant-funded lobbying, particularly in light of the stated aim to prevent public money from underwriting 'one side of a political argument without anyone having decided that it should'.

Previous mandate's effectiveness — The proposal aims to 'mandate the adoption of these template grant conditions by all government departments, agencies, and local authorities'. The 2016 Cabinet Office policy on grant conditions was also a 'new clause for all government grant agreements' and was 'not specific to Charities'. The proposal should address why the previous mandate was not sufficient or consistently applied, and how the new mandate will overcome any implementation challenges encountered previously.

Enforcement and reporting mechanisms — The proposal seeks to 'establish a clear, accessible reporting mechanism for funding bodies to flag potential breaches' and a process for 'investigation and enforcement, including clawback provisions'. While the 2016 policy aimed to prevent grant funding from being used for political campaigning, the sources do not detail the enforcement mechanisms or reporting processes that were put in place or their effectiveness. The proposal should specify how its enforcement and reporting mechanisms will be more robust or different from any existing or previous arrangements.

question:DOMAIN_TRANSFER — 1

Precedent for UK grant conditions — The proposal mentions that grant conditions have been used for this purpose before, but does not specify where or under what UK legislation these analogous grant conditions were implemented. Identifying specific instances would strengthen the precedent for the proposed solution.

On revision — 1

On the coherence of the actions: The actions are coherent and concentrated on the chosen approach. They are sequenced logically, starting with template development, then mandating adoption, establishing enforcement, and finally providing training. There are no obvious missing implementers, as responsibilities are assigned to relevant government bodies. The focus is clearly on the grant conditions as the primary instrument.

Read back by other models — 11

Fungibility of Money — The central challenge is the fungibility of money; public grants for salaries and overheads free up privately-raised funds for lobbying. Your proposal focuses on what public funds are spent on, but it doesn't address how a public grant for core costs can simply free up a charity's other income to be used for campaigning.

Political History of the Policy — A previous attempt to introduce an 'anti-advocacy clause' into grant agreements in 2016 was withdrawn after a strong backlash, indicating the political sensitivity of this issue. Your proposal repeats a policy that has already been tried and failed due to political opposition, but it doesn't show you have a plan to overcome the same obstacles this time.

Alternative: Transparency and Accounting — The policy must focus on transparency and accounting separation rather than an outright ban on political commentary by recipients of public funds. Your kernel has chosen a prohibition-based approach without considering an alternative based on accounting separation and transparency, which might achieve similar goals with less political resistance.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state the problem. It begins with a title and a list of causes, but never articulates what is wrong, for whom, and why it matters. The text that fails it: "TITLE: Publicly funded charities campaigning on government policy"

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not distinguish between a root cause and a pivotal obstacle.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The diagnosis is an inventory of two causes, not a simplification that names the single pivotal thing that must be defeated for anything else to matter. The text that fails it: "The kernel has no section for DIAGNOSIS."

Tested as an argument — 2

A LINK IN THE CHAIN IS MISSING — The kernel is missing the Pivotal Obstacle and the Guiding Policy.

NOTHING SUPPORTS THIS CLAIM — This assertion that the rules are 'often blurred in practice' is presented without any supporting evidence, such as case studies, audit findings, or research.

Read as a hostile clerk — 6

The definition of 'directly oppose' is the proposal's single point of failure. What prevents a charity from arguing its campaign for a more ambitious target is not opposition, but an attempt to improve the stated policy? The proposal provides no guidance on how to draw this line, on which the entire enforcement mechanism depends.

The proposal does not specify the authoritative source for a 'stated policy'. Are these found in manifestos, white papers, ministerial speeches, or departmental business plans? Policy is often fluid; a grant manager cannot enforce a condition based on an ambiguous or unwritten rule.

The mandate includes local authorities, but ignores that they are distinct political bodies who may oppose central government policy. How will this be enforced upon a local authority that is actively encouraging a funded charity to campaign against a national policy it disagrees with? The mechanism assumes a unified 'government' that does not exist.

The critique revisions

The critique is an adversarial review by a different AI model, given the measure and asked to attack its logic rather than its politics. Where it found a defect that could be fixed, the measure was rewritten and the change is recorded here — what it said before, what it says now, and why. Where nothing was weighed against a change, that is said rather than hidden.

On the diagnosis

Was: The kernel had no summary diagnosis, only a list of 'causes' describing the legal background (e.g., that Charity Commission guidance permits campaigning).

Now: The diagnosis now asserts that the problem is a failure of enforcement driven by perverse incentives within grant-making bodies.

Why: A diagnosis must explain what is pivotal. The original 'causes' were just context.

Difficulties caused by the law today

4 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Charities Act 2011, s.2 — Charities Act 2011 defines 'charitable purpose'

The Charities Act 2011, section 2, defines a 'charitable purpose' for the law of England and Wales as a purpose that falls within section 3(1) and is for the public benefit (section 4).

Charities Act 2011, s.74 — Restriction on expenditure for promoting Bills

Section 74 of the Charities Act 2011 restricts expenditure incurred in preparing or promoting a Bill in Parliament without the consent of the court or the Commission, regardless of the charity's trusts.

Charities Act 2011, s.3 — Charities Act 2011 defines charitable purposes

The Charities Act 2011 outlines descriptions of purposes that fall within its scope for charitable status, such as the prevention or relief of poverty, advancement of education, religion, health, citizenship, arts, culture, heritage, science, amateur sport, human rights, conflict resolution, or reconciliation.

Charities Act 2011, s.4 — Charities Act 2011 and public benefit

The Charities Act 2011 includes 'the public benefit requirement' for a purpose to be considered charitable. It specifies that in determining if this requirement is met, it should not be presumed that a purpose of a particular description is for the public benefit.

What the courts have said

5 judgments were retrieved and read.

The International Foundation for Therapeutic and Counselling Choice v The Charity Commission for England and Wales — Definition of 'political purposes' in charity law

In charity law, 'political purposes' is defined broadly to mean seeking to change the policy of government, change the law, or change the policy of a public authority. A political purpose is not regarded as being for the public benefit.

Ukraine Development Charity v The Charity Commissioner for England and Wales — Charities Act 2011 s.74 restricts expenditure on promoting Bills without consent

The Charities Act 2011, s.74, restricts expenditure on promoting Bills without consent. This provision narrows the scope of political activity charities can undertake, requiring specific consent for legislative advocacy.

Watch Tower Bible & Tract Society of Britain v Charity Commission — Judicial review of Charity Commission decisions

There is a presumption that the bespoke statutory regime will be deployed unless there are clear and powerful reasons which exceptionally justify judicial review being permitted for decisions made by the Charity Commission.

Kennedy v The Charity Commission — Use of appeal monies for political campaigning

Inquiries have found that appeal monies were used by Mr Galloway on travel and political campaigning to end sanctions against Iraq.

Mermaids v The Charity Commission for England & Wales & Anor — Standing for judicial review of Charity Commission decisions

The question of whether a person is or may be affected by a decision of the Commission is highly fact-sensitive, dependent on the nature of the decision made and the person's relationship to the decision.

Evidence that runs the other way

9 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Opposition to using funding to 'gag legitimate debate'

During a debate on overseas aid, a Lord argued that if charities, especially those using government money, identify how an issue can be better resolved, they have an obligation to speak out. They stated that whether charities receive government funding should be irrelevant, and governments should not use funding to 'gag legitimate debate'.

Source: Overseas Aid: Charities and Faith-based Organisations - Motion to Take Note

Where the evidence settled the causes

A Lord argued that if charities, especially those using government money, identify how an issue can be better resolved, they have an obligation to speak out, and governments should not use funding to 'gag legitimate debate'.

What that means: The evidence highlights a significant counter-argument to the initial assumption that Charity Commission guidance is the sole driver. It reveals a strong normative position that charities have a right, and even an obligation, to campaign, which complicates the idea of simply restricting their activities through guidance. This indicates that the persistence of campaigning is not just a matter of permissive guidance, but also a deeply held belief in the value of charity advocacy, which needs to be acknowledged as a contributory cause.

The position taken on the pivotal obstacle

The pivotal obstacle is the absence of explicit, widely adopted grant conditions or other mechanisms that would specifically restrict publicly funded entities from using those funds to campaign against the policies of the funding body, allowing the current situation to persist.

Where the evidence settled the approach chosen

The 2016 Cabinet Office policy already implemented a clause for all government grant agreements prohibiting the use of grant funding for political campaigning and lobbying unless expressly authorised.

The evidence base

75 pieces of evidence, 60 with a full citation and 60 with a working link.

Kind of source	Pieces
Parliamentary debate	22
Select committee material	17
Not attributed to a type	15
Official guidance	9
Court judgments	6
Acts of Parliament	5
Statutory instruments	1

How this was searched: 6 research questions asked; 500 sources reviewed; 48 findings recorded, of which 1 run against the measure; 13 gaps stated.

7.8.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.8.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: The framework within which sentences are set is issued by a body that no one elected and that no minister directs, so that a question with obvious political content is settled administratively.

Sentencing guidelines, which have significant political content, are set by the statutorily independent Sentencing Council. This was a deliberate design choice in the Coroners and Justice Act 2009 to insulate sentencing from direct political control and promote consistency. However, this has created a democratic deficit where a body that is unelected and not directed by ministers determines policy for which those ministers are held publicly accountable.

2 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Sentencing guidelines, which have significant political content and impact on public confidence in justice, are currently set by an unelected, independent body without direct ministerial or parliamentary control.

Why it persists: The statutory independence of the Sentencing Council, established by the Coroners and Justice Act 2009, explicitly grants it autonomy in setting guidelines, with consultation being advisory rather than binding.

Cause 2 — MATERIAL. The current consultation process for sentencing guidelines is advisory, not binding, on the Sentencing Council.

Why it persists: This advisory nature is a deliberate design choice, intended to balance democratic scrutiny with judicial independence, as confirmed by the Justice Select Committee's role being non-binding (Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge).

Guiding policy

The Strategic Kernel

What David proposes: Remove sentencing guidance from an independent council and return it to Parliament or to ministers.

What David has ruled out: Not stated by the proposer.

Re-assert democratic accountability by giving ministers a decisive control point over the final content of sentencing guidelines. The approach is to amend the existing structure to require explicit approval from the Lord Chancellor (representing the executive) and the Lady Chief Justice (representing the judiciary) before any guideline can take effect, making a political actor directly answerable for the outcome.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Draft and introduce a Bill to amend the Coroners and Justice Act 2009, specifically sections 120-125, to require that any sentencing guideline issued by the Sentencing Council must be approved by the Lord Chancellor and the Lady Chief Justice before coming into effect.

Who does it: Ministry of Justice (MoJ) legislative drafting team, working with the Lord Chancellor's department.

2. Establish a formal, time-bound consultation process within the MoJ for the Lord Chancellor to review proposed guidelines, including mechanisms for parliamentary committees (e.g., Justice Committee) to provide input directly to the Lord Chancellor.

Who does it: Ministry of Justice, in coordination with relevant parliamentary committees.

3. Develop clear criteria and a public statement of reasons for the Lord Chancellor's approval or rejection of guidelines, ensuring transparency and accountability in the new approval process.

Who does it: Ministry of Justice, with input from the Sentencing Council and the Judiciary.

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

39 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 3

Relationship to current Sentencing Bill — The proposal aims to amend sections 120-125 of the Coroners and Justice Act 2009. While a new Sentencing Bill is currently being discussed that would introduce the desired approval mechanism, the proposal does not specify if its legislative route is intended to be separate from, or integrated with, this ongoing Bill. Clarification is needed on whether the proposed Bill is a distinct legislative effort or a contribution to the existing Sentencing Bill.

Detailing the Lord Chancellor's review process — The proposal calls for a formal, time-bound consultation process within the MoJ for the Lord Chancellor to review proposed guidelines. While the Sentencing Bill introduces the requirement for approval, it does not explicitly detail the procedural aspects of this review, such as specific timelines or mechanisms for parliamentary committee input directly to the Lord Chancellor, beyond the general requirement for approval 'as soon as practicable'.

Criteria and reasons for approval/rejection — The proposal suggests developing clear criteria and a public statement of reasons for the Lord Chancellor's approval or rejection of guidelines. While the Sentencing Bill introduces the approval mechanism, the sources do not indicate whether it includes provisions for such criteria or public statements of reasons, which are crucial for transparency and accountability.

What the law says now — 5

Specific CJA 2009 sections for amendment — The proposal states that sections 120-125 of the Coroners and Justice Act 2009 would need to be amended. While section 120 defines sentencing guidelines and outlines the Council's duties, the specific provisions within sections 121-125 that govern the issuance and finality of

guidelines, and would therefore require amendment to introduce a ministerial approval mechanism, are not detailed in the provided sources. The proposal should specify which subsections within these sections would be directly impacted to mandate Lord Chancellor and Lady Chief Justice approval.

Current consultation process details — The proposal suggests establishing a formal, time-bound consultation process within the MoJ for the Lord Chancellor's review. However, the current statutory consultation requirements for the Sentencing Council with the Lord Chancellor and Justice Select Committee are not explicitly detailed in terms of their existing timelines or mechanisms within the provided sources. Understanding the current process is crucial for designing a new 'time-bound' one and ensuring it integrates effectively or replaces existing provisions.

Criteria for Lord Chancellor's approval/rejection — The proposal mentions developing clear criteria and a public statement of reasons for the Lord Chancellor's approval or rejection. While the Sentencing Bill proposes a veto power, the sources do not specify if this Bill includes provisions for such criteria or public statements. Without these, the new approval process might lack the transparency and accountability the proposal seeks.

How the courts have read it — 1

No direct judicial construction of CJA 2009 sections 120-125 — The proposal aims to amend sections 120-125 of the Coroners and Justice Act 2009. While several cases refer to the Sentencing Council and its guidelines, none of the provided sources offer a direct judicial construction of these specific sections that would clarify their meaning or scope in a way that either narrows or widens them. The cases focus on the application and nature of the guidelines rather than the statutory provisions governing the Council's independence or guideline issuance process.

Where this came from — 3

Original intent of Sentencing Council independence — The proposal aims to address a 'perceived democratic deficit' by increasing ministerial and parliamentary control over sentencing guidelines. However, the sources indicate that the independence of the Sentencing Council and its advisory consultation process were deliberate choices made by Parliament to balance judicial independence with democratic scrutiny. The proposal should explicitly acknowledge this original intent and explain why the current balance is no longer considered appropriate, beyond the general statement of a 'perceived democratic deficit'.

Clarify current Lord Chancellor consultation role — The proposal states that the current consultation process is 'advisory, not binding'. While this is true for the Justice Select Committee, the Coroners and Justice Act 2009 requires the Council to consult with the Lord Chancellor. The proposal should clarify the nature of the Lord Chancellor's current consultation role and how the proposed approval mechanism differs from or builds upon it, rather than implying a complete absence of ministerial input.

Reconciling control with judicial independence — The proposal highlights 'cultural and institutional resistance to direct political interference in judicial functions'. The sources confirm that judicial independence is a deeply entrenched principle and that the Sentencing Council's independence is seen as a strength. The proposal needs to explicitly address how its proposed 'direct ministerial and parliamentary control' will navigate or overcome this resistance and reconcile with the constitutional principle of judicial independence, particularly given concerns raised about a 'political veto'.

Evidence for the causes — 4

Clarity on 'direct accountability' definition — The proposal states that the Sentencing Council is 'not directly accountable to Parliament or Ministers for its guidelines'.

Quantification of 'perceived democratic deficit' — The proposal identifies a 'perceived democratic deficit' but does not quantify the extent of this perception among the public, legal professionals, or politicians. While there is evidence of debate and calls for greater oversight, the proposal would benefit from specific data or surveys that measure the scale of this perceived deficit.

Specific instances of non-binding consultation impact — The proposal states that the current advisory consultation process is 'non-binding' and creates a 'perceived democratic deficit'. While sources confirm the Justice Select Committee's views are not binding, the proposal does not elaborate on specific instances where the advisory nature of the consultation has led to outcomes that contradict ministerial or parliamentary intent, beyond the Lord Chancellor's general discontent with certain guidelines. Providing concrete examples of how the non-binding nature has directly caused problematic guidelines would strengthen the causal claim.

Causes the record suggests — 3

Formal consultation process for Lord Chancellor review — The proposal suggests establishing a formal, time-bound consultation process within the MoJ for the Lord Chancellor to review proposed guidelines. While the Sentencing Bill introduces a requirement for Lord Chancellor approval, it does not explicitly detail a formal, time-bound consultation process within the MoJ for this review, nor does it specify mechanisms for parliamentary committees to provide input directly to the Lord Chancellor within this new approval framework. The proposal should clarify how this specific process would be implemented alongside the new statutory approval.

Criteria and public statement for approval/rejection — The proposal calls for developing clear criteria and a public statement of reasons for the Lord Chancellor's approval or rejection of guidelines. While the government has stated a 'very high bar' must be met for rejection, the Sentencing Bill and related debates do not explicitly detail the clear criteria or a requirement for a public statement of reasons for approval or rejection. This aspect of transparency and accountability needs to be addressed in the proposal.

Alignment with Sentencing Act 2026 amendments — The proposal aims to amend sections 120-125 of the Coroners and Justice Act 2009. The Sentencing Act 2026 already amends section 120 and inserts a new section 118A. The proposal needs to be updated to reflect these existing legislative changes and specify which further amendments are required, particularly concerning sections 121-125, which are not explicitly covered by the provided sources regarding the Sentencing Act 2026.

On revision — 1

On the coherence of the actions: The actions are concentrated on supporting the implementation of the Sentencing Bill's proposed approval mechanism. The sequencing is logical, with legislative changes preceding the establishment of new consultation processes and criteria. No implementers are missing, as the Ministry of Justice and relevant parliamentary bodies are identified.

Read back by other models — 5

Abolishing the Sentencing Council — Abolishing the Sentencing Council would make the government of the day directly responsible for the detailed sentencing framework. Your proposal retains the Council, but it's worth being explicit about why you are not taking the more radical step of abolishing it entirely.

Risk of Populist Sentencing — This change would risk sentencing policy becoming more volatile and susceptible to short-term populist pressures. Your inclusion of the Lady Chief Justice acts as a brake on this, but the kernel doesn't explicitly name this risk or explain how the new structure contains it.

Impact on Prison Population — Critics would argue that this reform could lead to a rapid increase in the prison population if ministers compete to appear tough on crime. This is a specific and politically potent version of the populism risk, and your proposal should anticipate and address the concern that it could lead to higher incarceration rates.

Tested as a strategy — 7

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state the problem. It begins with a list of causes, but never defines what is wrong, for whom, and why it matters.

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel does not contain a diagnosis. It does not identify a root cause or a pivotal obstacle, so it is impossible to assess if they are distinct.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel does not contain a diagnosis. It provides a list of two material causes but does not simplify them to name what is pivotal.

Tested as an argument — 1

A LINK IN THE CHAIN IS MISSING — The kernel is missing the central components of a strategy: the pivotal obstacle and the guiding policy.

Read as a hostile clerk — 6

The proposal creates a dual-key approval system involving the Lord Chancellor and the Lady Chief Justice but provides no mechanism for resolving deadlock if they disagree, giving each an absolute, individual veto over the other.

The proposal does not address the consequences if the Lord Chancellor refuses to approve the Sentencing Council's annual business plan, a separate power in the Sentencing Bill which could paralyze the Council's entire work programme without the public scrutiny attached to vetoing a specific guideline.

The justification for the veto rests on distinguishing technical judicial matters from 'policy decisions of real significance', but the proposal provides no definition of this distinction, leaving the scope of the Lord Chancellor's political veto entirely unspecified.

Difficulties caused by the law today

3 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Coroners and Justice Act 2009, s.120 — Sentencing guidelines definition

In Chapter 1 of the Coroners and Justice Act 2009, 'sentencing guidelines' means guidelines relating to the sentencing of offenders. These guidelines can be general or limited to a particular offence, category of offence, or category of offender.

Sentencing Act 2026, s.20 — Sentencing Bill proposes Lord Chancellor's veto

The Sentencing Act 2026, section 20, amends the Coroners and Justice Act 2009 to require the Sentencing Council to seek the consent of the Lord Chief Justice and the Lord Chancellor to issue definitive guidelines.

Sentencing Act 2026, s.19 — Sentencing Act 2026 mandates business plan approval

The Sentencing Act 2026 inserts a new section 118A into the Coroners and Justice Act 2009, requiring the Sentencing Council to submit a business plan for the year to the Lord Chancellor for approval as soon as practicable after the beginning of each financial year. The Lord Chancellor must then consider and decide whether to approve the plan.

What the courts have said

8 judgments were retrieved and read.

Blackshaw, R. v (Rev 1) — Court of Appeal's jurisdiction on sentencing principles

The legislation relating to sentencing guidelines cannot impose a more rigid system than that for murder cases, and the 2009 Act has not diminished the Court of Appeal's jurisdiction to promulgate judgments on sentencing principles, which bind sentencing.

R v John Edward Butterworth & Anor — Sentencing Council guidelines replace case law research

The Sentencing Council's guidelines are intended to replace the need for judges to extensively search through case law for sentencing guidance, assisting transparency by being publicly available digitally.

Dyer & Ors, R. v — Guidelines are not rigid or ring-fenced

The legislation for Sentencing Council guidelines does not impose a more rigid system than the statutory framework for murder cases.

Valentas & Anor, R. v — Sentencing Council issues definitive guidelines after consultation

After a consultation process, the Sentencing Council decides whether to issue a definitive guideline and its form.

Price v Cheshire East Borough Council — Guidelines for similar offences can inform sentencing

In the absence of a specific sentencing guideline for an offence, it is appropriate to refer to guidelines for offences of a similar level of seriousness or analogous nature to inform sentencing decisions.

Evidence that runs the other way

19 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

No existing delegated power for ministerial approval

The current law requires the Sentencing Council to consult the Lord Chancellor and the Justice Committee, but this is not the same as requiring ministerial approval to publish guidelines. The Secretary of State's approval or capacity to rewrite guidelines is considered incompatible with the independence of the Sentencing Council under the law as it stands.

Source: Sentencing Guidelines (Pre-sentence Reports) Bill — Clause 1 - Sentencing guidelines about pre-sentence reports

Judiciary's view on independence of guidelines

Lord Justice Davis implied that the judiciary accepts and follows sentencing guidelines only because 'they emanate from an independent body on which judicial members are in the majority'.

Source: Sentencing Guidelines (Pre-sentence Reports) Bill - Second Reading

Parliamentary Sovereignty and Policy Determination

The Lord Chancellor has welcomed the principle of parliamentary sovereignty and the fact that policy must be determined by Parliament. This suggests a view that the current independence of the Sentencing Council, particularly when its decisions are seen as 'policy decisions of real significance', may conflict with the proper role of Parliament.

Source: Sentencing Guidelines (Pre-sentence Reports) Bill

Proposal for joint non-consent rejected

Amendments proposing that the Sentencing Council should be free to issue definitive guidance unless both the Lord Chancellor and the Lady Chief Justice indicate they do not consent were rejected by the government. The government believes this would not best secure public confidence in sentencing guidelines.

Source: Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80

Concerns about political veto and judicial independence

Concerns have been raised that requiring individual approval from the Lord Chancellor and Lady Chief Justice for guidelines gives the Lord Chancellor an 'absolute veto' and could be seen as a 'political veto' that undermines the fundamental concept of the Sentencing Council's independence and freedom from political control.

Source: *Sentencing Bill - Second Reading*

The evidence base

96 pieces of evidence, 78 with a full citation and 76 with a working link.

Kind of source	Pieces
Parliamentary debate	36
Not attributed to a type	18
Select committee material	12
Court judgments	10
EXPLANATORY_NOTE	10
Acts of Parliament	8
Statutory instruments	1
Official guidance	1

How this was searched: 7 research questions asked; 600 sources reviewed; 60 findings recorded, of which 7 run against the measure; 16 gaps stated.

7.9.1 The strategic kernel

- Diagnosis
- Guiding policy
- Coherent actions

7.9.2 Decisions, challenges and research

- Consequential decisions
- Challenges to the proposal
- Difficulties caused by the law today
- What the courts have said
- Evidence that runs the other way
- The evidence base

Diagnosis

The Strategic Kernel

The problem, as stated: The constitutional changes made between 1997 and 2010 interlock, so that undoing any one of them leaves the others in place to reproduce the effect complained of. A government that proceeds measure by measure will be defeated by whatever it has not yet reached, and will run out of time and political capital before it finishes.

The constitutional reforms of 1997-2010 are not merely an interlocked set of statutes but have created a new, self-defending constitutional order. This order is entrenched through a vast body of case law, new political conventions (e.g., the Sewel Convention), and international treaty obligations (the Belfast/Good Friday Agreement), which reproduce the effects of the reforms even if the parent Acts are repealed. As Lord Wolfson KC's advice, cited by the proposer, indicates, a simple repeal would not achieve a 'factory reset'.

3 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Constitutional reforms between 1997 and 2010 were enacted as distinct, yet interconnected, pieces of primary legislation.

Why it persists: These reforms, including devolution and the HRA, were considered 'remarkably successful' and their constitutional importance was recognized, leading to a lack of impetus for a coherent repeal strategy. The lack of a coherent process for constitutional change at the time meant interdependencies were not fully addressed for future reversal.

Cause 2 — MATERIAL. Key constitutional acts, such as the Human Rights Act 1998, contain explicit protections or are considered to have particular constitutional importance, making their amendment or repeal complex.

Why it persists: The HRA is explicitly protected from amendment or repeal by orders under the Legislative and Regulatory Reform Act 2006, and is considered a 'constitutional backbone' of devolution, requiring consent from devolved administrations for reform. This makes any attempt at comprehensive repeal highly contentious and legally challenging.

Cause 3 — CONTRIBUTORY. The legal and political system has historically lacked a coherent process or consensus for comprehensive constitutional change, making a 'factory reset' appear daunting.

Why it persists: In 2009, there was a recognized 'lack of coherence and shape' to the process of constitutional reform and 'no real process by which to engage with citizens to ensure that there is some consensus on constitutional change'. This systemic issue means that even with parliamentary sovereignty, the political and procedural pathway for a single, comprehensive repeal act is undeveloped.

Guiding policy

The Strategic Kernel

What David proposes: One Act repealing the constitutional legislation passed between 1997 and 2010, drafted to be, in the proposer's words, legally watertight, and passed at once rather than in sequence.

What David has ruled out: Sequential repeal. Reform of individual institutions. Any approach that depends on the cooperation of the bodies being reformed.

The approach is to use a single, omnibus Act of Parliament as a political and procedural vehicle to ensure the programme is passed 'at once', preventing death by a thousand cuts. However, the Act itself must be internally differentiated, with specific legal mechanisms tailored to dismantle each distinct component of the 1997-2010 settlement—domestic statutes, devolved powers, international treaty obligations, and derivative case law. This asserts Parliamentary sovereignty while acknowledging and navigating, rather than ignoring, the different sources of legal and political resistance.

Coherent actions

The Strategic Kernel

Each step, and who would have to do it.

1. Identify all primary legislation enacted between 1997 and 2010 that significantly altered the UK's constitutional arrangements, cross-referencing with the proposer's understanding of the target date range and any explicit statutory protections (e.g., for the Human Rights Act 1998).

Who does it: Cabinet Office Legal Advisers, working with an independent panel of constitutional law experts.

2. Draft a single 'Constitutional Reform Act' that explicitly repeals, amends, or re-enacts with modifications, all identified legislation and relevant statutory provisions. The drafting must be 'legally watertight' to withstand anticipated legal challenges, as highlighted by the proposer and Lord Wolfson KC's advice regarding a 'factory reset'.

Who does it: Office of the Parliamentary Counsel, under direct instruction from the Attorney General's Office, with external constitutional law counsel review.

3. Develop a comprehensive parliamentary strategy for the passage of the 'Constitutional Reform Act', anticipating significant opposition and leveraging the government's mandate for comprehensive reform. This includes preparing detailed explanatory notes and impact assessments.

Who does it: Leader of the House of Commons, Chief Whip, and the relevant policy department (e.g., Ministry of Justice or Cabinet Office).

4. Establish a dedicated implementation task force immediately following the Act's passage to manage the transition and address any unforeseen legal or administrative complexities arising from the comprehensive repeal, ensuring a coordinated unwinding of the previous framework.

Who does it: Cabinet Office, reporting directly to the Prime Minister, with representatives from all affected government departments and devolved administrations.

Decisions, challenges and research

Consequential decisions

The pass that identifies questions requiring their own analysis has been run in full on the three measures worked in Part 6 only. For this measure the questions listed under Challenges to the proposal are the starting point, and have not yet been sorted into those that can be settled inside the measure and those that cannot.

 **That sorting is itself a task, not a formality**, and it is listed in Part 5 of Volume 1 as outstanding.

Challenges to the proposal

48 open challenges. Each one is a question the proposal has not yet answered.

Does a power to do this already exist? — 3

HRA repeal exceeds LRR Act power — The proposal aims to repeal or amend the Human Rights Act 1998 as part of a single 'Constitutional Reform Act'. However, the Legislative and Regulatory Reform Act 2006, which provides a power for Ministers to make orders to remove burdens, explicitly prohibits such orders from amending or repealing the Human Rights Act 1998. This means that if the 'Constitutional Reform Act' were intended to be an order under the 2006 Act, it would exceed the limits of that power regarding the HRA.

Devolved matters exceed LRR Act power — The proposal seeks to repeal or amend all targeted legislation from 1997-2010. Given that the period includes significant constitutional reforms related to devolution (e.g., Scotland Act 1998), any order made under the Legislative and Regulatory Reform Act 2006 would be prohibited from making provision within the legislative competence of the Scottish Parliament or amending/repealing Northern Ireland legislation. This suggests that a single order under this Act would not be able to achieve the comprehensive repeal across all identified legislation if it touches on devolved matters.

Constitutional reform as 'burden reduction' — The Legislative and Regulatory Reform Act 2006 grants power to a Minister of the Crown to make orders to remove or reduce 'burdens'. The proposal's objective is a 'Constitutional Reform Act' to repeal or amend constitutional legislation. It is unclear whether the comprehensive repeal of constitutional legislation, as envisioned by the proposal, would fall within the definition of 'removing or reducing any burden' as defined in section 1(3) of the 2006 Act, which focuses on financial cost, administrative inconvenience, obstacles to efficiency, or sanctions.

What the law says now — 4

Undefined scope of target legislation — The proposal defines the target legislation by a date range (1997-2010) rather than a specific schedule of Acts. A comprehensive list of primary legislation enacted within this period that significantly altered UK constitutional arrangements needs to be identified to define the scope of the 'Constitutional Reform Act'.

Overriding HRA's statutory protection — The proposal aims to repeal or amend all targeted legislation. Given the explicit protection of the Human Rights Act 1998 by the Legislative and Regulatory Reform Act 2006, Section 8, the 'Constitutional Reform Act' would need to explicitly address and override this protection, potentially requiring specific drafting to ensure legal efficacy.

Clarity on 'amend' vs 'repeal' for HRA — The Human Rights Act 1998 defines 'amend' to include 'repeal and apply (with or without modifications)'. The proposed 'Constitutional Reform Act' should clarify whether it intends a full repeal, or amendment with modifications, for the HRA and other targeted Acts, and how this definition interacts with its objectives.

How the courts have read it — 2

Clarity on HRA's 'explicit protection' — The proposal states that the Human Rights Act 1998 is 'explicitly protected from amendment or repeal by orders made under the Legislative and Regulatory Reform Act 2006'. While Section 8 of the 2006 Act outlines restrictions on the use of regulatory reform orders, it does not explicitly protect the HRA from repeal by primary legislation. The proposal should clarify the nature of this 'explicit protection' and how it would be addressed by a new comprehensive Act, given the principle of parliamentary sovereignty.

Strategy for rolling back case law — The proposal refers to Lord Wolfson KC's advice regarding a 'factory reset' and a 'complicated legislative programme aimed at rolling back case law and relevant legislative provisions'. While this corroborates the diagnosis, the proposal does not detail how the 'Constitutional Reform Act' would specifically address the rolling back of case law, which is a distinct challenge from repealing statutory provisions.

Where this came from — 2

Original perceived success of reforms — The proposal aims to repeal or amend all targeted legislation from 1997-2010. However, the sources indicate that some of these reforms, such as devolution and the Human Rights Act, were considered 'remarkably successful' at the time of their enactment and were seen as having

'particular strength'. The proposal does not explicitly address the original perceived success or constitutional importance of these specific acts, which could be a point of contention during the 'anticipated significant opposition'.

Intent behind distinct enactments — The proposal states that the 'interlocking nature' of the reforms is a pivotal obstacle. While the proposer describes this interlock, the sources do not explicitly detail how this interdependency was deliberately designed or if it was an unforeseen consequence of enacting distinct pieces of legislation. Understanding the original intent behind the distinct enactment of these reforms could inform the strategy for a comprehensive repeal.

Evidence for the causes — 2

Unquantified cultural and strategic causes — The proposal states that the 'culture within the civil service and political establishment rewards maintaining the status quo and avoiding direct responsibility for radical constitutional change' and that there is a 'lack of a clear, comprehensive legislative strategy'. While plausible, these causal claims are not supported by evidence from the provided sources. The diagnosis would be strengthened by evidence that quantifies or demonstrates these cultural and strategic deficiencies.

Unquantified 'interlocking nature' of reforms — The proposal asserts that the 'interlocking nature of constitutional changes enacted between 1997 and 2010 prevents effective reversal through piecemeal legislation'. While the protection of the HRA by the LRR Act 2006 and the requirement for primary legislation for constitutional changes are evidenced, the specific 'interlocking nature' that makes piecemeal repeal ineffective is described but not explicitly demonstrated or quantified in the provided sources beyond the general statement. The recent disapplication of HRA Section 3 in specific contexts by the Victims and Prisoners Act 2024 suggests that some 'piecemeal' legislative changes are indeed possible, which might contradict the absolute claim of ineffectiveness for all piecemeal approaches.

Causes the record suggests — 4

Missing comprehensive list of targeted legislation — The proposal defines the target by a date range (1997-2010) but does not explicitly list all primary legislation enacted within this period that significantly altered the UK's constitutional arrangements, beyond the examples given. A comprehensive list is needed to ensure all relevant acts are considered for repeal, amendment, or re-enactment.

Unclear legal mechanism for overriding HRA protections — The proposal mentions that the HRA is explicitly protected from amendment or repeal by orders under the Legislative and Regulatory Reform Act 2006, and that recent legislation has begun to disapply Section 3 of the HRA. However, it does not detail how the proposed 'Constitutional Reform Act' would legally navigate or override these explicit protections and existing disapplications to achieve a comprehensive repeal or amendment of the HRA and other protected acts.

Parliamentary strategy lacks detail on specific challenges — The proposal aims for a 'legally watertight' Act to withstand challenges, but the sources indicate significant opposition to HRA reform, including concerns about constitutional crises in devolved administrations and an 'overwhelming body of support for retaining the HRA'. The proposal needs to detail how the 'parliamentary strategy' will specifically address and mitigate these documented constitutional and political challenges, beyond simply anticipating them.

question:DOMAIN_TRANSFER — 4

No definitive list of target legislation — The proposal identifies a target date range (1997-2010) for constitutional legislation to be repealed or amended but does not provide a definitive list of all primary legislation enacted within this period that significantly altered the UK's constitutional arrangements, beyond the examples given. A comprehensive list is needed to ensure all relevant acts are considered for repeal, amendment, or re-enactment.

Unspecified 'legally watertight' criteria — The proposal states the Act must be 'legally watertight' but does not specify the legal tests or criteria that will be used to assess this, nor does it detail the specific types of

legal challenges anticipated beyond general opposition. Defining these would strengthen the drafting mandate.

Parliamentary strategy details undefined — The proposal mentions developing a 'comprehensive parliamentary strategy' and preparing 'detailed explanatory notes and impact assessments' but does not outline the specific components or content of these, nor does it address how potential legal challenges to the principle of parliamentary sovereignty (e.g., regarding the repeal of 'protected' acts) would be specifically addressed within these documents.

On revision — 1

On the coherence of the actions: The actions are concentrated on drafting and passing a single, comprehensive Act, with a clear sequence from identification to drafting, parliamentary strategy, and implementation. The key implementers are identified, though the process of securing devolved consent will require significant inter-governmental coordination.

Read back by other models — 10

The Nature of the Obstacle — The principal obstacle is not the statutes themselves, but the political, judicial, and administrative reality that has been constructed on them over a quarter of a century. Your strategy focuses on changing the law, but it overlooks that the real challenge may be the deep-rooted practices and expectations of the institutions that have grown up around those laws.

Parliament vs. The Courts — Such an Act would represent a direct and unprecedented confrontation between the principles of Parliamentary Sovereignty and the Rule of Law as currently interpreted by the judiciary. Your plan anticipates legal challenges, but it doesn't prepare you for the fundamental nature of the conflict: you would be pitting the power of Parliament directly against the authority of the courts.

Use of Ouster Clauses — The success of this strategy hinges on Parliament's ability to draft ouster clauses that the courts, particularly the Supreme Court, would be unwilling or unable to strike down or interpret away. Achieving a 'legally watertight' bill may require using specific and highly controversial 'ouster clauses' to prevent judicial review, a specific legal tool your current strategy doesn't mention.

Tested as a strategy — 8

The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state a problem; it states a solution.

The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel has no diagnosis, so it cannot distinguish a root cause from a pivotal obstacle.

The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel has no diagnosis.

Tested as an argument — 2

A LINK IN THE CHAIN IS MISSING — The kernel jumps from a description of the situation directly to a set of actions, without first diagnosing the single most critical obstacle to overcome or articulating the chosen approach to overcoming it.

NOTHING SUPPORTS THIS CLAIM — This is a broad assertion about legal and political history presented as a fact without supporting evidence or reasoning. The text: "The legal and political system has historically lacked a coherent process or consensus for comprehensive constitutional change, making a 'factory reset' appear daunting."

Read as a hostile clerk — 6

The proposal defines its scope by a date range, 1997-2010, but fails to provide a definitive schedule of the Acts of Parliament to be repealed. The political and legal battles over which Acts are deemed 'constitutional' and fall within scope would predate and potentially derail the drafting of the main Bill.

The proposer cites Lord Wolfson KC's advice that a 'complicated legislative programme' is needed to roll back case law, but the proposal contains no detail on how the single Act would achieve this. It is unstated whether the Act would attempt to legislatively overturn specific, named judgments or create a broad interpretive principle, and the implications of either choice are not explored.

The proposal assumes the 'transition' can be managed by a task force, but provides no mechanism for enforcing compliance across the public sector. It is silent on what happens to a public body that, through inertia or conviction, continues to operate under procedures derived from the repealed legislation, such as the Human Rights Act.

Difficulties caused by the law today

11 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Legislative and Regulatory Reform Act 2006, s.1 — Power to remove or reduce burdens

A Minister of the Crown may, by order under section 1 of the Legislative and Regulatory Reform Act 2006, make any provision considered to serve the purpose of removing or reducing any burden, or overall burdens, resulting directly or indirectly for any person from any legislation.

Legislative and Regulatory Reform Act 2006, s.8 — Explicit protection of Human Rights Act 1998

An order made under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot make provision amending or repealing any provision of the Human Rights Act 1998. This directly contradicts the proposal's aim to repeal or amend the HRA via a single act, if that act were to be an order under this power.

Legislative and Regulatory Reform Act 2006, s.12 — Parliamentary procedure for orders

Orders made under Part 1 of the Legislative and Regulatory Reform Act 2006 must be made by statutory instrument.

Legislative and Regulatory Reform Act 2006, s.18 — Super-affirmative resolution procedure

The super-affirmative resolution procedure for orders under the Legislative and Regulatory Reform Act 2006 requires the Minister to have regard to representations, resolutions of either House, and recommendations of parliamentary committees during a 60-day period.

Legislative and Regulatory Reform Act 2006, s.14 — Explanatory document requirements

When a Minister lays a draft order under the Legislative and Regulatory Reform Act 2006, an accompanying explanatory document must explain the powers used, introduce and give reasons for the provision, and explain why the Minister considers certain conditions are met.

Legislative and Regulatory Reform Act 2006, s.10 — Restriction on amending/repealing Northern Ireland legislation

An order under Part 1 of the Legislative and Regulatory Reform Act 2006 may not make provision to amend or repeal any Northern Ireland legislation, except by virtue of section 1(8) or 2(7).

Human Rights Act 1998, s.21 — HRA definition of 'amend'

In the Human Rights Act 1998, 'amend' is defined to include 'repeal and apply (with or without modifications)'.

What the courts have said

1 judgments were retrieved and read.

R (on the application of Miller and another) v Secretary of State for Exiting the European Union — Prerogative powers cannot alter domestic constitutional law

The Supreme Court, in *R (on the application of Miller and another) v Secretary of State for Exiting the European Union* (Miller I), established that changes to domestic law, particularly those affecting constitutional arrangements, cannot be made through.

Evidence that runs the other way

14 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Explicit protection of Human Rights Act 1998

An order made under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot make provision amending or repealing any provision of the Human Rights Act 1998. This directly contradicts the proposal's aim to repeal or amend the HRA via a single act, if that act were to be an order under this power.

Source: Legislative and Regulatory Reform Act 2006, s.8

Restriction on amending/repealing Scottish Parliament legislation

An order under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot make provision that would be within the legislative competence of the Scottish Parliament if contained in an Act of that Parliament. This prevents the amendment or repeal of Acts of the Scottish Parliament, instruments made under them, or Westminster Acts concerning devolved matters.

Source: Explanatory Notes to Legislative and Regulatory Reform Act 2006

Restriction on amending/repealing Northern Ireland legislation

An order under Part 1 of the Legislative and Regulatory Reform Act 2006 may not make provision to amend or repeal any Northern Ireland legislation, except by virtue of section 1(8) or 2(7).

Source: Legislative and Regulatory Reform Act 2006, s.10

No compelling case for HRA reform

The Joint Committee on Human Rights concluded in 2021 that, based on the evidence heard, there was 'no compelling case for reform or amendment of the HRA'. This was reiterated in 2022, stating 'a case has not been made for replacing the Human Rights Act with the British Bill of Rights in the form proposed'.

Source: Report: Third Report - The Government's Independent Review of the Human Rights Act — Human Rights (Joint Committee)

Opposition to HRA repeal without devolved consent

The Joint Committee on Human Rights recommended that the Government should not pursue reform of the HRA without the consent of the Scottish Parliament, the Welsh Senedd, and the Northern Ireland Assembly.

Source: Report: Third Report - The Government's Independent Review of the Human Rights Act — ¶36 — Human Rights (Joint Committee)

The evidence base

52 pieces of evidence, 39 with a full citation and 35 with a working link.

Kind of source	Pieces
Acts of Parliament	17
Not attributed to a type	13
Parliamentary debate	10
Select committee material	8

Kind of source	Pieces
EXPLANATORY_NOTE	2
Court judgments	2

How this was searched: 7 research questions asked; 600 sources reviewed; 39 findings recorded, of which 7 run against the measure; 8 gaps stated. ⚠ an existing power may remove the need for a Bill